

FAIRS,
PAST AND PRESENT:
A
CHAPTER IN THE HISTORY OF
COMMERCE.

BY
CORNELIUS WALFORD, F.I.A., F.S.S.,
Barrister-at-Law, and Vice-President of Royal Historical Society.



LONDON: ELLIOT STOCK,
62, PATERNOSTER ROW, E.C.
1883.

FAIRS,
PAST AND PRESENT:
A
CHAPTER IN THE HISTORY OF
COMMERCE.

BY
CORNELIUS WALFORD, F.I.A., F.S.S.,
Barrister-at-Law, and Vice-President of Royal Historical Society.



LONDON: ELLIOT STOCK,
62, PATERNOSTER ROW, E.C.

1883.

The Project Gutenberg eBook of Fairs, past and present

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Fairs, past and present
A chapter in the history of commerce

Author: Cornelius Walford

Release date: May 9, 2024 [eBook #73583]

Language: English

Original publication: London: Elliot Stock, 1883

Other information and formats: www.gutenberg.org/ebooks/73583

Credits: deaurider and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK FAIRS, PAST
AND PRESENT ***



FAIRS, PAST AND PRESENT.



FAIRS,
PAST AND PRESENT:

A
CHAPTER IN THE HISTORY OF
COMMERCE.

BY
CORNELIUS WALFORD, F.I.A., F.S.S.,
Barrister-at-Law, and Vice-President of Royal Historical Society.



LONDON: ELLIOT STOCK,
62, PATERNOSTER ROW, E.C.
1883.



PREFACE.

It seems a little remarkable that an institution at once so popular and so universal as fairs should not heretofore have found an historian. The fact may perhaps be accounted for in the circumstance that fairs, as now regarded, are associated with notions of frivolity. Many of the circumstances connected with their origin are certainly not generally known. They were the product of a blending of Religion with Commerce, suited to the genius of former ages, but finding little sympathy now. They have been associated with the development of commerce in the nations of Europe—perhaps in the nations of the world.

The materials for such a history are reasonably abundant upon diligent search. They do not lie upon the surface. Prolonged investigation revealed so much, that for the purpose of this work some selection became necessary. I had to consider whether it would be more instructive to present the incomplete outline of a number of fairs ranging throughout the world, or to select some of the principal ones at home and abroad, past and present, and trace minutely their origin, their development, and their decadence. I determined upon the latter course; and this, too, notwithstanding that Mr. Henry Morley had already traced in much detail one of the great fairs whose records it would become necessary for me to traverse.

I was chiefly led to the decision stated from the fact that the greatest fair ever held in this country, and held for many centuries—that of *Sturbridge*, by Cambridge—had hitherto found no historian; yet many of its annals are on record in a form of undoubted authenticity. It seemed to me that it would be more instructive to follow such a history through its successive phases than to present a series of minor sketches, however varied the details should

be. I trust it may be felt that I have selected the right course. The other materials brought together are not lost; they are only held over, and will receive the benefit of some additions and corrections. They can be had when called for, and they will reveal much that is new, even after this work shall have been read.

The greatest fair in England was that of STURBRIDGE; the greatest fair in London that of ST. BARTHOLOMEW, Smithfield. Their histories are here given. They have some points of resemblance; but on the whole they represent two really distinct pictures of old English manners.

The fairs of Continental Europe required some elucidation. I have given therefore an outline of several of the more notable fairs of FRANCE, including those most famous gatherings of the middle ages at Champagne and Brie. Concerning these latter I have been able to present some original documents, forming part of the records of the City of London, and now for the first time printed. Many of these fairs are things of the past. I have added an outline of the fairs of RUSSIA, including the great fair of *Nijni-Novgorod*, because these are institutions of the present. I think the history of this last-named fair has not previously been written in such detail.

I trust that the work will be found reasonably free alike from author's and from printer's errors.

C. W.

BELSIZE PARK GARDENS,
LONDON, *February, 1883.*



ERRATA.

Page [17](#), first line, read *dieta* for *dicta*.

Pages [20](#), [21](#), [22](#), for *Magna Carter* read *Magna Charta*.

Page [21](#)([note](#)), sixth line, after “Saxon” read *Tholl*, Low Latin.

Page [245](#), nine lines from bottom, for “A.D. 427,” read *in the fifth century*.

Transcriber’s Note: These errata have been corrected, along with a few other small printing errors.



CONTENTS.

CHAPTER		PAGE
	I. Origin of Fairs	<u>1</u>
	II. Origin and Laws—England	<u>12</u>
	III. Early Regulations—England	<u>19</u>
	IV. Courts of Piepowder	<u>26</u>
	V. Legislation for Fairs—England	<u>32</u>
	VI. Modern Legislation	<u>49</u>
	VII. Sturbridge Fair, Origin of	<u>54</u>
	VIII. Sturbridge Fair, Thirteenth and Fourteenth Centuries	<u>58</u>
	IX. Sturbridge Fair, first half of the Sixteenth Century	<u>68</u>
	X. Sturbridge Fair, second half of the Sixteenth Century	<u>88</u>
	XI. Sturbridge Fair, Seventeenth Century	<u>113</u>
	XII. Sturbridge Fair, Eighteenth Century	<u>128</u>
	XIII. Sturbridge Fair, Nineteenth Century	<u>149</u>
	XIV. Sturbridge Fair, Conclusion	<u>160</u>
	XV. Bartholomew Fair, Origin of	<u>164</u>
	XVI. Bartholomew Fair, Twelfth to Sixteenth Centuries	<u>167</u>
	XVII. Bartholomew Fair, Seventeenth Century	<u>190</u>
	XVIII. Bartholomew Fair, Eighteenth and Nineteenth Centuries	<u>217</u>
	XIX. Fairs in France	<u>245</u>
	XX. Other Fairs of France	<u>261</u>

XXI. The Fairs of Paris	275
XXII. Fairs of Russia	284
XXIII. Nijni-Novgorod	291
XXIV. Fairs in Asiatic Russia	308
Comprehensive Index	311





CHAPTER I.

ORIGIN OF FAIRS.

The origin of Fairs, like that of many other ancient institutions, is involved in much obscurity. The almost universal belief is that they were associated with religious observances; or, as Mr. Morley poetically puts it: “the first fairs were formed by the gathering of worshippers and pilgrims about sacred places, and especially within or about the walls of abbeys and cathedrals, on the Feast days of the Saints enshrined therein.” The sacred building and its surroundings being too small to provide accommodation, tents were pitched; and as the resources of the district would no more suffice to victual than to lodge its throngs of visitors, stalls were set up by provision dealers; and later these were turned to more general purposes of trade. This incidental origin seems, in some cases, hardly sufficient to account for the results which followed; but then it has ever been the genius of commerce to follow close upon the wants of the people.

The establishment of fairs as a source of revenue to religious houses was probably a later development. The Church has always been keenly alive to its temporal interests. And while it was one of its principal functions to administer hospitality to the needy and decrepit, there was justice in drawing contributions from those who too soon might have to rely upon its bounty. Certain it is that nearly all the early charters which I shall have to notice in the progress of this work were shaped in view of granting tolls and revenue to the purposes of religion and charity.

The signification of the word Fair (French *foire*) is in the Latin *forum* a market-place, or *feriæ* holidays. But the German designation *Messen* seems still more significant, as being a word employed to denote the most solemn part of the Church service—the mass (Latin *missa*). The association of ideas here implied strengthens with every step of investigation. In the time of Constantine the Great (fourth century of Christian era) Jews, Gentiles, and Christians assembled in great numbers to perform their several rites about a tree reputed to be the oak mambre under which Abraham received the angels. At the same place, adds Zosimus, there came together many traders, both for sale and purchase of their wares. St. Basil, towards the close of the

sixth century, complained (*De Ascetisis*) that his own Church was profaned by the public fairs held at the martyr's shrines. While Michaud ("History of Crusades," i., 11) records that under the Fatimite Caliphs, in the eleventh century, a fair was held on Mount Calvary on the 15th September every year, in which were exchanged the productions of Europe for those of the East. Gibbon implies an earlier date, in stating that it was promoted by the frequent pilgrimages between the seventh and the eleventh centuries. This Fair was of special importance in the commerce of the Italians with the East. *Vide* Cunningham's "Growth of English Industry and Commerce," 1882, p. 120, n.

These notes are but preliminary and introductory: the inquiry has now to take a wider range.

Greece.—The association of commerce with religious observances seems indeed not to have originated in or with the Christian Church. It is supposed for instance that at the celebrated Greek games, such as those at Olympia, &c., trade was no entirely subordinate object; and this idea gains confirmation from various passages in the ancient classic authors. Cicero expressly states that even so early as the age of Pythagoras, a great number of people attended the religious games for the special purpose of trading. At Delphi, Nemæa, Delos, or the Isthmus of Corinth, a fair was held almost every year. The Amphyctionic fairs were held twice a year. In the time of Chrysostom, these fairs were infamously distinguished for a traffic in slaves, destined for public incontinence.^[1] The Amphyctionic spring fair was held at Delphi, and the autumn fair at Thermopylæ: in fact at the same times that the deputies from the States of Greece formed the Amphyctionic Council—another proof that wherever large assemblies of people took place in Greece, for religious or political purposes, advantage was taken to carry on traffic. At the fairs of Thermopylæ medicinal herbs and roots, especially hellebore, were sold in large quantities.

It may be taken for granted that one principal reason why the religious games or the political assemblies of the States were fixed upon to hold the fairs was that during these, *all hostilities were suspended*: and every person might go with his merchandise in safety to them, even through an enemy's country. The priests, so far from regarding these fairs as a profanation of the religious ceremonies, encouraged them; and the priests of Jupiter, in particular, advanced large sums on interest to such merchants as had good

credit, but had not sufficient money with them, *vide* Stevenson's "Historical Sketch of the Progress of Discovery, Navigation and Commerce," vol. 18 of Kerr's "Travels," 1824.

Early Eastern Nations.—By reference to "The Books of the Prophets," we are enabled to realize the importance of the fairs in the ancient commerce of the great city of Tyre (probably B.C. 597-74) "the crowning city whose merchants were princes, whose traffickers the honourable of the earth" (Isaiah xxiii. 8). Thus in Ezekiel xxvii.:—

"12. Tarshish was thy merchant by reason of the multitude of all kinds of riches; with silver, iron, tin and lead, they traded in thy fairs....

"14. They of the house of Togarmah traded in thy fairs with horses and horsemen and mules....

"16. Syria was thy merchant by reason of the multitude of the wares of thy making: they occupied in thy fairs with emeralds, purple and brodered work, and fine linen and coral and agate....

"19. Dan also and Javan going to and fro occupied in thy fairs: bright iron, cassia, and calamus, were in thy market....

"22. The merchants of Sheba and Raamah, they were thy merchants: they occupied in thy fairs with chief of all spices, and with all precious stones and gold....

"27. Thy riches, and thy fairs, thy merchandise, thy mariners shall fall into the midst of the seas in the day of thy ruin."

The merchant traders mentioned here claim ancestry from families mentioned Genesis x. 3-7. The expression "they occupied" may be rendered "they inhabited." In the same chapter, in alternate verses, there are many references to markets.

Rome.—It is asserted by learned writers (Fosbroke and others) that fairs, as such, took their origin in ancient Rome. Romulus, Servius, Tullius, and the Republic, at its commencement, are severally said to have instituted fairs, in order that the country people might come in every ninth day (*nundinæ*) to hear the laws proclaimed, or the decrees of the people delivered.^[2] Other public business was transacted thereat. Booths, tents, and wooden stands for shows were always usual in such places. The fairs were

frequently held in the public streets; and one of the most constant objects of sale or barter was that of indulgences! Dogs, and especially greyhounds, were sold at these Roman fairs. It is further said that the fairs were appointed to be held on Saints' days *in order that trade might attract those whom religion could not influence*. The monasteries sold goods, probably such as their inmates and surrounding dependents could manufacture.

Courts for the purposes of adjudicating upon questions of dispute arising out of the dealings at the fairs were held alike in Greece and Rome; these being similar to the Piepowder Courts of the middle ages, and most likely their precursors. In time of war, fairs were guarded by soldiers, attempts at plunder being frequent. Bells were provided in fairs for the purpose of giving speedy alarm.

It has been generally admitted that the Romans introduced the practice of holding fairs into the north of Europe. I think I shall make it abundantly clear that they introduced them into England.

Italy.—It is towards the close of the fifth century of the Christian era that we first find any authentic account of fairs specially designed as marts for commerce. Like many other incidents associated with the history of commerce, the first traces are found in Italy. The Western Roman Empire had become extinguished; but Italy had fallen into good hands. Theodoric the Chief or King of the Ostro-Goths had done much to revive its agriculture, and something for its commerce. Foreign merchants began to visit it again; and about A.D. 493 several *fairs* were appointed for the purpose of exchanging its redundant produce with the merchandise of other countries. Many rich Jew traders settled in Rome; and by means of these fairs a wide interchange of commodities was effected.

Germany.—We next turn to *Germany*. We know that the Emperor Charles the Great (Charlemagne) towards the close of the eighth century paid great attention to the commerce of western Europe—a fact indeed which seems difficult to be reconciled with the circumstance that he allowed the priests to make a canon declaring all interest for the use of money to be sinful! It may be that he yielded this point in the hope that commercial dealings would soon explode the fallacy. He recognized in fairs a means of exchange of commodities well suited to the times. The great fairs of his period were those of Aquisgranum (*Aix la Chapelle*) and of

Troyes. These were frequented during his reign by traders from most parts of Europe. The weight used at the latter fair for dealings in coin—then often accepted by weight only on account of its battered condition—became adopted as the weight for bullion in all parts of Europe—the pound troy.

Flanders.—Our attention is next directed here. The woollen manufactures commenced probably in the latter half of the tenth century (960). At first the sales were mostly to the French, whose thrifty habits enabled them to purchase fine woollen cloths for wear. On account of the scarcity of coin the trade was mostly carried on by barter, to facilitate which Baldwin, Earl of Flanders—who seems to have exceeded most of the sovereigns of that period in desiring the real interest of himself and his subjects—set up weekly markets, and established regular fairs at *Bruges*, *Courtray*, *Torhout* and *Mont-Casel*, at all which he exempted the goods sold or exchanged from paying any duties on being brought in or carried out. The new trade was thus greatly extended, and it continued to flourish for several centuries—largely due to its being widely known through the fairs of Europe.

France.—Much of the European commerce of the middle ages was transacted at the celebrated fairs of Champagne and Brie. There the merchants of Italy, Spain and France congregated. From far distant climes the Genoese transported thither bales of goods; and busy traders came to meet in open market the infant efforts of Belgian manufacturers from Yprès, Douai, and Bruges. Burgundy sent cloth, Catalonia leather, and the Genoese and Florentines brought silks; while at all the seaports along their coasts vast cargoes were unshipped and placed on the backs of mules to wend their way to the place appointed for the fair.

These fairs would begin with the sale of cloth, perhaps for seventeen days; the cloth merchants would settle their accounts prior to the silk merchants entering upon their bargains. In the middle of it all the great cry “*Ara*” was raised, as a signal for the money-changers to take their seats, and for four weeks they sat for the benefit of the various nationalities who wished to realize their gains in their native coin.

After the conclusion of the fair a busy time of fifteen days was set apart for those who had not yet settled their accounts, and to rectify disputes; which time was extended in favour of the representatives of more distant

people who wished to go home and return before finally completing their books. The Genoese bursar at these fairs had always a month allowed him before settling his accounts.

Bent (in his “Genoa: how the Republic Rose and Fell,” 1881) from whom we have drawn some of the preceding details says (p. 106) these fairs in southern France were not without their political significance. Besides bringing hither their merchandise, the Italian traders imported into these towns their spirit of independence and their love of republicanism. It was from the south of France that the seeds of liberty, equality, and fraternity spread northwards. No greater stronghold of the rights of the third estate existed than at Marseilles. To this day the influence of this fact is strong on the politics of France. And the principles inculcated by the independent traders of Italy took deep root here under the eyes of despotism, and found a truly favourable soil in which to develop. The French revolution, and the state of France as it is to-day, may owe their first source to these very times when a Genoese merchant would repair to these fairs, proud and boastful of his own freedom, of his vote in the General Council, and of a government which owned no royal master; and all this could be said with a sneer at the people over whom the banner of the lilies held despotic sway.

North of Europe.—Towards the close of the tenth century periodical public markets or fairs were established in the northern portions of Europe, and were used for a purpose altogether new in these higher latitudes, but arising out of the rapine and hostilities peculiar to the period. In several of the North German towns the merchandise brought to them consisted of slaves taken in the wars—many of which were believed to have been fermented for the simple purpose of carrying off captives. Helmold relates that he saw 7,000 Danish slaves at one time exposed for sale in the market at Mecklenberg. The common price of ordinary slaves of either sex was about a mark (or 8 oz.) of silver; but some female slaves for their beauty or qualifications were rated as high as three marks. (*Vide* Thorkelin’s “Essay on the Slave Trade,” pp. 4-9.)

We arrive at the close of the sixteenth century. The city of *Antwerp* had at this period arrived very nearly at the summit of its wealth and glory, which Anderson (“Hist. of Commerce,” ii., p. 25) considers it had acquired by two principal means:—

I. By the grants of free fairs for commerce, made formerly by the sovereigns of the Netherlands—two of which fairs lasted each time six weeks—whither merchants resorted from all parts of Christendom with their merchandise, custom free. *At these fairs vast concerns were managed, not only in merchandise, but in bills of exchange with all parts of Europe.*

II. It had become the entrepot of the commerce between the southern and northern ports of Europe, and especially of the Portuguese merchants. This drew the German and other merchants to settle there; and the merchants of *Bruges* largely removed thither after the Archduke Maximilian had (about 1499) reduced their city. The fairs were aided by, and themselves aided, this development.





ENGLAND

CHAPTER II.

ORIGIN AND LAWS—ENGLAND.

In the preceding survey I have intentionally omitted any mention of *England*. Historians of the ordinary type have thought it beneath their dignity to refer to anything so common-place as fairs. The real mainsprings of our commerce seem in fact very generally to have escaped them. The greatest commercial nation of the world has found no historian willing to record the true causes of its greatness. The intrigues of sovereigns, the machinations of ecclesiastics; the trickeries of statesmen and diplomatists, have alone commanded their attention and absorbed their limited energies. The Statute-book, the one great storehouse of our national history, has escaped their observation. I propose to devote a special chapter to the origin and development of fairs in England.

It has been claimed that the Anglo-Saxons founded alike fairs and markets in England. To Alfred the Great the honour is usually assigned. I have no doubt whatever that the Romans first introduced the practice of holding markets and fairs in England. I find very distinct traces of fairs of Roman origin at *Helston* (Cornwall), at *Barnwell* (by Cambridge), at *Newcastle-upon-Tyne*, and at several places along the line of the Roman wall in Northumberland. But assuming that the institutions of the country were largely recast during the Anglo-Saxon period, we may take note of the supposed re-institution of markets and fairs in the ninth century. The tithings held their sittings in their tithing or free-borough once a week, and many people coming thither to have their matters adjudicated upon, brought also their garden produce, corn, beasts, and *id genus omne*, for sale: because there they could meet one another, and buy and sell as their needs required, hence the commencement of a market weekly. From the Courts just mentioned there lay an appeal, if either plaintiff or defendant were not satisfied, to a County Court, held about Easter and Michaelmas, and over these a bishop and ealderman presided. To this superior Court also came numbers who, at the various intermediate Court-leets were not satisfied. And as large numbers came together, a greater and better opportunity was afforded for selling their wares and goods, corn, beasts, stuffs, linens. “*In*

this we can trace the origin of fairs, which were generally held twice a year, on or about the times mentioned.” This is the dictum of Mr. G. Lambert, F.S.A., in a paper read before the London and Middlesex Archæological Society in 1880, the substance of which is published in the “Antiquary,” ii., pp. 102-3. The fairs here are seen to be purely secular institutions.

It was by the *Normans* that the fairs of England were moulded into the shape with which we are most familiar. The Norman kings placed themselves largely under the influence of the Papal throne; and it was to the Church, or in the interest of the Church, that nearly all fairs were granted after the Norman Conquest in the eleventh century. It was under John, early in the thirteenth century, that the power of the Church became most pronounced in England, and it is during this reign that most of the existing charters of fairs date.

Trying to harmonize these somewhat conflicting views, it may be supposed that some of our fairs at least were established during the Roman occupation. These were probably largely added to during the Anglo-Saxon period. The Normans admittedly encouraged fairs in the interest of the Church. The fairs of the first and second category were mostly fairs established by prescription, the latter were chiefly established by charter. But in the course of centuries the identity of origin becomes lost. Sheppard, in his “Corporations, Fraternities, and Guilds” (published 1659), says: “It is very usual in these Charters to confirm the old markets and fairs, and to grant new markets and Fairs. Or to change the dayes of the old markets or Fairs. And to grant to the Corporation the Py-powder Court and Incidents and profits of the Fair.” (P. 69.)

I am disposed to believe that many of the early fairs associated with religious observances and ceremonies, were in their inception fairs of prescription only: that is to say, fairs which took their origin in passing events, without any special authority, and that upon later occasions charters were obtained. Bailey says that in ancient times amongst Christians, upon any extraordinary solemnity, particularly the anniversary dedication of a church, tradesmen used to bring and sell their wares even in the churchyards, especially upon the festival of the dedication; as at Westminster, on St. Peter’s Day; at London, on St. Bartholomew’s; at Durham, on St. Cuthbert’s Day, &c.; but riots and disturbances often happening, by reason of the numbers assembled together, privileges were

by royal charter granted, for various causes, to particular places, towns, and places of strength, where magistrates presided, to keep the people in order. ("Pop. Antiq.," Brand.)

Blackstone says:—Fairs and markets, with the tolls belonging to them, can only be set up by virtue of the royal grant, or by long and immemorial usage and prescription, which presupposes such a grant. The limitation of these public resorts to such time and such place as may be most convenient for the neighbourhood forms a part of economics, or domestic polity, which, considering the kingdom as a large family, and the sovereign as the master of it, he clearly has a right to dispose and order as he pleases.

Again, a man may have a right to hold a fair or market, or to keep a boat for the ferrying of passengers; and this either by royal grant or by prescription, from which a royal grant may be presumed to have been at some time conferred. But (unless under an Act of Parliament) no other title than these will suffice; for no fair, market, or ferry can be lawfully set up without license from the Crown. On the other hand, a man may, under such titles, lawfully claim to be lord of a fair or market, though he be not the owner of the soil on which it is held.

The right to take toll is usually (though not necessarily) a part of the privilege; and the tolls of a fair or market are due either in respect of goods sold there (that is, from the seller, not the buyer), or for stallage or pikeage, or the like, in respect of stalls or polls fixed in the soil.

I have seen it stated that before the granting of a fair it was customary to issue a writ of *ad quod damnum*, to inquire whether the grant would be prejudicial to any; but I doubt if the practice was at all general.

If I am entitled to hold a fair or market, and another person sets up a fair or market so near mine that he does me a prejudice, it is a nuisance to the freehold which I have in my market or fair. But in order to make this out to be a nuisance it is necessary (1) That my market or fair be the elder, otherwise the nuisance lies at my own door. (2) That the market be erected within the third part of twenty miles from mine. Sir M. Hale construes the *dieta* or reasonable day's journey mentioned by Bracton, to be twenty miles; as, indeed, it is usually understood, not only in our own law, but also in the civil law, from which we probably borrowed it. So that if the new fair or market be not within seven miles of the old one, it is no nuisance; for it is

held reasonable that every man should have a market within one-third of a day's journey from his own home; that the day being divided into three parts, he may spend one part in going, another in returning, and the third in transacting his necessary business there. If such market or fair be on the same day with mine, it is *primâ facie* a nuisance to mine, and there needs no proof of it, but the law will intend it to be so; but if any other day it *may* be a nuisance; but of this there must be proof.

The statute of Gloucester (1278) conferred the right of inquiring into the title of all who claimed rights usually exercised by the Crown. Where such rights were questioned, the judicial process of *quo warranto* was set in motion. One of the principal matters about which inquisition was frequently made under this statute was the right of holding markets and fairs. This right could (as we have seen) only be conferred by royal grant, where prescription could not be pleaded. In many cases it had been assumed by those who had bought land on which fairs had usually been held, and who were then taking tolls from merchants which should in justice have gone to the King. Much curious information was obtained by means of the inquisitions conducted under this Act. This was originally recorded in the *Hundred Rolls*, and it is made free use of in this work.

It has been asserted that it is not in the King's power to resume a franchise that has been once granted: so that a fair once authorized by royal grant, is, by the common law of England, good against the King. I have found no case wherein this principle is declared; but there is an instance which points in a contrary direction: for in 1446-7 (25 Hen. VI.) it was enacted "that all grants of franchises, markets, fairs, and other liberties to buy or to sell within the towns of North Wales made to any Welshman before this time, shall be void and of no effect." Here it was parliament, not the King, revoking the grants. For further legislation regarding Welsh Fairs, see Chapter V., anno 1534.

Brady (in his famous work on "Boroughs") seemed to be of opinion that every free borough had the privilege of a market and fair, with free right to come and go thereto and therefrom, as of course (p. 33, ed. 1777). But I discover no such inherent right, and where this privilege is sustained it has usually been included in one of its early charters. Certainly the converse is not the case: that is to say, it was in no way customary that fairs should be limited to boroughs free or otherwise. Many were, indeed, granted to small

towns, frequently to lords of manors, and commonly to religious houses; and in various cases to individuals.

In the next chapter I shall examine more in detail the regulations upon our statute rolls regarding fairs.



CHAPTER III.

EARLY REGULATIONS AFFECTING FAIRS—ENGLAND.

It has been attributed to Alfred the Great that amongst the many wise and beneficial measures he took for the advancement of this kingdom, was the establishment of fairs and markets. I have already shown that this is not quite so; but certain it is that the first general measures for the regulation of commerce in England, are dated back to his reign. Hence it was then provided that alien merchants should come only to the “four fairs,” and should not remain in England more than forty days. This was in the latter half of the ninth century. But I have already shown that fairs were held in other parts of Europe, and in Asia, centuries earlier than this date. The point of importance in the regulation of Alfred is that foreign merchants were permitted by royal authority to attend these English fairs.

King Ethelred II. (end of tenth and commencement of eleventh centuries) proclaimed that the *ships of merchants, or of enemies from the high seas, coming with goods into any port should be at peace*. The principle here enunciated, of commerce being deemed an act of peace, is believed to be of high antiquity in Great Britain; but whether it originated here is by no means clear, nor is it material to determine. At later periods the practice has not been continuously upheld.

Henry I. granted to the citizens of London (*inter alia*) that they should be free throughout England and the sea ports from *toll*, passage through towns, ports, gates, and bridges; *and lestage, or a toll paid for freedom to sell at Fairs*.

Magna Charta (1215).—The demand of the Barons presented to King John embodied the following: “That merchants shall have safety to go and come, buy and sell, without any evil tolls, but by antient and honest customs.” In the completed *Charter* the actual grant took the following shape:

All merchants shall have safety and security in coming into England and going out of England, and in staying and in travelling through England, as well by land as by water, to buy and sell without any unjust exactions,

according to ancient and right customs, excepting in time of war, and if they be of a country at war against us: and if such are found in our land at the beginning of a war, they shall be apprehended without injury of their bodies and goods until it be known to us, or to our Chief Justiciary, how the merchants of our country are treated who are found in the country at war against us; if ours be in safety there, the others shall be in safety in our land.

The doctrine of international reciprocity is here very clearly stated.

Macpherson (“Annals of Commerce”) is of opinion, after an examination of the trading of the chief commercial ports of Great Britain, that by the middle of the twelfth century (A.D. 1156) “the foreign trade was almost entirely conducted by foreign merchants;” indeed he declared it to be “evidently” so. I expect to be able to show that the great centres of trade at this period were the fairs held in various parts of the kingdom. The case of *Sturbridge Fair* (Cambridge) is a remarkable instance.

1216.—The first Great Charter of Henry III. confirmed the provisions of *Magna Charta* as to merchants, except in the case of those *who had been before publicly prohibited*. The privileges thus accorded to foreign merchants were seven. (1) To come into England (2) To depart thereout (3) To remain (4) To travel by land or water (5) To buy and sell (6) To be free of evil tolls^[3] (7) To enjoy the ancient customs. This last was of material consequence, and implied privileges not common to ordinary persons. The promise of freedom from “evil tolls” hardly less so, as will hereafter appear.

These early privileges accorded to foreign merchants who visited our shores seem so natural to us, in these free-trade times, that we have a difficulty in realizing at the first glance the full measure of their significance. It may aid us in doing so if I review the general regulations regarding foreigners which prevailed (reciprocally) in most of the countries of Europe prior to this period (thirteenth century) and in many cases long thereafter. Every foreigner was answerable to the debts, and even crimes of all other foreigners of his own nationality^[4]—and the question of nationality was very freely interpreted in some such cases. And in the case of the death of a foreign merchant his property in possession was either forfeited to the King or fell a prey to the rapacity of the lord of the soil in whose territory the death occurred.^[5] Further, by an early custom of London, merchants giving reference for strangers, who purchased goods on

the credit of such references, were held liable to pay for the goods so obtained. Thus under the custom of merchants, two persons of the same nationality being found in arrear, the whole debt might be charged to one of them—as the creditor might select!

These restrictions removed, or greatly modified, it is no wonder that fairs greatly increased in numbers and importance.

1235. This same monarch Henry III. gave special permission to the merchants of *Cologne* to attend fairs in all parts of England. This was probably in consequence of some claim from the branch of the Hanseatic League established in London, to trade in its corporate capacity exclusively for the cities which belonged to the confederacy. There was another association of German merchants settled in London at this date.

1275. The First statute of Westminster (c. 23) was intended to remedy the state of primitive justice already spoken of, and which to a large degree arose out of local jurisdictions. Under it no foreign person—that is to say, one who was not free of the town he visited—which is of this realm (*i.e.* of England) was to be distrained for any debts but his own in any city, burgh, town, market or fair.

1283. The statute *de Mercatoribus* (11 Edw. I.) was intended to assist merchants in the recovery of their debts, and thus to encourage them to trade in England. When they supplied goods and the debt was acknowledged before royal officers in specified towns, they could be empowered under the King's seal to distrain for debt in default of payment. At Acton Burnel this new scheme was determined on, for trial in London, York, and Bristol; and after two years it was decreed (*Statutum Mercatorum*, 1285, 13 Edw. I.) that it should be brought into much more extensive operation by giving similar facilities in many other places, especially in *fairs*, and a much greater number of royal officers were empowered to act in the matter. These privileges were not limited to men from particular towns or countries: all foreign merchants could avail themselves thereof, except when this kingdom was at war with their native land. The clause relating to the “Seal of the Fair” was as follows:—

“And a Seal shall be provided that shall serve for Fairs, and the same shall be sent unto every Fair under the King's Seal, by a Clerk sworn, or by the Keeper of the Fair, and the Seal shall be opened before them, and the

one piece shall be delivered unto the aforesaid merchants, and the other shall remain with the Clerk; and before them, or one of the merchants, if both cannot attend, the Recognizances shall be taken as before is said.”

In the case of London two merchants of the Commonalty should be chosen that should swear compliance with this law.

And by a charter of the following year granted to foreign merchants then resident in England, it was ordained, “that one weight shall be kept in every fair and town; that the weigher shall show the buyer and seller that the beam and scales are fair, and that there shall be *only one weight and measure* in our dominions, and that they be stamped with our standard mark.” All students of history, know how well this ordinance has been observed!

By the Statute of Wynton [Winchester] attributed to the reign of Edw. I., but probably of earlier date it is enacted (c. 6) “And the King commandeth and forbiddeth that from henceforth neither Fairs nor markets be kept in the *Church-yards* for the Honour of the Church.”^[6]

1321. About this date—reign of Edw. II.—there is supposed to have been enacted “Articles of the Office of Escheatry.” Amongst the duties of this officer of the crown, he was to hold inquest (*inter alia*) of markets, fairs, tolls, passage-mones, and customs, unjustly levied without license of the King; also where, when, and from what time, and how much they are worth by the year. Under the power so granted various inquisitions regarding fairs, and the tolls charged, and the privileges asserted, were conducted.



CHAPTER IV.

COURTS OF PIEPOWDER.

These have been already referred to, and will arise in various other parts of this work, as being closely associated with fairs.

These Courts, designated in the Latin tongue *curia pedis pulverizati*, in the Old French *pied puldreaux*, alike in each case, it is supposed, in reference to, or as typical of the dusty feet of the suitors. Some indeed say because “justice is there done as speedily as dust can fall from the feet.” But without reference to such fanciful derivations they may be spoken of as a rough-and-ready mode of administering justice at fairs, markets, &c. There is no record or ordinance by which any such Court was called into existence in this country. They came to us with fairs; they passed away with the decay of the commercial usages of fairs.

Those curious in matters of archæology may consult a paper hereon by Dr. Pettingall, which appears in “Archæologia,” i. pp. 190-203.

Barrington, in his “Observations on the Statutes,” observes that “In the Burrow Laws of Scotland, an alien merchant is called Piedpuldreaux, and likewise ane Farand-man, or a man who frequents fairs. The Court of Piepowder is, therefore, to determine disputes between those who resort to fairs and these kind of Pedlars who generally attend them. *Pied puldreaux* in Old French signifies a Pedlar, who gets his livelihood by vending his goods where he can, without any certain or fixed residence.”

In the “Regiam Majestatem,” 1609, there is the following: “Gif ane stranger merchand travelland throw the Realme, havand na land, nor residence, nor dwelling within the schirefdome, bot vaigand fra ane place to ane other, quha therefore is called Pied Puldreaux, or dustifute.”

Hence then the Court of Pie Powder signifies in simple language a *Court of Pedlars*.

Such Courts were held in the markets of the Romans, as they were in the markets of the Normans, and probably all through the old Roman Europe. But they had yet an earlier origin. Demosthenes makes it plain that all

causes relating to the festival of Bacchus were heard on the spot. Fairs were associated with the Olympic games; and it seems clear descended from the festivities of the Greek Church.

The necessity in all fairs of a tribunal which could promptly deal with the differences arising amongst a fleeting population were the same, quite irrespective of where the fair might chance to be held. Again the merchants attending the principal fairs of different countries were in a large degree the same. They travelled from country to country. What they found beneficial in one part of the globe was equally so in another, and hence became adopted as of course. The tribunals of commerce which once existed in England, and which still exist in various parts of Continental Europe, are analagous to the Courts of Piepowder held at fairs.

In an account of a fair held in the northern region of Lapland as far back as two centuries ago (1681), a Court of Piepowder is recorded as one of its features.

The peculiar constitution of the Court has to be kept firmly in view. It had jurisdiction only in commercial questions. It tried them before a jury of traders formed on the spot. It could entertain a case of slander, if of merchandise or wares exhibited, but not of the merchant or trader who vended the same. It could sit only during fair time; could take cognizance only of things happening during fair time, and within the fair. It could try a thief who had committed robbery in the fair only when he had been captured within its bounds. It might hold pleas for amounts, in later times, above forty shillings; and its judgments could be deferred and enforced at the next fair. So firmly indeed had custom defined the powers of these Courts, that it has been well said, even the King himself if he were sitting as judge in such a Court, could not extend them.

Specific Legislation.—1478. There having been many abuses committed in the Courts *Piepowder* held at the fairs in England, chiefly by the avarice and injustice of their stewards, bailiffs, and others, whose province it was to hold the courts and administer impartial justice in all cases arising during the continuance, and within the jurisdiction, of the fairs: but who took cognizance of contracts and trespasses unconnected with the fairs, and frequently having no foundation in truth. These abuses began to have the effect of preventing merchants from attending the fairs: whereby the people

of the country were deprived of the convenience of purchasing goods; and the lords of the fairs lost their customary profits. The entire subject came before parliament, and a measure intended for relief resulted, which I shall now review in detail:

17 Edw. IV. c. 2.—*Item*, Whereas divers Fairs be holden & kept in this Realm, some by Prescription allowed before Justices in Eyre, & some by grant of our Lord the King that now is, & some by the grant of his noble Progenitors & Predecessors, & to every of the same Fairs is of right pertaining a Court of Pypowders, to minister in the same due Justice in this behalf; in w^h Court it hath been all times accustomed, that every person coming to the s^d Fairs sh^d have lawful remedy of all manner of Contracts, Trespasses, Covenants, Debts, & other Deeds under or done within any of the same Fairs, during the time of the same Fairs, & within the jurisdiction of the same, & to be tried by merchants being of the same Fair; w^h Courts at this day be misused by Stewards....

And sometimes, by the device of evil disposed people several suits be feigned to trouble them to whom they bear evil will, to the intent that they for Lucre may have favorable Inquests of those that come to the s^d Fairs, where they take their actions ... whereby the Lords of the same Fairs do lose great profit by the not coming of divers merchants to the fairs ... & also the Commons be unserved of such stuff & merchandise as w^d otherwise come to the said Fairs.

For remedy whereof it was Ordained & Established that from the first day of May then next ensuing no Steward, Under-steward, Bailiff, Commissary, nor other minister of any such Courts of Pypowders should hold plea upon any action at the Suit of any person or persons, unless the Plaintiff or plaintiffs, or his or their attorney, in the presence of the defendant or defendants do swear upon the holy Evangelists, upon the Declaration, that the Contract or other Deed contained in the s^d Declaration was made or committed within the Fair & within the Time of the s^d Fair where he taketh his action, & within the bounds & jurisdiction of the same Fair. The Defendant might plead that the cause did not arise out of the Fair. If the plaintiff refused to swear the defendant sh^d be quit. The penalty on a Steward for holding a Court contrary to this act 100½ shillings. This act to be Proclaimed, & was to continue until the first day of the next Parliament “Provided always, That this act nor anything comprised in the same act be

hurtful & prejudicial to William now Bishop of Durham, nor to his successors within the Liberty & Franchise of the Bishoprick of Durham.” This act was amended in slight details by 1 Rich. III. c. 6 (1483). See Chap. V.

Appeal.—1779. By the 19 George III. c. 70 right of appeal was given against the judgments of any of the inferior courts—and hence against those of the Courts of Piepowder—by means of a writ of error to the superior courts at Westminster; and such courts were to have the right of issuing writs of execution in aid of their processes after judgment not appealed against. This largely extended the efficacy of this particular court, as goods of the defendant—not in the fair, and therefore beyond the ancient jurisdiction of this court—could now be levied upon.





CHAPTER V.

LEGISLATION FOR FAIRS IN ENGLAND.

Duration of Fairs.

1328.

There was enacted 2 Edw^d. III. c. 15. “No person shall keep a Fair longer than he ought to do,” which was as follows:

Item, it is established That it shall be commanded to all the sheriffs of England & elsewhere, where need shall require to cry and publish within Liberties & without, that all the Lords [of the soil] w^h have Fairs, be it for yielding certain Ferm [Rent?] for the same to the King or otherwise, shall hold the same for the time that they ought to hold it, & no longer; that is to say, (1) such as have them by the King’s Charter granted them, for the time limited by the s^d Charters (2) and also they that have them without Charter, for the time that they ought to hold them of Right. (3) And that every Lord at the beginning of his Fair shall there do cry & publish how long the fair shall endure, to the intent that merchants shall not be at the same Fairs over the time so published, upon pain to be grievously punished towards the King (4) Nor the s^d Lords shall not hold them over the due Time upon pain to seize the Fairs into the King’s hands, there to remain till they have made a fine to the King for the offence, after it be duly found, that the Lords held the same Fairs longer than they ought, or that the merchants have sitten above the time so cried & published. See 1331.

1331. The 5 Edw. III. c. 5—“The Penalty if any do sell Ware at a Fair after it is ended” was as follows:

Item, Where it is contained in the statute made at Northampton [1328] ... that the Lords w^h have Fairs by Charters or otherwise, shall hold them during the Time that they ought to do, & no longer upon Pain to seize such Fairs into the King’s hands (2) & that every Lord at the Beginning of his Fair *shall proclaim how long the fair shall endure*; (3) and in the same Statute is no certain punishment ordained against the merchants if they sell

after the time, (4) it is accorded, That the s^d merchants after the s^d time shall close their Booths & Stalls without putting any manner of Ware or Merchandise to sell there. (5) And if it be found, that any merchant from henceforth sell any Ware or merchandise at the s^d Fairs after the s^d Time, such Merchant shall forfeit to me Lord the King the double value of that w^h is sold (6) and every Man that will sue for our Lord the King, shall be received, & shall have the fourth part of that w^h shall be lost at his suit.

Macpherson [“Hist. of Commerce”] commenting upon this act says *Fairs were “the seats of most of the inland trade of the kingdom.”*

1448. The 27 Henry VI. c. 5 was directed against “the scandal of holding Fairs & markets on Sundays & upon High Feast Days.” This practice had in earlier times been very general.

Attempted Limitation of the Commerce of Fairs.—1487. The Common Council of London, in order to oblige the people to resort to the City for their purchases, had made an ordinance that no citizen should carry goods for sale to any fair or market out of the city. The assortment of goods in London (says Macpherson) appears to have been so commanding that those interested in fairs of Salisbury, Bristol, Oxford, Cambridge, Nottingham, Ely, Coventry, and other places, and also the people of the country in general, were alarmed, and represented to Parliament the destruction of the fairs, and the great hardship of being obliged to travel to London to procure chalices, books, vestments, and other church ornaments, and also victuals for the time of Lent, linen cloth, woollen cloth, brass, pewter, bedding, osmond, iron, flax, wax, and other necessities. The London ordinance was thereupon annulled by Parliament; and the citizens were permitted to go with their goods to the fairs and markets in every part of England. (“Hist. of Com.” i. p. 708.)

The act by which this was effected is 3 Hen. VII. c. 9—*Freemen of London may carry their wares to any Fairs or Markets*—which recites as follows:

“Humbly shoven and prayen unto your Highness, your true & faithful Commons of this your Realm of *England*, That where the Citizens & Freemen of the City of London have used out of time & mind to go, carry & lede their merchandise & ware unto all Fairs & markets at their Liberty of the s^d City; now of late time the Mayor, Aldermen, & Citizens of the City of

London have made & enacted an Ordinance within the same City, upon a great Pain, that no man that is a freeman or a Citizen of the s^d City shall go or come to any Fair or Market out of the same City of London, with any manner of ware or merchandise to sell or to barter, to this Intent, that all Buyers & merchants should resort to the s^d City to buy their ware & merchandises of the s^d Citizens & Freemen of London aforesaid, because of their singular Lucre & Avail; w^h Ordinance, if it should hold as is before expressed, *shall be to the utter destruction of all other Fairs & markets within this your Realm*, w^h God defend: for there be many fairs for the common weal of your said liege People, as at *Salisbury, Bristol, Oxenforth, Cambrigge, Netynggham, Ely, Coventre*, & at many other places *where Lords Spiritual, & Temporal, Abbots, Priors, Knights, Esquires, Gentlemen, & your said Commons of Every Country hath their common resort, to buy & purvey many things that be good & profitable*, as Ornaments of Holy Church, Chalice, Books, Vestments, & other ornaments of Holy Church afores^d, & also for Household, as victual for the time of Lent, & other stuff, as Linnen Cloth, Woollen Cloth, Brass, Pewter, Bedding, Osmonde, Iron, Flax, & Wax, & many other necessary Things, the w^h might not be forborn amongst your said liege People; but, by the s^d Ordinance every man willing to buy any of the premisses, shall be courted to come to the s^d City of London, to their importable Costs & Charges, w^h if the s^d act should endure, shall grow great hurt & prejudice to the common weal of this your Realm, & shall cause many pernicious strifes & debates between your said liege people, & the said Mayor, Aldermen & Citizens in time to come, by the making the s^d Ordinance, the w^h is thought may not continue & stand with good charity, the premisses considered, wherefore it may please your said Highness most noble & abundant Grace, in consideration of the Hurt likely to grow of & by the premises, that it may be enacted:

The King Lords and Commons therefore enacted that every freeman and citizen of London then or thereafter, might go with his victual ware or merchandise, at his or their liberty to any fair or market that should please him within the realm of England, any act, statute or ordinance to the contrary notwithstanding. Any disregard of the statute to incur a penalty of £10 to the king.

1496. The Company of Merchant-Adventurers of England which was said to have been in existence for nearly two centuries—although not

actually chartered until 1505—took steps about this period calculated to interfere with the freedom of British merchants to attend fairs and marts in foreign countries.

The merchants who traded on their own individual account residing in various parts of England and of the City of London, sent up a petition to the House of Commons, (as against the claims of the said Company of Merchant-Adventurers) wherein it was set forth that they traded beyond the sea with their goods and merchandise, as well into Spain, Portugal, Bretagne, Ireland, Normandy, France, Seville, Venice, Dantzic, Eastland, Friseland and many other parts—the geography is often a little hazy in these early documents—there to buy and sell and make their exchanges, according to the laws and customs of those parts: every one trading as seemed most to his advantage, without sanction, fine, imposition or contribution, to be had or taken of them, or any of them, to for, or by, any English person or persons. And in like sort they, before this time had used, and of right ought to have and use the like commerce into the coasts of *Flanders, Zealand, Holland, Brabant*, and other adjacent parts, under the obedience of the Archduke of Burgundy; in which places are usually kept the universal marts or fairs, four times in the year; to which marts all Englishmen, and divers other nations in times past, have used to resort, there to sell their own commodities, and freely to buy such merchandise as they had occasion for: till now of late, the Fellowship of Mercers, and other merchants and adventurers, dwelling and being free within the City of London by confederacy amongst themselves, for their own singular profit, contrary to every Englishman's liberty, to the liberty of the said mart there, and contrary to all law, reason, charity, right and conscience have made an ordinance among themselves to the prejudice of all other Englishmen, that no Englishman resorting to the said mart, shall either buy or sell any merchandise there, unless he shall first have compounded and made fine with the said Fellowship of Merchants of London, at their pleasure; upon pain of forfeiture to the said Fellowship of such their said merchandise. Which fine, imposition, and exaction, at the beginning, when first taken, was demanded by colour of the *Fraternity of St. Thomas Becket*; at which time it was only an old noble sterling. And so by colour of such feigned holiness, it hath been suffered to be taken of a few years past: it was afterwards increased to 100 shillings, Flemish; but now the said Fellowship of London take of every Englishman or young merchant, being there, at his

first coming £40 sterling for a fine, to suffer him to buy, and sell his own goods. By reason whereof, all merchants not of the said Fellowship, do withdraw themselves from the said marts: whereby the woollen cloth of this realm, which is one of the greatest commodities of the same, as well as sundry other English commodities of the same, as well as sundry other English commodities, are not sold and got off as in times past, but are for want of sale thereof, in divers parts, where such clothes are made, conveyed to London, and there sold at an undervalued price, even below what they cost the makers. Moreover the merchandise of those foreign parts, imported by the said Fellowship, is sold to your complainants and other subjects at so high a price that the buyers cannot live thereupon; by reason whereof all the cities and towns of the realm are falling into great poverty, ruin and decay: and the King's customs and subsidies, and the navy of the land greatly decreased.

It was therefore enacted (12 Hen. VII. c. 6) that all Englishmen from henceforth should and might freely resort to the Coasts of *Flanders, Holland, Zealand, Brabant*, and other parts adjoining, under the obedience of the Archduke; and at their marts or fairs there, sell their merchandise freely, without exaction, fine, imposition, or contribution taken or received of any of them by the said Fraternity or Fellowship, excepting only the sum of ten marks [£6 13s. 4d.] sterling, on pain of forfeiting £20 for every time they take more; and shall also forfeit to the person so imposed on ten times so much as contrary to this act was taken of him. See 1554.

Welsh Fairs.—1534. There was enacted 26 Hen. VIII. c. 6—*The Bill concerning Councils in Wales*—which recited: “Forasmuch as the people of *Wales*, & the marches of the same, not dreading the good & wholesome Laws & Statutes of this Realm, have of long time continued & persevered in Perpetration & Commission of divers & manifold Thefts, Murthers, Rebellions, wilful Burning of Houses & other scelerous Deeds & abominable malefacts, to the high displeasure of God, Inquietation of the Kings well-disposed subjects, & Disturbance of the Public Weal, w^h malefacts & scelerous Deeds be so rooted & fixed in the same People, that they be not like to cease unless some sharp correction & Punishment for Redress & Amputation of the Premises be provided, according to the Demerits of the offenders.” Whereupon it was enacted (*inter alia*):

That no person or persons dwelling or resident within *Wales* or the Lordships marches of the same, of what Estate, Degree, or Condition soever he or they be of, coming, resorting, or repairing unto any Sessions or Court to be holden within *Wales* or any Lordships, marches, of the same shall bring or bear, or cause to be brought or born to the same Sessions or Court or to any place within the distance of two miles from the same Sessions or Court, nor to any Town, Church, *Fair*, Market or other congregation, except it be upon a Hute or Outcry made of any Felony or Robbery done or perpetrated, nor in the Highways in affray of the King's Peace, or the Kings liege People, any Bill, Long-bow, Cross-bow, Hand-gun, Sword, Staff, Dagger, Halbert, More-spike, Spear, or any other manner of weapon, Proof-coat or Armour defensive, upon pain of forfeiture of the same and of imprisonment and fine, except permission by given by the proper authorities authorised thereto.

Robberies in Fairs.—1552. The 5 and 6 Edw. VI. c. 9—*An Act for the taking away of the Benefit of Clergy* for certain offenders recites: (3) “And where also it hath been in question & doubted, that if such Robberies & Felonies happen to be committed & done in any Booth or Booths, Tent or Tents in any Fair or market, the Owner of the same, his wife, Children or Servants happening to be within the same at the time of the committing of such Felonies, & put in fear & dread, the offenders therein being found guilty after the Laws of this Realm, should not lose the Benefit of Clergy.”

Whereupon it was enacted that persons so offending should not be entitled to benefit of Clergy, but should suffer death in such manner and form as was mentioned in the act 23 Hen. VIII. c. 1, for Robberies and Felonies committed and done in Dwelling houses and Dwelling places, the Owner and Dweller in the same, his wife children or servants being within the same, and put in fear and dread, without having any respect or consideration whether the owner or dweller in such booths and tents his wife, children or servants being in the same Booths or Tents at the time of such Robberies and Felonies committed, shall be sleeping or waking.

Restricting the dealing in Fairs.—1554. By the 1st and 2nd Philip and Mary, c. 7—*An Act for that Persons dwelling in the Country shall not sell divers Wares in Cities or Towns Corporate by retail*—it is recited: Where before this time the ancient Cities, Boroughs, Towns Corporate and market Towns (within this Realm of *England*) have been very populous, and

chiefly inhabited with merchants, Artificers, and Handicraftsmen, during which time the Children in those Cities were civilly brought up and instructed, and also the said cities &c. kept in good order and obedience, and the inhabitants of the same well set on work and kept from idleness. (2) By reason whereof, the said Cities &c. did then prosper in riches and great wealth, and were as then not only able to serve and furnish the King and Queens majesties, and their noble progenitors, Kings of this Realm, as well with great numbers of good able persons and well furnished, meet for the wars, as also then charged, and yet chargeable with great fee-farms, *Quindismes*, Taxes, and divers other payments to the King and Queen's Majesties, which at this present they be not able to pay and bear, but to their utter Undoing, being few in number to pay and bear the same; but also the same Cities &c. are likely to come very shortly to utter destruction, ruin and decay; (3) by reason whereof the occupiers, Linendrapers, woollen-drapers, Haberdashers and Grocers dwelling in the Counties out of the said Cities &c. do not only occupy the art and mystery of the said Sciences in the places where they dwell and inhabit, but also come into the said Cities &c. and there sell their wares, and take away the Relief of the inhabitants of the said Cities &c. to the great decay and utter undoing of the inhabitants of the same, if speedy reformation therein be not had in time convenient. (4) For remedy whereof and for the better amendment of the said Cities &c. to the end that the same Cities &c. may be better able to pay the said Fee-farms, and also to bear the other ordinary charges within the same Cities &c. and to furnish the King and Queen's majesties with numbers of able persons, like as they have heretofore done in times past, in times of War.

It was enacted, That any person or persons which do now inhabit and dwell, or hereafter shall inhabit and dwell in the Country anywhere, or County within this Realm of *England*, out of any of the said Cities, Boroughs, Towns Corporate or Market Towns, from and after the Feast of *St. Michael* the archangel next coming, *shall not sell or cause to be sold by retail*, any woollen cloth, Linen Cloth, Haberdashery wares, Grocery wares, Mercery wares, at or within any of the said Cities &c., or within the Suburbs or Liberties of the said Cities, &c., within the said Realm of *England* (*except it be in open Fairs*) upon pain of forfeiting 6s. 8d. and the whole Wares so sold, proffered and offered to be sold contrary to the form and intent of this act as above is said. But all such persons might sell their products wholesale; and persons dwelling in the Country, but afterwards

becoming free of any City &c. would be thus placed outside the operation of this act. And persons might sell by retail all manner of Cloth, Linen or Woollen of our making anywhere notwithstanding this act. “Provided always that this act or anything therein contained shall not be prejudicial or hurtful to the Liberties and Privileges of the Universities of *Cambridge* and *Oxford*, or either of them.”

Horse Fairs.—1555. The 2 and 3 Philip and Mary, c. 7 related to the facilities for dealing in stolen horses, which it was attempted to check by having duly appointed fairs for such dealings. This Act gave rise to the holding of “Horse Fairs” separately from other fairs. The Act 31 of Elizabeth c. 12 (1589) required a record to be kept of all horses sold at fairs.

Plague.—1625. The importance rightly attached from a sanitary point of view to the gathering of large multitudes together at fairs is manifested in a very ample degree in a Royal Proclamation issued by Charles I. from his Palace at Woodstock on the 4th August:

The Kings most excellent majesty, out of his Princely and Christian care of his loving subjects, that no good means of Providence may be neglected to stay the further spreading of the great infection of the Plague, doth find it necessary to prevent all occasions of public concourse of his people for the present, till it shall please Almighty God of His goodness, to cease the violence of the Contagion which is very dispersed into many parts of the Kingdom already; *And therefore remembering that there are at hand two Fairs of special note and unto which there is usually extraordinary resort out of all parts of the Kingdom*, the one kept in Smithfield, near the City of London, called Bartholomew Fair, and the other near Cambridge called Stourbridge Fair, *the holding whereof at the usual times would in all likelihood be the occasion of further danger and infection in other parts of the land*, which yet in Gods mercy stand clear and free, hath, with the advice of his Majesty’s Privy Council, thought good, by this open declaration of his pleasure and necessary commandment, not only to admonish and require all his loving subjects to forbear to resort for this time to either of the said two fairs, or *to any other fairs within 50 miles of the said City of London*, but also to enjoin the Lords of the said Fairs, and others interested in them, or any of them, that they all forbear to hold the said Fairs, or anything appertaining so them, at all times accustomed or at any time, till by God’s goodness and mercy the infection of the Plague shall

cease, or be so much diminished, that his majesty shall give order for holding them; upon pain of such punishment as, for a contempt so much concerning the universal safety of his people, they shall be adjudged to deserve, which they must expect to be inflicted with all severity: His Majesty desire being so intente for preventing the general Infection threatened, as he is resolved to spare no man that shall be the cause of dispersing the same. And to that purpose doth hereby further charge and enjoin, under like penalty, all citizens and inhabitants of the said City of London, *that none of them shall repair to any fair held within any part of his kingdom*, until it shall please God to cease the infection now reigning amongst them: His Majesty's intention being, and so hereby declaring himself, that no Lord of any Fairs, or others interested in the profits thereof, shall by this necessary and temporary restraint, receive any prejudice in the right of his or their Fairs, or liberties thereunto belonging, anything before mentioned notwithstanding.

Earlier proclamations and orders had prevented the holding or had curtailed the period of St. Bartholomew fairs on several occasions viz. 1348, 1593, and 1603; and other fairs had likewise been stayed or postponed. These will be noticed in dealing with such fairs specifically.

1630. The Plague was prevailing in Cambridge, and a Royal Proclamation was issued, dated Aug. 1, prohibiting the holding of the "three great Fairs of special note, unto which there is an extraordinary resort from all parts of the Kingdom" viz. those of Bartholomew, Sturbridge, and Southwark.

Coinage.—1662. The preceding year was that of the Restoration, and it was by Proclamation ordered that the coinage of the Commonwealth should be no longer current than the last day of November. The "Kingdom's Intelligencer" for Aug. 22-25 this year contained the following: "Whitehall Aug. 23. There hath been a discovery of divers persons who have coined both gold and silver, and of other persons who have vended the same in great quantities &c. intending to utter the same to Clothiers and at Fairs; which is published to an end that honest persons may not be deceived by receiving such monies."

Sale of Printed Matter, &c.—1698. In the 9 and 10 William III. c. 27—*An Act for Licensing Hawkers and Pedlars &c.* section 9 is as follows:

Provided always.... That this Act or anything contained shall not Extend to Prohibit any persons from selling of any Acts of Parliament, Forms of Prayer, Proclamations, Gazettes, licensed Almanacks or other Printed Papers, licensed by authority, or any Fish, Fruits or Victuals; nor to hinder any person or persons, who are the real workers or makers of any Goods or Wares within the Kingdom of *England*, Dominion of *Wales*, and Town of *Berwick upon Tweed*, or his her or their Children, Apprentices, Agents or Servants, to such real Workers and makers of such Goods or Wares only, from carrying abroad, exposing to Sale, or selling any of the said Goods and Wares of his, her, or their, own making in any Public Mart, Fairs, Markets, or Elsewhere; nor any Tinkers, Coopers, Glaziers, Plummers, Harness-menders, or other persons actually trading in mending kettles, Tubs, Household Goods or Harness whatsoever, from going about and carrying with them proper materials for mending the same.

And by Section 12 it is further enacted: That nothing herein contained shall extend or be construed to extend to hinder any person or persons from Selling or exposing to sale any sorts of Goods or Merchandises, in any public mart, Market, or Fair within the Kingdom of *England*, Dominion of *Wales* and Town of *Berwick upon Tweed*, but that such person or persons may do therein as they lawfully might have done before the making of this act; anything herein contained to the contrary notwithstanding.

Altering the Calendar.—1751. Under 24 Geo. II. c. 23—*An Act for Regulating the Commencement of the Year; and for correcting the Calendar now in use*, it was provided Section 4 (*inter alia*) that the terms for holding and keeping of all markets, fairs and marts, “whether for the sale of Goods or Cattle, or for the hiring of Servants, or for any other purpose, w^h are either fixed to certain nominal days of the month, or depending upon the beginning, or any certain day of any month, & all Courts incident & belonging to, or usually holden or kept with any such Fairs or Marts, should be holden & kept upon or according to the same natural days upon or according to w^h the same sh^d have been so kept or holden in case this act had not been made.”

This act was amended by 25 Geo. II. c. 30, which enacted that all such events as before enumerated were to take place “according to the new Calendar.”





CHAPTER VI.

MODERN LEGISLATION.

1839-1874.

In the 2nd and 3rd Vict. c. 47—*An Act for the Further Improving the Police in and near the Metropolis*—it is provided that Inquiries may be made regarding Fairs within the Metropolitan Police District, alike as to the authority to hold such Fair, and also as to the time during which it may be holden. If the authority for holding the Fair be doubtful the owner or occupier of the ground may be summoned to show his right and title to hold such Fair: and if the Fair be declared unlawful, then Booths &c. may be removed. But the owner or occupier by entering into recognizances, may reserve the question of the right or title to hold such Fair, to be tried in the Court of Queen's Bench—see 1868.

1843. The 6 and 7 Vict. c. 68—*An Act for Regulating Theatres*—recites “Whereas it is expedient that the Laws now in force for regulating Theatres and Theatrical Performances be repealed, and other Provisions be enacted in their stead.” And section 23 is as follows: And be it enacted that in this act the word “Stage-play” shall be taken to include every Tragedy, Comedy, Farce, Opera, Burletta, Interlude, Melodrama, Pantomime, or other entertainment of the stage, or any part thereof: Provided always, that nothing herein contained shall be construed to apply to any Theatrical Representation in any Booth or Show which by the Justices of the Peace, or other Persons having authority in that behalf, shall be allowed in any lawful Fair, Feast, or customary meeting of the like kind. This act was only to extend to Great Britain.

1844. The 7 and 8 Vict. c. 24—*An Act for Abolishing the Offences of Forestalling, Regrating, and Engrossing, and for repealing certain statutes passed in Restraint of Trade*—enacts (section 4) “That nothing in this act shall be construed to apply to the offence of knowingly and fraudulently spreading or conspiring to spread any false rumour, with intent to enhance or decry the Price of any goods or merchandise, or to the offence of preventing or endeavouring to prevent by Force or threats any goods, wares,

or merchandise being brought to any Fair or Market, but that every such offence shall be inquired of, tried, and punished as if this act had not been made.”

1847. There was enacted 10 and 11 Vict. c. 14—*An Act for consolidating in One Act certain Provisions usually contained in Acts for Constructing or Regulating Markets and Fairs*—which however was only to extend to such markets or fairs as should be authorised by any Act of Parliament hereafter to be passed, which should declare this Act to be incorporated therewith; and then all clauses of this Act, except so far as they might be varied or excepted from such Act were to apply. The details of this measure will fall to be reviewed more in detail under MARKETS.

1868. There was enacted 31 and 32 Vict. c. 51—*An Act to amend the Laws relating to Fairs in England and Wales*—under which “in case it should appear to the Secretary of State for the Home Department, upon representation duly made to him by the magistrates of any Petty Sessional District, within which any Fair is held, or by the owner of any Fair in England and Wales, that it would be for the convenience and advantage of the Public that any such Fair shall be held in each year on some day or days other than those on which such Fair is used to be held, it shall be lawful for the Secretary of State for the Home Department to order that such Fair shall be held on such other day or days as he shall think fit.” Provided notice of such representation be duly advertised, and also notice of order as therein provided. (See 1873.)

An act of the same session (c. 12) gave powers to facilitate the alteration of days upon which and of places at which fairs might be held in *Ireland*. It was upon the same lines as the preceding.

Another measure of the same session (c. 106)—*An Act for the Prevention of the holding of unlawful Fairs within the Limits of the Metropolitan Police District*—provides that where any Fair is holden or notice given of any Fair proposed to be holden on any ground within the Metropolitan Police District, other than that on which a Fair has been holden during each of the seven years immediately preceding, it should be competent for the Commissioner of Police to cause inquiry to be made as to right and title to hold such Fair, after the manner provided by the act of 1839. This is designated “The Metropolitan Fairs Act 1868.”

1871. There was enacted 34 Vict. c. 12—*An Act to further Amend the Law relating to Fairs in England and Wales*—which recites: “Whereas certain of the Fairs held in England & Wales are unnecessary, are the cause of grievous immorality, and are very injurious to the inhabitants of the Towns in which such Fairs are held, and it is therefore expedient to make provision to facilitate the abolition of such Fairs.” It is then provided that the Secretary of State may on representation of magistrates with consent of owner, order fairs to be abolished. The machinery being the same as under the Act of 1839 applying to the Metropolitan Police District. This Act is known as “The Fairs Act, 1871.”

1872. The Local Government Board (Ireland) Act 1872 gave (35 and 36 Vict. c. 69, section 10) powers to the governing body of any town, being the owners of any fair held therein (under the Local Government (Ireland) Act 1871) with the consent of two thirds of the members of such governing body, and with the consent of the Local Government Board—and of any person being the owner of any fair, with the consent of the last named body—to alter and fix the days for holding fairs. Notices being given as therein prescribed.

1873. The Act of 1868 was repealed, but almost precisely similar provisions were re-enacted by 36 and 37 Vict. c. 37. The term “owner” (used as in the previous act and in this) was defined to mean any person or persons, or body of companies, or body corporate, entitled to hold any fair, whether in respect of the ownership of any lands or tenements, or under any charter, letters patent, or otherwise howsoever.

This measure was not to apply to *Scotland* or *Ireland*.

1874. There are a great number of acts relating to the sale of Intoxicating Liquors at Fairs and Races. The latest 37 and 38 Vict. c. 49 (1874) by section 18, enacts that “occasional Licences” are required in all such cases, except where the ordinary licensed premises fall within the boundaries of such fair or race ground.





STURBRIDGE FAIR.

CHAPTER VII.

ORIGIN.

The origin of this Fair—like that of most of the great fairs of the world—is involved in obscurity. The first trace of it is found in a charter granted about 1211 by King John to the Lepers of the Hospital of St. Mary Magdalen at Sturbridge, by Cambridge—a fair to be held in the Close of the Hospital on the Vigil and Feast of the Holy Cross.

The Commissioners appointed by Edward I. to make inquiry into the rights and revenue of the Crown, visited Cambridge; and concerning its several markets and fairs reported (*inter alia*) the existence of this fair to which fact I shall make further reference, under date 1278.

Whatever its origin, it became in a comparatively short time after the period of which I am now speaking the most important fair held in Great Britain, and some writers have declared—without much apparent information to guide them—in the world. The incidents in its history are so remarkable, and throw so much light upon the customs of our forefathers, that I propose to give them in considerable detail. They have been brought together from various sources—the chief being Cooper's "Annals of Cambridge," compiled by Charles Henry Cooper, F.S.A., who held the office of Town Clerk, and who consequently had unrestricted access to the records. The "History and Antiquities of Barnwell Abbey," 1786, has been largely consulted. While the ample notes appended to the "Life of Ambrose Bonwicke," as edited by Prof. John E. B. Mayor, M.A., 1870, have been made available. I have followed as best suited to the circumstances, a strictly chronological arrangement.

As questions continually arise in the progress of our record regarding the rights of the town of Cambridge over the fair, it will be well here briefly to indicate how these may have arisen. In the inquisition of the Commissioners already referred to, it is recorded that "the keepers of this Hospital hold twenty four acres and a half of land in Cambridge field, for the support of the Lepers therein dwelling according to ancient right and custom." From other sources it appears that the Hospital was at the disposal

of the burgesses of Cambridge previous to 1245; but that about this time Hugh de Northwold, the then Bishop of Ely “unjustly got the patronage of it.” The burgesses still claimed that the advowson of the Hospital “belonged by right to them.” The fact probably being that the hospital was established by the town, before it was converted into a religious foundation; that upon such conversion the Church claimed sole jurisdiction; but as the original grant of land was not relinquished the townsmen still asserted their interest; and it will be seen, in the end—and after centuries of conflict—obtained it. See 1544.

There is a further element of conflict, of a far more pertinacious character than the preceding, running almost entirely through our six centuries of record—and this is with the University, as distinguished from the Town, of Cambridge. It was the custom to grant to University towns very large powers regarding the food supplies, *i.e.* the control of the markets; as also, and necessarily, the control of the morals, and therefore the amusements, of the scholars. Such a fair as that of Sturbridge affected alike the food supplies, and the moral discipline of the students; and hence the whole machinery of the University was put in force to secure and maintain control. It is in this view that many of the details of the University Proclamation of the Fair (see 1548) can alone be explained. On the other hand the Town authorities always had in view their rights over the Lepers Hospital; and hence their reversion in the tolls of the fair. Other points will make themselves apparent; but these are the broad views from which many of the following incidents have to be regarded.

Name of the Fair.—The first point of interest is the name of the Fair. It is occasionally spelled in such a manner as to be entirely misleading as to its locality; and hence many have come to regard it as being in the western, instead of the eastern part of the kingdom. The spelling indeed has varied much at different periods. The original designation was Steresbrigg, so called from the little river of *Stere*, or *Sture* flowing into the *Cam*, near Cambridge. There have been several fanciful origins assigned by those who were too indolent to investigate proper sources: such as (by Bloomfield) that it was derived from the toll paid for all young cattle, or *steers* passing over the bridge! I have throughout this record followed the spelling of the authorities under quotation.





CHAPTER VIII.

CHRONOLOGY, THIRTEENTH TO FIFTEENTH CENTURIES—STURBRIDGE.

1278.

The Commissioners of Edward I. (already referred to) returned upon inquest that King John had granted this Fair for the benefit of the Hospital for Lepers which stood there. “To the said Hospital belongs a certain Fair, held at the Feast of the raising and exaltation of the Cross, which continues to this eve of Holy Cross, within the meadow belonging to the said Hospital, which Fair our sovereign Lord King John, the predecessor of our present Lord the King, granted to the said Hospital, for the use and subsistence of the Lepers dwelling therein.”

1351. A writ was on 3rd Oct. directed to the Sheriff of Cambridgeshire requiring him to convey to the Keeper of the King’s Wardrobe in the Tower of London, thirty-seven strait cloths, and one cloth of colour, lately seized in the Fair of Steresbrigge to the King’s use, by his deputy Alnager, as not being of the assize and which were then in the custody of the Mayor of Cambridge.

1376. This year the Corporation of Cambridge made an Ordinance, prohibiting any burgess to take Sturbridge Chapel to farm, except to the use of the mayor and bailiffs, or to keep market there, under the penalty of 10 marks, or to make any booth there, or let any place for the building of a booth, under the penalty of 10s.; and any burgesses convicted of a breach of this Ordinance before the twenty-four [members of the Common Council] was to be deprived of his freedom at their discretion.

1382. The King being informed that many false weights and measures had been theretofore used in Steresbrigge Fair, to the deception of his subjects resorting thereto, issued a Writ on 3rd Sept. requiring the Chancellor of the University to be vigilant in exercising in that fair the powers conferred on him by the late Charter [1381] respecting weights and measures.

Two years later a dispute arose between the Corporation and the University regarding the exercise of this right. The King confirmed the privilege of the University.

1395. Richard II. made order that the sheriff was to apprehend all persons who broke the peace in Bernwell Fair, whether scholars or townsmen.

1397. On Hoch Tuesday the commonalty of Cambridge made Ordinances to the following effect: ...

ii. That all burgesses having any booths at the Fair of Sterebrigge, and who should let them to farm to any outcomers or foreigners for certain sum agreed upon between them, should pay to the mayor and bailiffs the third part of the sum for which the same should be so let.

iii. That no freeman should occupy two booths of one art.

1403. The Corporate Ordinances made by Cambridge this year contain (*inter alia*) the following:

Item ... Every man burgess of the town of Cambridge, may freely have one booth in the fair of Stirbridge, without rendering any thing therefore to the mayor and bailiffs for the time being, whether he occupy it or let it to farm. And that no burgess have in the fair aforesaid more than one booth, unless he render therefore to the mayor and bailiffs for the time being, toll and custom as others do who are not burgesses.

Item. It is ordained on the same day, that if any bailiff or other burgess of the town aforesaid, in future, lease or lend to any Citizens of London, the place for the booth called the Tolbooth, in the fair aforesaid, that the bailiffs pay to the commonalty of the Town of Cambridge £10, and the burgesses 100s. for every default, namely *tociens quociens*, to lose their freedom.

Item. The same day it is ordained that no burgess of the town aforesaid prosecute against any one by writ or plaint, before the Chancellor nor elsewhere, for any contract which can be determined before the mayor and bailiffs [in the Piepowder Court?] nor summon a defendant to the Chancellor, &c., under the pain of every one &c. 40s. to be paid to the commonalty of the town aforesaid, and the loss of his freedom (see 1427-8).

Item. The same day it is ordained, that no serjeant of the town aforesaid for the future shall be attorney or of counsel, *with any foreigner, against any burgess of the same town*, in the Court of the Town aforesaid, under the pain of 40*d.*, to be paid to the commonalty of the town aforesaid, *tociens quociens*. See 1575.

1405. The Corporation of Cambridge enacted the following Ordinances:

Be it remembered, that on the day of election of mayor and bailiffs for the town of Cambridge in the 6th year of the reign of Henry IV., it is ordained that every burgess within the town aforesaid having a booth or booths in the fair of Sterbrige, may well and lawfully give, sell and surrender the said booth to the use of any other burgess of the same town, before the Mayor and one of the Aldermen of the same town, in the Court there holden on every Tuesday in the year, and on every Monday in the Court of the Liberty: Provided always that the said booth or booths be surrendered freely, quietly and wholly, without condition, annexed or expressed, for him and his, according to the custom of the borough. And this under the pain or forfeiture of the same booths to the burgesses of the town aforesaid.

1411. On 15 Nov. John Arondell, custos of the free chapel of St. Mary Magdalene, otherwise called Sturbridge chapel near Barnwell, exhibited his bill in the Exchequer against John Essex, sadler, John Warwyk, skinner, John Chaucer and William Bush, late bailiffs, then present in Court on their account. In this bill plaintiff averred that he and his predecessors, had immemorially had stallage of all persons merchandising upon the Chapel-yard, parcel of his chapel, where part of the fair of Sturbridge was accustomed to be held, and where merchants were accustomed to erect their shops during the fair-time. That one Thomas Spryggy merchant and Clothier, and other merchants to the number of 20, would have made their shops there at the fair holden at Sturbridge on Monday the feast of the Exaltation of the Holy Cross then preceding, and would have paid the stallage 6*s.* 8*d.* each but that the late bailiffs unjustly and by colour of their office would not permit the merchants to build their shops in the Chapel-yard by which he lost his stallage amounting to 10 marks, to the disherison of the chapel, and to his damage of £10. The defendants by their plea, after protesting that the chapel was founded within the time of memory and that the bailiffs of Cambridge were seized of stallage of merchandize brought to

the fair, denied that the custos or his predecessors were seized of such stallage. On this plea issue was joined, and a verdict returned in favor of the custos whose damages were assessed at 5 marks with £10 costs. The proceedings in this cause were exemplified by letters under the Exchequer seal, tested by John Cokayn Chief Baron, on the 4th March 1412-13.

1419. At this time there was a suit pending before the King's Council between the Chancellor and Scholars of the University, and the mayor, aldermen and citizens of London, each of whom claimed the Custody of Assize and assay of Bread, wine and beer, and the supervision of the measures and weights of the citizens of London coming to Sturbridge fair. On the 14th July the King (Henry V.) directed letters patent to sir Wm. Asenhull, knt. sheriff of the County, commanding him to exercise the beforementioned custody and supervision over the citizens of London in the fair of Sturbridge, till the matter was decided, and requiring the litigating parties to assist the Sheriff.

From the accounts of the Priories of Maxtoke (Warwickshire) and of Bicester (Oxon) during the reign of Henry VI. it is seen that the monks laid in yearly stores of various common necessities, at this fair—distant at least one hundred miles from either monastery. Wharton ("Hist. of English Poetry") commenting on this fact says: "It may seem surprising that their own neighbourhood, including the Cities of Oxford and Coventry could not supply them with commodities neither rare nor costly, which they thus fetched at a considerable expense of carriage." But he remembers that it was a rubric in some of the monastic rules *De Euntibus ad Nundinas*.

1423. In the parliament of Henry VI., this year, the following petition was presented:

Prien the wise and worthi Communes, that for as muchell as in the Citee of London, and in the Suburbes ther of, diverses persones occupying the craft of Brauderie, maken divers werkes of Brauderie of unsuffisaunt stuff, and unduely wrought, as well upon Velowet, and Cloth of Gold, as upon all other Clothes of Silk wrought with Gold or Silver of Cipre, and Gold of Luk, or Spaynyssh laton togedre, and swich warkes, so untrewely made by swiche persones aforesaid, dredyng the serche of the wardens of Brauderie in the said Citee of London, kepen and senden unto the fayres of Steresbrugg, Ely, Oxenford and Salesbury, and ther thei outre hem, to greet

deseit of our soverain Lord the Kyng, and al his peple. That it like oure soverain Lord the Kyng, wyth his Lordes spirituell and Temporell, in this present Parlement, to ordeyne by statute, that all the werk of Brauderie so undwely made as above is declared, be forfait to oure soverain Lord the Kyng. And that the Wardeins of Brauderis of the said Citee of London, for that tyme beyng may, by auctorite of this present parlement, have warant by patent to make serche of all werk of Braderie put to selle at the said faires of Steresbrugg, Ely, Oxenford and Salesbury, and thoo werkes of Brouderie there founden unsuffisant, to forfait and arreste to the use of our soverain Lord the Kyng, as ofte tymes as such werk be founde.

To which answer was made:

Be it enacted that all works and stuff with gold and silver broidery of Cyprus or Gold of Luke, or with laton of Spain, and sold to the deceit of the subjects of the King, be forfeited to the King, or to the Lords and to others having franchises of such forfeitures, in which franchise such works be found. And that this enactment endure only until the next parliament.

The valuable commodities sold at this fair are here in part indicated.

Same year the commonalty of Cambridge, on the Thursday after the Nativity of the Virgin made an Ordinance to this effect:

That the bailiff of the Bridge should not take toll for carriage, nor stall-pence nor custom, from the bridge, nor elsewhere (except in the fair) for merchandise coming to the fair of Sterbrigg, from the vigil of the nativity of the blessed Mary until the fair was ended.

1425. The accounts of Richard Parentyn prior of Burchester, in Oxfordshire, and Richard Albion canon and bursar of that house, for the year ending Michaelmas, contain several items which shew the varied and extensive trade of Sturbridge fair about this time: For the expense of Albion in going to and from Sterisbrugge fair for five days with three horses to buy victuals &c. 12s. 6d. is charged. The following articles are also stated to have been purchased here: "Three collars, one basse [a rush collar for cart-horses] and three headstalls 5s 10½d;" "a bolt [long narrow piece] of red say [silk] for making a cope 4s 8d"; "Six estregbords [Eastern boards] viz Waynscots 2s 3d"; "100 halfwax-fyche [dried fish?] 21s.;" "324 lbs of Spanish iron, with the portage of the same 18s 5d".

1459. Richard Andrewe, *alias* Spyker, burgess of Cambridge by his will dated 30 Aug. bequeathed to the mayor and bailiffs of that town 80 marks to be kept in a chest there provided, and portions thereof lent on loans from time to time in sums not exceeding 26s. 8d. To the keepers of this Chest he gave, three booths and certain booth-ground in Sturbridge Fair, and a house in St. Andrew's parish abutting on Preachers' lane, the profits to be applied to the celebration of his anniversary in Great St. Mary's Church, to be distributed in various small charities there specified. See Cooper's "Annals," i., p. 210.

1464. By 4th Edward IV. c. 8 power is given to the Wardens of the Company of Horners to search for defective wares in London and twenty-four miles round, also in the fairs of Sturbridge and Ely, and to seize defective manufactures and bring the same before the Mayor of London or the Mayors or Bailiffs of the aforesaid fairs, for the time being. In 1609 this act was revived by 7 James I. c. 14, sec. 2. The act was repealed in 1856.

1487. The Corporation of London made an Ordinance prohibiting the freemen of that City to go to any fair out of the City with any manner of merchandise to sell or barter. This Ordinance was repealed by act of parliament in the preamble of which it is recited that there "be many fairs for the common Weal of your said liege people, as at Salisbury, Bristol, Oxenford, Cambridge &c." If this order of enumeration had any reference to the relative importance of the fairs (which I suspect it had not) it puts this fair only fourth. This act has already been set out in detail in Chapter V.

This year Sir Wm. Littlebury alias Horn, citizen and salter, and also Lord Mayor of London, gave 500 marks towards repairing the highways between London and Cambridge. This was probably in view of benefiting those attending the fairs.

1496. On 20th July Katherine Cooke widow of John Cooke some time mayor, granted to the mayor, bailiffs, treasurers, and burgesses and their successors, to the use of the Treasury of the Town of Cambridge, three booths situate in the Soper's lane, the Chepe, and the Petimercerye, in Sterbrigge fair. To the intent that the Treasurers should perpetually uphold yearly on the 25 Feby., a special dirge and mass in the parish Church of St. Mary the Virgin next the market for the souls of John Cooke and William Colles, and Katherine, Joan, and Lucy their wives, and pay to the bell-man

for going about the town for the said souls 3*d*; with other small bequests to the poor &c. Cooper's "Annals," i., p. 246.





CHAPTER IX.
FIRST HALF OF THE SIXTEENTH CENTURY—
STURBRIDGE.

1501.

The accounts of the Treasurers of Cambridge for this year contained the following item:

Paid John Fynne, Clerk to make up the farm of the land called the Chapel ground lying in Sturbridge Fair leasted to the Mayor, bailiffs and burgesses, beyond the money received for the farm of the same this year, *because a great part of the same was not levied this year, by reason that the merchants of London withdrew themselves from the Fair*, 100s.

This lease had been taken on 7th Aug. 1497 for a term of 99 years at a rent of £12, and five tapers of wax for the chapel of equal weight, and weighing in the whole 3 lbs.

1503. William Kentte the younger, Clerk, by his will devised two booths in Sturbridge fair, and the reversion of a tenement called the Crown in the parish of St. Andrew in Cambridge, the mayor and burgesses entered into covenants with his executors to observe and keep a yearly dirge in the Church of St. Benedict, on the first Wednesday of the kalends of May, and other specified observances of a religious character.

1510. There was a suit between Kings Lynn and Cambridge regarding Toll at this fair. How the matter was then disposed of does not appear. See 1541.

1517. Misunderstandings having arisen between the Town of Cambridge and the Prior and Convent of Barnwell the matter was referred to arbitration, and the Award determined that the town for evermore should have hold and enjoy, keep and maintain the fair as well within the said town of Barnwell &c., as in all other lands and fields of the said prior and convent, lying on the east between the said monastery and town of Barnwell, and a bridge called Sturbridge, from the feast of St. Bartholomew

unto the feast of St. Michael in Sept., and that they and their farmers might, without let or molestation of the said prior and convent, build stalls, shops, &c., the mayor &c. throwing down all banks, chimneys, &c. within four days after Michaelmas, and provided that all such farmers of any house or shop letten by the Prior and Convent should pay but one shilling by the year to the mayor &c. for his and their house and shop. “Hist. and Antiq. of Sturbridge Fair,” p. 77.

1519. A dispute which had arisen between the mayor, bailiffs, and burgesses of Cambridge and the mayor, burgesses, and comburgesses of *Northampton*, as to the claim of the freemen of the latter town to *exemption from toll in Sturbridge Fair*, was referred to the arbitrament of Sir Richard Elliot, and Sir Lewis Pollard, Justices of the Common Pleas, who on the 4th June awarded that the Corporation of Northampton should pay 10s. yearly to the Corporation of Cambridge in full satisfaction of all toll and custom due from the freemen of Northampton, for all manner of stuff, barrelled ware, and other merchandise, brought by them to Sturbridge fair, and all other passages and carriages through and by the town of Cambridge, at all times of the year, or and besides twopence for every cart laden with their stuff going out of the fair. A deed of Covenant founded on this award was entered into by the two Corporations on the 10th of July. “Corp. Cross. Book.”

1521. About this time there were proceedings in the Court of the Duchy of Lancaster by the tenants of *Hertford*, against Richard Clark mayor of Cambridge, who was complained against for seizing for toll in this fair.

A little later there was a like suit pending between the tenants of the Duchy in Walden, and the bailiffs of Cambridge. *A decree in favour of the Exemption* was made in Easter term 1524.

1533-4. The Heads of the University claimed the following rights in the Fair:

1. The Proctor’s Commissary and other officers of the university keep a court in the fair, because it is within the suburbs of Cambridge, and the university are clerks of the market, and have the oversight and correction of weights and measures, and victuals in the fair.

2. They hold plea in the said court of contracts and trespasses made within the said fair as without, which was one of the things agreed upon in a composition with the town, viz. that the university should have the like privileges there as the mayor.

3. They hear and determine pleas personall as well between scholars, servants, as all foreigners and others of the kings subjects, if a scholar or scholars servant be one party by the commissary in the fair court by the order of the civil law by witness or otherwise, excepting in causes relating to victuals, wherein they determine according to the common or statute law.

4. They make proclamation in the said fair before the proclamation of the mayor of Cambridge, by virtue of the King's letter patent as conservators of the peace, and as having the overseer of victuals which is the first thing sold in the fair.

5. The Proctors search all manner of fish as well salt-fish as other, pewter, brass, &c., haire, girth-webb, silks, furs, beds, and all upholstery wares, spices and grocery, rape-seed, mustard-seed, fustians, worsteds, sago, honey, soap, oil, tallow, wax &c. brought to be sold in the said fair, and take the forfeitures of the same when faulty &c. This they do by virtue of royal charters.

6. The Proctors by virtue of the King's writt directed to the university, and as clerks of the market are the proper gaugers in the fair to gauge all manner of barrelled wares brought to be sold, and take the usual fees allowed by the law for the same, as also for weighing, viz. of every one that bringeth salmon or any thing of like nature to be sold, 12*d.* for every last gauging. For every last of oil gauged 12*d.* Item, for every last of soap weighing and gauging 12*d.* For every last of honey weighing and gauging 4*s.* &c. and the fines and forfeitures for want of weight and measure.

7. The Taxers take of all victuallers in the fair a greater or lesser sum according as they can agree for breach of the assize of bread and beer which they sell in the fair. N.B. This taken in lieu of heavier penalties which the offending victualler incurs, and the taxers may lawfully inflict, for such offence.

8. For every cart load of oats to be sold in the fair they take 4*d.* &c.

This declaration of rights and privileges was in reply to charges made by the town against the University—twenty-three in all, amongst which was (15) of that of holding within the town a Civil Court weekly whereat they held plea of all manner of contracts and actions personal, as well between foreigners as burgesses, and hold proceedings in the Civil law in derogation of the King's Crown. All this the University replied they did by the King's Charter. That (16) they had excommunicated two of the mayors of the town. To which answer was, they did this for perjury! They had punished a forestaller of honey from Banbury. They had punished a burgess for selling tallow to a merchant at Lynn (20). Admitted—"There was much talow conveyed owte of Cambridge so as the Kyngs people myght have no candle sufficient." The answers to the charges had been given verbally in St. Mary's Church, and record taken. There was much commotion on the occasion, but afterwards "all dranke together at the Pompe Taverne, and the Unyversyte payd for all." See 1534.

Same year, 7th Sept. Princess Elizabeth (afterwards the famous Queen) was born at Greenwich. Intelligence was brought to the mayor by the Queen's minstrels, during the time of the fair, and was there celebrated by bonfires and rejoicings. In the accounts of the treasurer of the borough for that year are these items:

Item, payed to the Qwenys mynstrells that brought letters to Mr. Mayer of the birthe of the Pryncesse vs.

Item, paid for ij loads woode for gaudes at the bone fyer in Stirrebygge fayer made in certain places within the said fayer iij s xd.

Item, for iiij galonns wyne spent at the said Gaudes iij s viij d.

1534. There was enacted the 25 Henry VIII. c. 4—*An Acte agaynst Forstlyng and regraytyng of Fyssh*—which recited previous acts against forstalling victuals and other merchandise in the markets and fairs of the kingdom, "which former Statutes not only for lake of due exeucion of the same but also for lake of condigne punysshement in the seid Statutes conteyned be lytill feared or regarded; for dyverse and many of the Kinges subjectes contrary to the meanyng of the said Estatutes nothing regardyng the displeasure of Allmyghty God and of the Kynges Highnes, ne yet the love and charitie that they ought to have to their neyghbours and commen welthe of this Realme, for their pryvate lucre and singuler avayle

commonly in every markett and fayre within this Realme doo forstall and regrade all maner of victuall as corne wyne fysshe and fleshe, and especially in *Sturbruge* fayre, *Seynte Ives* faire, and *Elye* fayre, *being the most notable faires within this Realme for provysions of fysshe*, and moost to the releff of the Kynges subjectes yf such forstallyng and regratyng myght be sett on syde,” &c. &c.

After ten years experience of its mischievous tendency this act was repealed (1544).

The disputes between the University and the town still continuing, a grace was this year passed empowering such parties as were therein named to answer determine and conclude all such controversies as should be propounded by the mayor and burgesses before the Lord Chancellor and the Duke of Norfolk; and by another Grace, proctors were appointed on the part of the University to answer in all causes before the King’s Council. On the 24th July the parties on both sides met at Lambeth Palace, “where it was decreed by the said Lordes that *Styrbridge Faire* was in the Subarbes of Cambridge, and that the Vice-chancellor or his commysary might kepe courte cyvyll ther for plees wheare a scolar was the one party. *Item*, that in the same faire the university lead the oversight, correction and punyshement of all weightes and mesures, of all maner of victayll, of all Regreators and Forestallers. *Item*, It was determyned that spyces be vytail.” The expences of the University this year for journies to London &c., in consequence of the disputes with the townsmen amounted to nearly £80.

There was still some further controversy on the point, in which Thomas Crumwell, secretary of State, took part. See Cooper’s “Annals of Cambridge,” i. 373.

1639. In Hilary term John Baker the King’s Attorney General filed an information in the Court of King’s Bench against the mayor, bailiffs, and burgesses, charging that they for four years, and more then last past, had used to have a mart or fair at Barnwell and Sturbridge, on the morrow of St. Bartholomew the Apostle, and continuing from that time till the fourteenth day after the exaltation of the Holy Cross, with all liberties and free customs to the said mart or fair belonging and appertaining; also to have and hold by their steward and other ministers a Court of Piepowder, and by colour of the same to attach disquiet and aggrieve the subjects of the King

resorting to the said fair, as well by their bodies as by their goods and chattels, and take from the King's subjects divers fines and amerciaments, and to apply the same to their own use; and also to have all forfeitures and royalties whatsoever within the precincts of the said mart or fair during its continuance; all which liberties and franchises they usurped upon the King and his prerogative royal, to his great prejudice and damage and in contempt of his crown. Process was thereupon awarded, requiring the mayor, bailiffs, and burgesses to answer this information, and to show by what warrant they claimed these liberties and franchises. They suffered judgment against them by default, and the liberties and franchises in the information specified, were seized into the King's hands.

This proceeding was consequent upon the dissolution of monasteries ordered in the preceding year—the original grant of the fair having been made as we have seen to a religious house. The Corporation prayed for a new charter, and agreed to pay 1,000 marks for the same. The Charter was granted, but the money, on the authority of Cooper (“Annals,” i., 393), was not paid for many years afterwards. The fair however was regularly held. The Charter is a very lengthy document; and as the grant was confirmed half a century later by the charter of Elizabeth (1589), which I shall have occasion to notice in some details for reasons then appearing, I shall not dwell upon the present one.

1541. By 33 Henry VIII. c. 39—*The Bill for Town of Lynne towching the revoking of two Fairs*—it is recited For so much that as well the burgesses and inhabitants of the said borough of King's Lynn, as many and divers other persons dwelling near the said borough have made regrated and gotten into their hands and possession great numbers of salt fish as ling, lob, salt salmon, shellfish and herring, “to the gret hindraunce and loss of many of the King's subjects that yerely have repayred and com to *Styrbige fair* Ely faire, & other Fayres & marketts in the Countie of Cambryge & Huntyngton and other shyres for the provysion of salt fyshe, & Heryng for their householdes, & for the provision of dyverse other shires within this Realme of Englande, whiche regratyng is contrary to a comen welth and to dyverse statutes in that case providede, and contrari to the good entente and meanyng of the graunt of the said Fayres and marte” It is enacted that the grant of the said Fairs to King's Lynn be and was thereby repealed.

1542. Leland in his famous "Itinerary" at this date records: "The brothers of Sturbridge possess an antient house in that part where is the Fair for the sale of woollens, commonly called the Duddery."

1544. On 27 Sept. Thomas Bishop of Ely, the Dean and Chapter of the Cathedral Church of the Holy and Undivided Trinity of Ely, and Christopher Fulneby, incumbent of the Free Chapel of St. Mary Magdalene called Styrrebrige in the County of Cambridge, demised to the mayor, bailiffs, burgesses, and commonalty of the town of Cambridge, the aforesaid free Chapel, with all glebe lands, tenements, meadows, pastures, booths, and booth grounds, standings, liberty of building booths, rents, hereditaments, oblations, commodities and profits (except the advowson, patronage, and donation of the said free chapel) for 60 years at the rent of £9 per annum.

By means of this the entire temporal control of the fair merged into the Corporation of Cambridge.

1546. There appears to have been some suit pending at this time regarding the Fair, for at a meeting of the Corporation of Cambridge Robert Chapman and seven others were appointed to commune and determine what they thought best to be done for Sturbridge Fair, and how the charges of the suit therof should be borne, and all other things concerning the same. *Vide* "Corporation Common Day Book."

1547. At the Common Day held on Friday after the Assumption it was ordered that the Bailiffs should enter their wards at this Fair on the 6th Sept. yearly, at 5 o'clock in the morning, and should pay as follows: for the Bridge ward £18, for the Market ward £12, and for the High ward £13.

The proctors of the University upon fresh complaints made going their rounds one night "had taken certain evil persons in houses of sin," and had brought them to the Tollboth, in order to commit them there. But having sent to the mayor for the keys, he absolutely refused to part with them. So they were fain to carry their prisoners to the castle, where they left them in custody. But the mayor's son, after an hour or two let them all out, "to return if they pleased to their former lewdness; to the breach of the law; and the affront of the magistrate." This led to further disagreements.

By an Order of the Privy Council dated 3rd Oct. this year the mayor and undersheriff of the County were required not only to acknowledge before the Vice-chancellor, heads of colleges and proctors, that they had interfered with the privileges of the University in this fair, but also “that the mayor in common hall shall openly, among his bretheren, acknowledge his wilfull proceeding.” The breach consisted of John Fletcher, the mayor, having refused to receive into the tolbooth [prison] certain persons of “naughty and corrupt behaviour,” who were prisoners taken by the proctors of the University, in the last Sturbridge Fair; wherefore he was called before the Lords and others of the Council, and his fault therein “so plainly and justly opened” that he could not deny it, but did “sincerly and willingly confess the said fault.” Dyer’s “Privileges of Cambridge,” i. p. 111.

About this time Nicholas Elton, burgess of Cambridge by his will devised a booth in Sturbridge fair to the mayor, bailiffs and burgesses, after the death of his wife—It is supposed for charitable purposes.

There had been some suggestion that the University should sell their privileges in the Fair to the Corporation—see 1858.

1548. The following is the *Proclamation* used by the University of Cambridge about this date in “Crying the Fair”:

The Crye in Sturbridge Fayer.

Wee charge & straightlie comaund in y^e name of y^e Kinge of England o^r soveraigne Lord, and in y^e name of my Lord Chauncell^r of y^e Universitie of Cambridge, y^t all manner of schollers, Schollers Servants, and all other persons in this Fayer, and the precinct of y^e same, keepe the Kings peace, & make no fraye, cry, owtasse, [“out alas!”, old exclamation(?)] shrekinge, or any other noyse, by y^e which Insurations, Conventicles, or gatheringe of people may be made in this Fayer, to y^e trouble vexinge and disquietinge of y^e Kings leage people or lettinge of the officers of y^e University to exercise there offices, under the payne of Imprisonment & further punishment as the offence shall require.

Also wee charge & comaund, that all manner of Schollers, and Schollers servants weare no weapon, to make any fraye upon any of

y^e Kings people, neither in cominge nor in goinge from this Fayer, under y^e payne of banishment.

Also wee charge & comaund, y^t all manner of straungers, that come to this Fayer, that they leave theire weapons at theire Innes, that y^e Kings peace may be the better kept and for y^e occasion ensueinge of the same, under the payne of forfettinge of their weapons, and further punishment, as the offence shall require.

Also wee charge & comaund, in y^e Kings name of England, & in y^e name of my Lord Chauncellor of y^e University, shall all manner of Bakers, y^t bake to sell, that they make 2 loofes for a penny, and 4 for another, good past, good bowtell, & lawfull syse, after as grayne goethe in y^e markett, & every baker y^t baketh to sell, have a marke upon his bread, whereby it may be knowne who did bake it, under y^e payne of forfeiture of his bread.

Also wee charge & comaund, that all common women, and misbehavinge people, avoyde and withdrawe themselves owte of this fayer, and precincts of y^e same, ymediatelic after this crye y^t y^e Kings subjects may be the more quiet, and good rule may be the better mayntayned, under y^e payn of imprisonment.

Also that all Bakers shall observe and keepe suche Syzes of bread as shall be given them by the officers of y^e University, under y^e payne of forfeiture of theire bread, if it happen any Baker to be founde fawtie in any article apperteyninge to unlawfull bread accordinge to y^e Kings lawes, that then such bakers, after 3 monitions, shall be imprisoned & punished on y^e pillory, accordinge to y^e lawes of o^r Sovereigne Lord y^e Kinge.

Also that no Brewer sell into the Fayer nowe here within y^e precinct of y^e Universitie, a Barrell of good Ale above 2s.; And a Barrell of Hostell Ale above xij d.; no longe Ale, no red Ale, no ropye Ale, but good and holsome for mans body, under y^e payne of forfeiture. And y^t every Brewer have a mark upon his Barrell, whereby it may be known who owneth it, under y^e payne of imprisonment and fyne at y^e discretion of y^e officers of y^e Universitie.

Also y^t every Barrell of good Ale hold and conteyne xiiij gallons, xiiij gallons of cleere Ale, and one gallon for the rest: and the Hoggett vij gallons, that is to say, sixe gallons, and one pottel of cleare Ale, and the residew of rest, under the payn of forfeit, and further punishment after the discretion of the officers of the Universitie.

Also wee comaund that y^e bearebrewer shall sell a kylderkyn of double beare in this fayer for ij s. and a kylderkyn of single beare for xij d.

Also y^t no Tipler no gauger sell in the sayd fayre nor within the precincts of the Universitie, A gallon of good Ale above iiij d: nor a gallon of the Hostill ale above ij d. and the beare brewers a gallon of double beare above iiij d. and a gallon of single beare above ij d, under the payn of xij d. for every tyme.

Also that no Tipler or gauger sell by other measure than by gallon, pottle, quart, pint, and halfe pint, under the payne of xij d. for every tyme.

Also where great detriments, hurts, and deceites have beene to the Kings subjectes in tymes past, by reason of false and unlawfull measure, brought by Potters and other persons to bee sould in this fayre and the precinct of the same; for avoydinge therefore the sayd hurts and untrew measures, wee straightlie charge and comaund that every Potter, and all other persons as bring such pots to bee sould in this fayre, or the precinct of the same, that ye and all other from hensforth sell and buy trew goods and laweful measures, as gallons, pottles, quartes, pintes and halfe pints, under the payne of imprisonment, and that to remain till they have made fyne at the will of the sayd officers.

Also if any Bruer be found fauty in any of the premisses after that hee hath bene iij times Amerced, then y^e said brewer shal bee comited to prison, there to remayne till hee have fined at the will of the officers of the Universitye.

Also that every Tipler or Gauger, that selleth ale in this fayer that they have their measures well and lawfullie sealed and assyzed

according to the standerd of the Universitie; and y^t every Gauger, and bere-brewer y^t hath Ale or bere to sell, have a signe at their booth, whereby they may y^e better be knowne, under y^e payne of imprisonment.

Also that every Vintener, that hath wyne to sell in this fayre, as white wyne, redd wyne, Clarett wyne, Gaskyn wyne, mamsey, or any other wyne, that they sell no dearer than they doe at London, except a ob. in a gallon towards y^e carriage; and y^t every vintener have their potts and their measures sysed and ensealed after the standard of the Universitie, under y^e payne of forfeiture, and their bodies to prison.

Also that all persons that bringeth linge fyshe salt fyshe, stocke fyshe, or any other salt fyshe, to sell in this fayre, or within y^e precinct of y^e same, that they sell no rott fyshe, no burnt fyshe, no rustie fyshe, but good, lawfull, and wholesome for man's body, under ye payne of forfeiture of y^e fyshe and their bodies to pryson.

Also all manner of persons which have samon herringe or eels to sell in this fayer, that y^e vessels called Butts, Barrells, half Barrells, and firkins, you sell none of them before they be sene and searched, & y^t y^e butt hold and conteyne 84 Gallons, well and trulie packed upon payne for every butt, barrell, half barrell so lackinge their said measure vj s. iiij d. *And* y^t y^e great salmon be well and trulie packed by itself, without meddlinge of any grills, or broken-bellied samon with the same: and that all small fyshe called Grilles be packed by themselves, and without any meddlinge upon payne of forfeiture & loosing of vj s. viij d. for every butt, barrell, and halfe barrell so found saltye, contrary to the statute of y^e parliament; on the which statute these poynts and other more bee more playnly xpressed.

Also that every Pikemonger that bringeth fresh fish to this fayre to sell, as Pike, Tench, Roche, perche, eele, or any other fresh fishes, that the fishe be quicke and lymishe, and of the size and bignesse according to the statute thereof made, under the payne of forfeiture, and their bodies to prison.

Also that every butcher, that bringeth flesh to sell in this faire that he bring no rotten fleshe, no muireynes, no sussiners, [foul or unwholesome meat (?)] but lawfull and holesome for man's bodye, and that every butcher bringe the side [hide?] and the tallowe of all such flesh as hee shall kill, to sell in the faire, and that every butcher bring with him the liver and the longes of all such beastes under the payne of forfeiture.

Also that every Baker that baketh horse Bread to sell that hee sell iij loaves for A penny, after good and lawful size, and after such size as shall be given them, and that it be made of good pease beanes and other lawful stuffe, upon the payn aforesayd.

Also shall all browne bakers, as well Inholders and others, observe and keepe such syse of horse bread as shall be given them by y^e said officers, under y^e payne and punishment as of other Bakers is rehersed.

Also that every person y^t selleth by measures, as by ell or by yard, woollen clothe, or Lynnen clothe Sylke, worsteds, sysed and unsealed, that they have their ells and their yards sysed and ensealed after y^e standard of y^e Universitie, under the payne of forfeiture, and their bodyes imprisonment.

Also that every person that selleth any measure, as by Bushell, half Bushell, Pecke, or half Pecke, as Coales, Salt, Muster Seede, or any other thing, that their Bushells half Bushells and pecks be sysed and sealed after y^e standard of the Universitie, under the payne of imprisonment, and more punishment as the offence shall require.

Also that all persons that waigh have good and lawful waights sysed and ensealed, and to agree with y^e standard waight of y^e Universitie.

Also that no man shall regrade none of y^e foresayd things, as Lynge fishe, Salt fyshe, Stocke fyshe, herringe, Salmon, Pike, tench, waxe, flax, osiern, [for osmunds, a preparation for stiffening linen (?)] rosyn, yarne, pitch tarr, cloth, nor none other things of Grocery ware, or any other marchandise in this Fayer, under payne of

forfeiture, and their bodies to prison, and to make fyne as it shall please y^e officers of y^e Universitie, and the regrater is he that byeth any of the sayd things afore rehersed, or any other manner of marchandises of any man in this Fayre, and selleth again the sayde things in the sayd Fayre, inhawneing y^e price of any of the sayd things more than it was before.

Also if there be any person that will sue for any personal action either for debt, victualles, injuri and trespas, or thinke themselves wronged in any of the premisses or otherwise, let him complayne to my Lord Chauncellors Comesarye and other officers of the Universitie, which shall hould and keep Courts daylie and howerlie in this fayer duringe y^e same to the intent y^t he shall be hard with lawful favour in right and conscience and after the liberties of the same. Also that every butcher y^t bringeth fleshe to sell in this markett, that he sell none of y^e Tallowe of all such beastes as he shall bringe to sell in this markett, but to such Rafement and Tallowe chaundelers, as are dwellers within y^e Universitie, and precinct of the same; and they to make y^e said Tallowe in good and lawfull candell, so y^t y^e said Universitie, and Town of Cambridge, be in no wyse disappointed, but the better served, & y^t you sell not a pound of candles above 1d. and y^t y^e sayd Butcher sell not a ston of Tallowe above viij d.

Also y^t every Innekeeper y^t keepeth Inne, y^t he have his bottels of hey well and lawfullie made and sysed and y^t every bottle way vij^{li}, And that ye sell not less than three horse loves, good and lawful, for a penny, under y^e payne of punishment after the discretion of y^e officers of y^e University.

Also that every Carryer, y^t bringeth woode to sell in this markett, that they bringe good wood, and yf it be faggott, let y^e faggot therof be well filled and sized, and that everye faggott be full vij feet longe, and every faggott to have two bonds and xli faggotts in a load, well filled after y^e said length, under y^e payne of forfeiture.

Also that every Collier y^t bringeth charecool to sell, that every sack called a quarter sacke, hold viij bushells, savinge y^t they be

allowed for Culme breaking by the way, after y^e discretion of y^e officers of the Universitie, under y^e payne of forfeiture.

Also that every person y^t bringeth grayne to sell in this markett, y^t they open not before Tenne of y^e clocke, nor to stand after one of y^e clock, under ye payne of forfeiture.

How long this form of Proclamation remained in force does not appear, but probably for several centuries later. See 1855. It is seen that regulations against adulteration and other wrongdoings of traders, are not so modern as is sometimes supposed.

About this period, and probably earlier, a piece of stuff for a gown was bought for every fellow of St. John's College at this fair. See "Early Stat. of St. John's Col. Cambr." 1859.





CHAPTER X.

SECOND HALF OF THE SIXTEENTH CENTURY.

1550.

For the better preservation of peace during the fair the Lieutenants and Commissioners of the University ordered a “night watch” to be kept by the scholars and townsmen. The colleges were to supply the watchmen to the number of twenty in the aggregate “to be thir in redynes, harneshed and weponed, befor the bell of S^t Johns at vii of the clock be ceased; in defawt whereof every college in whom such defawt shal be, to paye to the Proctours xii *d*, wherewith to find other in their roms” *Item*, that over and beyond the said number the said Colleges have in redynes other xxiiii according to the rate aforesaid.

The town paid £2 4s. 4*d*. to the bailiffs and others “for monye spent at the watche in Stirbridge fayer.” These watchmen wore red coats and went the round of the fair every half hour, calling out lustily “Look about you there.”

Pewterers Company of London.—On the 10th Sept. in this fair the Wardens of the Pewterers Company of London seized certain salt-sellers, pots and covers of pewter, which were of insufficient metal, and which they therefore alleged to be forfeited. The searchers of the University and Town, however, claimed exclusive jurisdiction of the Fair, and took the pewter from the Wardens, who exhibited an information in the Exchequer against one of the Esquire Bedels and one of the Searchers; but on the 21st Nov. the Privy Council sent the following letter to the Wardens:

Whereas the Universitie of Cambridge have bi the kings majestie, and other his noble projenitours, charters, among other things the viewe, serche, correction, and forfeiture, of all pewter that comyth to Sturbrige fayr unmerchantable, and youe John Daye and Stephan Rowlandson intermedled with the serche therof clayming the moytie of all such pewter as ther was found forfeited, and being therof denyed have put in to the kings majesties court of the eschekyr for the recovery of the sayde moytie, an information agaynst John Mere

one of the bedels for the said universitie, and the officer appointed with other for the serche therof aforesayd. The kings majesties pleasure is, for saving of the sayd privileges, that youe procede no further therin, but suffer the same to staye and hang untyl his majesties wyll be further knowen, and this shall be your sufficient warrant for the same. Fare ye wel, From the Kings palace of Westminster, y^e xxi November, 1550.

Your lovyng Friends

EDW. SOMERSET, T. CANT. J. WARWICKE.
J. BEDFORD W. NORTH[AMPTON], ED.
CLYNTON. W. PAGET, T. ELY.

There is a letter of the King's (Edward VI.) extant which shows precisely why the Council took this course:

Aftre our hartie comendacions; wheras contrary to certain privileges graunted by the kings majestie and his noble progenitours unto his universitie of Cambridge oone John Daye and Stephan Rolandson wardens of the crafte and mistery of the pewterers within the citie of London, have put in a certaine information with you in the King's courte of Thexchequer agaist John Meare oone of the kings bedells for the universitie of Cambridge for certaine pewter seased unto the king's use at the last Sturbridge feare, his highness' pleasure is that you proceade no further to judgement therein, but suffre the same to stay and hange untill his majestie's will be further knowne, and these shall be your sufficient warrant for the same. Fare you well, from the kings majistie's palace of Westminster the 22 of November 1550.

Your loving frend.

This sent to the barons of th' Exchequer from the counsayl.

Item another to the promoters ut infra by the same counsaylors.

In the accounts of the Fair of this year are the following items—the result probably of causes heard by the Court of Piepowder—recorded thus:

“receyved bi the Bedel and the Townsmen & partly found by promoters”:

Rychard Lyllye of Stow of Thold [Stow-in-the-Wold] in Glossetershere hathe put to sale contrary to the statute vii peces of welshe frese and hathe paid for his fyne to Draper the partye that sued xx s, and for the quenes parte	vi s.
Receyved of Mr Caree of Brystow for xv peces of karsey put to sale contrarye to the statute	iii l.
And of Maye for felts forfeited	v s. iiiii d.
Receyved of Tho. Mate for 11 karseys and 1 frese	xxx s.
Receyved of Mr. Ryngsted for exchaunge old sylver and from John Holls xxv s. whereof Tho. Gardener the promoter had xx s. and v s. for the quene.	
Receyved of Thomas Daye for iii peces of karsaye put to sale contrarye to the act and seased for the quene	xxx s.
Receyved of the 11 Streaches and Bowldry of Walden for clothes forfeited	x s.
Receyved of the Wardens of the Pewterers for pewter forfeited	viii s. iiiii d.
Receyved of Smythe Twyffyn and Hadstack for	ii s. viii d.
Receyved of Mr Coxe of Brystow for viii peces	xl s.
Receyved of Mr. Chambers Habberdasher for a ... cappe sold	
Receyved of Mr. Kytchyn Goldsmith for byeinge of	x s.
Receyved of Mr. Hamlett for mattresses forfeited	v s.
Receyved of Geo. Alys for the lyke	v s.

At the bottom of the page, in a different handwriting are the three following items of disbursement:

Item, for the women for the sewing ii s.
Item, paid Wyllm Grange for a cappe ii s. iiiii d.
Item, for our chargys at the fayre x s.

New Charter.—1553. On the Feast of St. Mark the Evangelist, it was agreed by the Mayor, Alderman and Twenty-four, that the Town for their possessions and the other possessioners [owners of stalls and booths] in

Sturbridge fair, should pay the King (Edward VI.) 1000 marks for the fine for Sturbridge Fair; that the body of the town should pay one half of all charges of obtaining the new charter, and the town for their possessions and the other possessioners to pay the other half. It was also agreed that the Recorder and others should have authority under the Common seal to sue to the King's majesty and his honourable Council for a new Charter for the fair; and further that Mr. Robert Chapman and Mr. John Rust should pay no money towards the charges of the charter, in consideration of their pains in obtaining thereof, and £90 1s. 0d. was paid then towards the first instalment of 200 marks for the King's fine.

The Charter was not however obtained in this reign, though the 200 marks were actually paid. "Annals," ii. p. 70. See 1555, 1561, 1574, 1576, 1577, 1584, 1589—when new Charter was obtained by the town.

1555. 30 Jany. The Mayor, Aldermen, Twenty-four and Bailiffs gave authority to Mr. Robt. Chapman and Mr. John Rust to go to London to make suit to the Council touching the supplication made to them for the payment of the 800 marks; and for the setting forth and making the patent for the confirmation of Sturbridge fair.

1556. The question of Lynn Fair—apparently as to its revival—came on again this year, and on 2nd Aug. the Corporation ordered that the Mayor, Mr. Chapman, and Mr. Rust should frame an answer to a letter from the Bishop of Ely concerning Lynn Fair, and make objections in shewing why the same ought not to be had; and that the Town Clerk should carry the answer to his Lordship.

1557. On 23 June the King and Queen (Philip and Mary) by letters patent, granted to the Mayor, bailiffs and burgesses, a certain annual rent of £8 15s. 2d. issuing out of shops and booths in Sturbridge, which had been granted for the maintenance of *obiits* and anniversaries (see 1459, 1496, 1503, 1547), and alms to the poor of the town. The letters patent state, that this Rent had been seized into the hands of the Crown, under the statute of Chantries (1547) and that £6 10s. 6d. part thereof had been paid to the mayor, bailiffs and burgesses for distribution amongst the poor. This is expressed to be made from the King and Queen, that the rites and ceremonies of the Catholic Church should be maintained, and the wills of

the donors performed! And also because the shops and booths in Sturbridge Fair, *being of customary tenure, were not within the statute of Chantries.*

The same King and Queen granted the following tolls payable for the merchandise brought to the fair. This is important as showing the nature of the goods brought at this period:

Custom and Toll due in the time of Sturbridge Fair for divers wares brought thither:

For every cade of red herrings at the bying	1 d.
For 100 of ling	6
For every 100 of wabboks ling	4
For every 100 of coddcs	4
For every 100 of wabboks coddcs	2
For every heap of fish to be retailed laid upon a mat of the old assize	2
Of every jule of cured fish for groundage	2
Of grinstones every foot	½
Of every person that retaileth soap, for his standing in the fair	2
Of every hundred wainscot	8
Of every dicker of leather	2
Of every 100 calf-skins	4
Of every 100 sheep-skins	2
For groundage of every load of pales, shovels, pack-saddles, cart-saddles, and goddends	4
Of every great salt-stone	2
Of every bushel of mustard seed	½
Of every load of baskets, farms skepps leeper and such other	4
Of every stranger selling freshwater fish in kemblin	1
Of every cart load of oisters for cart and standing	4
Item a barrel of osmonds	2
Item a barrel of pitch	2
Item a barrel of tar	2
Item a barrell of herrings	2
Item a barrell of cork for dying	2
Item for every barrel of cured fish	2

Item a barrel of salmon	4
Item a barrel of oil	4
Item a barrel of honey	4
Item of sturgeon a barrel	4
Item a barrel of sope	4
Item a barrel of eels	4
Item a barrel of birdlime	4
Item cart laden with poles	1
Of every cart loaden with heboldines	1
Of every horse with a wombtye loaden	½
Of every cart loaden with beyondsea classhold	2
Item 100 of beyondsea classhold for groundage	1
Of every cart loaden with English classhold and lying down	2
Of every horse sold	1
Of every load of hobboldynes for groundage	1
Of every cart loaden with faggots, besides the fall penny	½
Of every cart loaden with smiths coals	2
Of every cart loaden with timber	2
Of every cart loaden with lathes	2
Of every cart loaden with boards	2
Of every cart loaden with cheese	2
Of every load of boards, hurdles, spokes, and lathes, for groundage	2
Of every load of hewn timber for groundage	2
Of every fodder of lead, for groundage	2
Of every cart or wayne loaden with lead, for groundage	2
Of every load of iron, for groundage if he have no booth	2
Of every cart loaden with iron, for laying down	2
Of every cart loaden with hayres	2
Of every cart loaden with sackcloth	2
Of every cart loaden with any manner of merchandize then aforesaid, at lying down, besides the groundage	2
Of every cart or wayne loaden with nails, at lying down	2
Of every person selling nails, for groundage	6
Of every keel or boat that beareth a helm, as oft as he cometh	2

Of every keel or boat that beareth no helm, as oft as he cometh	1
Of every heap of coals,	4
Of every cart loaden with merchandize discharged at Barnwell,	2
Of every cart charged with merchandize at Barnwell, other than the inhabitants' goods of Cambridge, coming from the Barnwell to the fair and there discharge,	1
Of every cart charged with the inhabitants' goods at Cambridge or at Barnwell and discharged at the fair	½
Of every cart loaden with merchandize or wayne goying out of the fair,	2

1558. The University of Cambridge being in want of money the question was again raised (see 1547) of selling to the Corporation of Cambridge all privileges in this fair. The proposal met with strong and successful opposition from the Provost of King's College (*vide* Fuller's "Hist. of Univ. of Camb."). In the "History and Antiquities of Barnwell Abbey," 1786 (p. 78, part ii.) there is the following: "Robert Brassil ... who being Vice chancellor, in 1558, was much commended for his wisdom in withstanding the heads & masters of Colleges in this universitie; when, as they had all except him, consented & concluded to sell all their wrightes and jurisdictions in Sturbridge Faire to the mayor, bayliffes & burgesses of the towne of Cambridge."

Drapers, Merchant Taylors, and Clothworkers of London.—On 3rd Sept. 1557, a letter was addressed to the Vice-chancellor and Proctors of the University by Nicholas Hethe Archbishop of York, Lord High Chancellor of England, and Thomas Thirleby, Bishop of Ely, stating that complaint had been made unto them by the Drapers, Merchant Tailors, and Clothworkers of the City of London, that they repairing theretofore with their cloths to Sturbridge fair, had been troubled in the sale thereof, through unlawful searches pretended by divers light persons more for their own private gain and the vexation of the merchants than for any good intent to have the Statutes duly executed. Their Lordships therefore required, that in future no such unlawful searches should be made by any such light persons, and that merchants should not be otherwise disquieted or ordered than was ordained and provided by the Statutes of the realm. "Annals of Camb." ii. p. 135.

1559. There were again disputes between the University and Town of Cambridge respecting the watch at time of the fair. The following memorandum drawn up by the mayor embodies the views of Lord North and the Lord Chief Justice of the Common Pleas thereon:

After our verye hartie commendacions, Where we of late with the advise and consent of the rest of the Justices of peace of this Shire take order for the better & more quyet government of this shire, That duringe this Stirbridge fayre tyme the watches for the Universitie & Towne of Cambridge sholde lovinglie joyne together & be dabled, whereof our verye frende Mr Baron Frevyll dyd take upon him to advertyse you of the same, by occasion wherof we dyd forbear to wryte unto you therein. We now ar enformed that ye ar not as yet fully agreed to joyne together in the execucion of the same for certaine respects that ye have to the preservation of your liberties, Wherefore we do feare great inconveniens and perill may growe, onles ye do spedelye conforme yourselves thereunto. These are therefore to advertyse you & requyre you for the more quietnes of this cuntrie & Towne, and for the Queenes Majesties better servyse that ye forthewith conjoin yourselves togethers accordingle, notwithstandinge any persuasion to either of you to the contrarye.

And furthermore understandinge that there ar allredie a nombre of Sturdye Vacabonds & masterles men come unto Cambridg for some yll purpose as it is supposed; We therefore do likewyse desyer & requyre you in hir majesties behalfe, that ye do take a great respect unto the apprehendinge of them, and to the safe keepinge of them untill the faire be past. We meane such as come not to the intent to labor, or otherwise lawfullie to get their livinge prayenge you that if upon eny examinacion of anye of them ye shall fynde eny matter worthe to be further examined & tryed out, to advertyse us immediatelie therof so that we maye ye better ayed & assist you for your better service & procedinge in the same, nothinge doubtinge but ye will lovinglye & effectually consider the premisses in suche wyse as both you and me maye avoide displeasure and blame. And thus we byd you hartelye farewell. From Carleton this Mondaye, the iiij of Septembre, A^o 1559.

1561. The Corporation appear to have renewed their application for a grant of the fair. It was ordered that the expense of the inquisition for the new charter should be borne by the town.

1562. There was a great flood, so that the portion of Sturbridge called the “Waterfair” could not be occupied by the booths accustomedly built there. Whereupon the Corporation directed Robert Chapman and others to assign another place for such booths for this year’s fair only.

1567. This year George Aylston, merchant, on behalf of the Corporation of *Sudbury* instituted proceedings in the Duchy Court of Lancaster against Christopher Fletcher alderman of Cambridge, for taking his goods at this fair. Fletcher alleged that he took the goods as a distress damage feasant, and it seems had a decree in his favour.

1568. *Citizens of London*.—On 4th Nov. the Corporation of Cambridge deputed Roger Lord North the mayor, Francis Hinde Esq., and the Counsel-at-law of the town to deliberate in what way it could be contrived that the citizens of London might return to Sturbridge fair, as of old they were accustomed. “Annals,” ii. p. 235.

1571. As early as 1545 there had been passed by the Corporation of Cambridge “an Ordinance for the setting of Willows.” This ordinance “for planting willows on the commons, drains, moors, marshes and fens of the town” was renewed this year. Every alderman might set six score of poles and every burgess four score up the banks of any surface, drains, ditches, &c. They to lop and top for their own use and advantage, cleansing from time to time the drains &c. on which the same were planted. The said willows to be held on the same terms as the booths at Sturbridge fair were held by the burgesses, &c. See 1575.

1574. On the 21st Nov. Dr. Perne, Vice-chancellor, wrote to Lord Burleigh on the subject of the Plague visitation in Cambridge, and in the postscript to the letter made the suggestion of a new charter being granted to the University as follows:

I am informed that there is sute made to y^e Queen’s majestie by some of her highnesse privie chamber for Sturbridg faire, for that it hath stand seased unto her highnes hand sithence y^e tyme of the raign of her highnes father, the w^h if it might please her highnes to bestowe to the University, there might be such a worthie and perpetual monement made by the rent thereof, as her majestie did most graciously promise at her last beinge at Cambridg in her highnes Oration made there, & the Townesmen that be nowe occupiers thereof, yeldinge a reasonable rent to y^e university for their

severall bootes. Thus I am bold to put your honor in mynd of this, referringe the whole matter to your honors best consideracion to do herein as yow shall thinke good.

1575. At a Common Day held in the Round Church (probably on account of the Plague being near the Guildhall) on the 25th March the Corporation made a Declaration as to the tenure of booths at Sturbridge fair of which the following are the principal portions:

Forasmuch as some question hath bene made of the maner of tenure of booths in Sturbridge Fayer, some houlding one opinion, & some another, everie man speakinge his fantasie therein, affirminge his owne opinion to be the true custome, and that it ought to stande for truethe; for that it hath not bene generally knowne to all men whether any Custome hath remained written in any records of this towne concerninge the same fayre, yea or no:

Commandment therefore had been given to the Town Clerk to search the records of the town. This had been done and “it is founde in the oulde and ancient record called the Cross Booke of the sayde Towne, that remaineth there written.” This I have already given, under date 1403. The same was reaffirmed; and it was now ordered that every burgess claiming a booth must have his title thereto entered in a book to be kept by the Corporation for that purpose; and thereafter he might alienate the same to any other free burgess by due entry in the said book in manner and form provided.

1576. 8th Dec. The Corporation sealed a power of attorney (dated 30th Nov.) authorizing the Recorder and others named to act in all matters before the Queen and her Council, and in all causes and businesses touching the town, particularly the redemption and confirmation of Sturbridge Fair. To this end the Corporation empowered the Mayor and others to rate the possessioners of booths in the fair towards the payment of 1000 marks for the fine for the fair.

On 13th of same month Lord Burleigh the Chancellor, and the Earl of Leicester High steward of the University wrote to Dr. Goad the Vice-chancellor, desiring that there might be a conference between the heads of the University and Town relative to the contemplated grant of the fair. Lord Burleigh it seems had obtained from the Queen a declaration that no petition of the townsmen respecting their fair should be received to the prejudice of the University.

A meeting took place early in the following year but no friendly understanding could be arrived at.

1577. The matter of renewing the charter of the fair was again before the Queen. On a petition being presented on behalf of the Corporation the Royal reply was “that she would not take away any privileges that she had granted the University, but would rather add to them”; and for this declaration the University returned her a letter of thanks. “Annals,” ii. 358.

At the fair this year the Mayor, Recorder, and Aldermen of the Corporation ordered a haberdashery booth to be pulled down. Reason not stated. The Corporation sustained the order.

The following articles were purchased at the fair for the household of Lord North. The record of prices is particularly important:

A C. Salt Fish, Lix^s; whight salt, iij stone, 1 qt. iij lb. xiijs; bay salt, iij qt. Lvjs; 2 kettles, xiijs vjd; ix dust baskets, iijs; vj pailles, ijs vjd; 2 firkins of soape, xxix^s; Feather bed tike, xix^s; a Jacke ijs ijd; a frieng panne, ijs ijd; hors meat xvjd; 20 lb. of raissins, v^s; 20 lb. Corants, vijs vjd; 10 lb. prewens, xx^s; Liiij lb. gon Powder, Lviijs vjd; 14 lb. of matches, ijs ix^d; dogg cowples xx^d; 10 lb. Sugar, xij^s vjd.

1578. The “provision bought at Sturbridge Fayer” for the household of Lord North this year, comprised: Codds bought ccccli. vij^{li} xv^s; Soape bought 2 firkins xxviijs; Salte bought iij^{li} xiijs iijs; Lynen clothe pd. for xxxvij^s.

1584. An unsuccessful attempt at accommodation between the University and the Town was made in 1580. The former sought for additional privileges which the latter would not grant. This year a more successful attempt was made, and except upon three points, the parties had agreed to “both books” (*i.e.* draft charters). The points were these:

1. As to an interpretation of “common ministers.”

2. The demand of the University is unreasonable to have all graduates in England go toll free. “That the towne assentith as they ment it at the first, That all graduates for lernings sake abydyng in the Universety or Towne shall goe toll free.”

3. The town had already assented that the University should have more retained servants than they had before. "But squyre beadalles should eche of them have one reteyned servaunt priviledged (being themselves but servauntes), The Towne thinkith it inconvenient, and neither did, nor yet doth assent therunto: for all other matters concerning both bookes, both parties are agreed. So as that be perfourmed which hath bene concluded in former conferences."

1586. The negotiations between the University and the Town were renewed this year. The following document shows the position of the negociation, as also that the town were to have the new charter; it also shows the extreme jealousy with which each body viewed the acts and proceedings of the other—it was a genteel manifestation of "Town and Gown" divergencies, which have become historical:

Sturbridge. The towne hath obtained of her majestie a graunt of Sturbridge feyre, to the booke of that graunt the universitie addith a proviso to this effect viz that neither that graunt nor anything therein conteyned should any ways prejudice the universitie of Cambridge, or any member thereof, in such thinges as the universitie enjoyed before the sayd graunt! The towne sayth that that proviso is to large, forasmuch as it may be extended to all thinges which the universitie befor enjoyed, as well within the feyr as els whear, we confesse it is so; and we say it is great reason it should be so, least under the colour and pretense of Sturbridge feyre, they might carry away some other of our commodities w^h her highness never meant. So shortly we say thus muche; seing our proviso is nothing but a restreint of their book: How farre so ever their book reachith, so farre reachith our proviso and no further.

This is the brief our present difference, &c. &c.

This year was simplified the form of procession made in proceeding to read the Proclamation of the University.

New Charters.—1589. The proceedings already recorded (with some others in 1587 not specifically referred to) ended in the grant of new charters of the fair to the Town and also to the University of Cambridge respectively. The charter to the town passed the Great Seal at Drayton on 15th Aug.; that to the University on 30th Aug.

The charter to the *Town* commences with a recital that previously to the 30 Henry VIII. the mayor, bailiffs, and burgesses had from time immemorial had and used a fair called Sturbridge Fair held at Barnwell and Sturbridge, in the county of Cambridge and within the liberty of the town, beginning on the Feast of St. Bartholomew the Apostle, and continuing from thence till the fourteenth day next after the Feast of the Exaltation of the Holy Cross; which fair, from the advantages of the place, its contiguity to the University, and the fitness of the season, *far surpassed the greatest and most celebrated fairs of all England; whence great benefits had resulted to the merchants of the whole kingdom, who resorted thereto, and there quickly sold their wares and merchandises to purchasers coming from all parts of the Realm* to buy and provide salt-fish, butter, cheese, honey, salt, flax, hemp, pitch, tar, and all other wares and merchandises, and from the profits of which fair the mayor, bailiffs and burgesses levied the greatest part of their fee-farm, and supported and maintained the town in its ways, streets, ditches [sewers] and other burthens.

Of the Quo Warrant in the 30th Henry VIII. and the subsequent proceedings thereon. The Queen had been requested to grant a charter and had assented “moved thereto by royal pity, by a sense of the utility of the fair to the town and to the merchants of the kingdom, and that the town should be lightened in its burthens, and increased and honoured under her prosperous and peaceful government.” The Queen therefore delivered out of her hands and conferred to the mayor, bailiffs, and burgesses and their successors, the fair in question, with all profits, commodities, courts, profits of courts, authorities and jurisdictions, booths and power of building booths in the accustomed places in the fair.

All rights had or enjoyed by the *University*, or its officers under any gift, grant, or confirmation from the crown, or any act of parliament, or “used for the greater part of 20 years then last past” were reserved to it.

Power given to Corporation to make rules and statutes for the peaceful and quiet government of the fair; and with respect to the building and removing of booths, and the disposition and assurance thereof by will, gift, surrender or otherwise; and also for placing the several arts, occupations, mysteries, merchants, workmen, and others holding booths in the fair in the places assigned and accustomed to the same arts &c. and especially in that part of the fair called Cheapside. Such Ordinances &c. not to prejudice the

right, title, or interest of burgesses holding or possessing booths according to the customs and ordinances of the town, or to derogate from the privileges of the Chancellor, masters, and scholars used during the greater part of twenty years then last past. New rules might be altered and revoked as circumstances should require.

The sellers of mercery or grocery ware were forbidden to be stationed or to occupy any booth in the fair for selling such wares except in Cheapside. Woollen cloths were to be exposed for sale only in the “Duddery.” Goldsmiths were not to be stationed, or expose their goods to sale any where except in Soper Lane, otherwise Goldsmith’s Row; and pewterers and braziers were in like manner to be confined to Pewtry Row and Brazier Row.

The burgesses who held any booth for life or years, or who should afterwards acquire any, were to hold the same as theretofore.

The charter to the *University*, expressed to have been granted by the authority of parliament, contains provisions relating to the town as well as to the fair. I shall confine my abstract to the latter. It was granted out of love of the University, to confirm and establish the privileges, liberties, immunities, pre-eminences, authorities, powers, jurisdictions, profits and commodities of that body in Sturbridge Fair, as granted by the charter she had given in the 3rd year of her reign. She granted to the Chancellor masters and scholars and their successors solely and wholly for ever the office of “Clerk of the Market,” and the assay of bread, wine, and ale or beer, and the keeping and governance of the same and the correction and punishment of offenders, with the fines, forfeitures and amerciaments thence arising in the fair and the precincts of the same. Also the supervision of measures and weights, and the jurisdiction to inquire of all forestallings, regratings, and ingrossing of victuals and other things and wares within the fair or its bounds and precincts, and to banish, chastise, and correct according to the laws of the realm and the customs of the University. Also right of search in the fair for harlots and vagabonds.

The proclamation of the fair was to be made by the University and Town in alternate years. All goods carried to or by the fair, or to the town, or in the river to the use of the Chancellors, masters, scholars, or colleges, or to

or for any of the graduates residing within the town or University, or within five miles thereof to be *free of toll*.

The University to have exclusive jurisdiction in suits wherein scholars, scholars servants “or common minister of the University” were one of the parties. Also to hear and determine complaints concerning victuals or contract for victuals arising in the fair, except in cases between a burgess and a foreigner not privileged of the University, which should be heard before the Mayor, &c. The court of the Chancellor &c. within the fair to be a court of record with all powers according to the statutes of the realm, or the laws and customs of the University. The last named court to be held within the fair or its precincts, and the Queen granted a sufficient piece of ground for the purpose. But if by flood or other chance the accustomed place should be unfit another place was to be provided.

The University to have exclusive authority to inspect, search, try, assay and gauge all victuals in the fair. The daily inspection and search of all other wares (except leather and sackcloth) to be made by four suitable men, appointed by the Chancellor and Mayor respectively. And the court for adjudication upon the same to be held by the Chancellor and Mayor in alternate years, each aiding the other in the performance of the duties. The remaining numerous provisions are not necessary to be cited in view of our present purposes.

It was the belief of the townspeople that this charter to the University had been obtained by reason of a betrayal of the rights of the town by the then Mayor. And the following was recorded at the foot of a transcript of this charter. “One Gawnt was Mayor of Cambridge, who at London assented to these new jurisdictions of the Universitie, and therein betrayed the towne, who shortly after was putt [out!] of his Aldermanshipp & lived the remaynder of his life in great want and miserie, and hatefull to all the townsmen.”

1591. On 30th Aug. the Corporation made orders that all the provisoes, conditions and articles contained in the new charter touching booths in Sturbridge Fair, should be inviolably kept and observed in all points, according to the tenor, true intent and meaning of such charter: that it should not be lawful to any tenant or owner of any booth to admit or suffer any merchants or artificers of sundry wares to stand and sell wares in one

booth: and that it should not be lawful to any merchants or others bringing wares to Sturbridge Fair to sell any wares, except salt, out of any vessels upon the water there, until the fish booths were let to farm.

On 15th Sept. Richard Parish of Chesterton “a very violent and turbulent person, attacked and wounded with a dagger some scholars who were with him in the ferry-boat between Chesterton and Sturbridge Fair. He was arrested by a master of arts of Trinity College and others, but was rescued from them by the prentises in the faire.” A new manifestation of the “town and gown” troubles.

1592. On 28th Aug. the Corporation of Cambridge made orders that none but freemen should, in time of Sturbridge Fair, sell and deliver fish in any hut or vessel on the water, until the fish booths in the water-fair were let, and then to make composition with the bailiff of the ward. And that all except freemen, who brought pitch and tar to the fair to be sold, should pay 2s. per last for grinding to the bailiff of the ward; and that if any suit or controversy at law should arise about executing the premises, the charges should be borne by a levy to be assessed upon the burgesses.

1595. Memorandum, that this daye and yeare by a common consente, it is agreed, that the order made ... Feby anno Regni Hen. Octavi 13^o concerninge enjoyers of booths to dwell within the towne; and shewing in what time he shall sell them yf he go out of the towne, shall stand, remaine and be in full force and effecte; and that no maior of the towne of Cambridge from henceforthe shall propounde any grace, or do any acte or actes, devise or devises whatsoever, to the breache or violating thereof; and that the maior of this towne, yearly to be chosen, on the daie of his election, or on the daye that he taketh the oathe against vintinge, shall make solemn oathe to the observation hereof “Hist. and Antiq. of Barnwell Abbey” (p. 96, part ii.).

1596. 16th Aug. The Corporation made an order that every burgess who should thereafter buy any booth or booth-ground in this fair should at the time of his admission thereto, make solemn oath before the mayor, that he had bought the same simply to the use of himself and his heirs, and not to the use of any foreigner or foreigners, without fraud, collusion, or deceit.





CHAPTER XI.

THE SEVENTEENTH CENTURY.

1600.

On 16th Aug. the Corporation of Cambridge made ordinances that no bailiff should “by any wayes, meanes, or culler whatsoever demise or lett to ferme his bayliwich within this Town or Fayers, or eny profitts belonging to the same, to eny persone or persones whatsoever, uppon payne of disfranchisinge.”

1601. New causes of dispute arose between the University and the Town, this time about the “King’s beam” (*Pondus Regis*) or the right of the former to a beam for weighing articles sold at the Fair. The Queen (Elizabeth) wrote to the parties:

To our loving friends the Vice-chancellor and Proctors of the University of Cambridge and the Mayor Bailiffs and Burgesses of the Town:

Whereas there were at the last Sturbridge fair some contentions about a pair of scales used by you of the University: We require you of the Town in all peaceable sort, to suffer the University to exercise and use the same in the accustomed place as they have usually done for the most of these ten years last past; and what contention soever shall seem to arise about the same scales, either for the interest of the ground whereon they are settled, or for the payment of any rent for the same: We think it fit and so we require of you, that it be peaceably reconciled hereafter in a lawful course, without giving any occasion of disorders. And so we heartily bid you farewell. Aug. 27, 1601.

1603. The kingdom was threatened with another visitation of the plague. The new King (James I.) issued a Proclamation, dated from Hampton Court 8 Aug., whereby it was ordained that for “desire of preventing an universal contagion among our people” (*inter alia*) Stourbridge Fair should not be held nor anything appertaining to it at the time accustomed, “nor any time till they [it] shall have been licensed by us.”

1604. On 23rd July this year the King issued the following mandate, prohibiting all idle games, plays, or shows in or within five miles of Cambridge; and under its authority the regulations of the Fair were considerably modified:

James by the grace of God King of England Scotland France and Ireland defender of the faith, &c.:

To our chancellor and vice-chancellor of our university of Cambridge in the County of Cambridge, and to all and singular our justices of peace mayors sheriffs bailiffs constables gaolers and all other our ministers and officers within the said university and the town of Cambridge and county aforesaid and to every of them greeting,

For the better maintenance safety and quietness of that our said university and all and every the students there, and to remove take away and prevent all occasions that may tend either to the infecting of their bodies or minds, or to the withdrawing or alienating the younger sort from the courses of their studies there intended, we do by these presents authorize will and command you our said chancellor and vice-chancellor of our said university, and either of you and your successors, that you do from time to time for ever hereafter by virtue hereof, wholly and altogether restraine inhibit and forbid as well all and all manner of unprofitable or idle games plays or exercises to be used or made within our said university and the town there, and within five miles compass of and from the said university and the town there, and within five miles compass of and from the said university and town, especially bull-baiting, bear-baiting, common plays, publick shews, interludes, comedies and tragedies in the English tongue, games at loggets, nine-holes, and all other sports and games whereby throngs concourse or multitudes are drawn together, or whereby the younger sort are or may be drawn or provoked to vain expence loss of time or corruption of manners; as also all and all manner of persons that shall go about to publish act set out or make any such unprofitable or idle games publick plays or exercises within the said university or town or within five miles compass of or from our said university or town, any indulgence, privilege, liberty or authority, by us granted or to be granted to any our officers or servants, or to any other person or persons whomsoever, to the contrary in any wise notwithstanding.

Provided that it is not our pleasure and meaning hereby to abridge the students of their accustomed exercises in any kind whatsoever within their several colleges.

And if any person or persons under colour pretence or virtue of any licence or authority by us or any other whomsoever granted or to be granted, or by any other means colour or pretence, shall resist or refuse peaceably to obey your commands herein, then our will and pleasure is and we do hereby authorize you our said chancellor and vice-chancellor of our said university, and either of you, and your successors and deputy or deputies of you and either of you and your successors, from time to time to apprehend all and every such offenders, and them to commit to prison either in the castle of Cambridge or any other goal within the town of Cambridge, there to remain without bail or main-prize until they shall willingly submit themselves to your said commands and abide such further order as to you in your discretions shall be thought meet; willing and by these presents commanding all you our said justices of peace, mayors, sheriffs, bailiffs, constables and gaolers, and all other our said ministers and officers, that upon intimation and shew of this our will and command herein, you and every of you being required thereto, shall be aiding and assisting to our said chancellor and vice-chancellor of our said university, and their successors and their and either of their deputy or deputies from time to time in the due execution of the premises according to the purport and true intent hereof, as you will answer to the contrary at your peril.

Given under our signet at our palace of Westminster, the three and twentieth day of July, in the second year of our reign of England France and Ireland and of Scotland the seven and thirtieth.

1606. In the records of the Skinners Company there is an item under this date “To the wardens for their allowance in riding to Stourbridge Fair £3: 6: 8; and 13s. 4d. to me the Recter Warden for my pains.” But very soon after this period there are signs of a falling-off in the importance of the fair in this particular: In 1616 it is the accountant who receives “in allowance towards his charges in riding to Stourbridge Fair £6.” The wardens had ceased to attend personally.

1612. In the “Letters of Archbishop Williams” (1866) is one dated from the Proctors’ booth in the fair this year.

1613. In Dr. Nathan Drake's "Shakespeare and his Times" it is recounted that at this date the fair had acquired so great a celebrity that Hackney coaches attended it from London. Subsequently not less than sixty of those coaches plied the fair (see 1688, &c.). He adds that vast quantities of butter and cheese found there a ready market; that it stocked the people in the counties of Norfolk, Suffolk, and Essex with clothes and all other necessities; and that the shopkeepers supplied themselves from hence with the commodities wherein they dealt.

1615. On the 22nd June the Corporation ordered that Mr. French the mayor should have an irrevokable power of attorney under the Town seal to prosecute with effect all the suits already begun against those who *kept any fair or market to the prejudice of the town*, and to commence and prosecute suits against all who had done or should do the like; and it was ordered that all charges should be paid by the treasurers on demand.

1620. On 17th Sept., there was held a session of Goal Delivery in Sturbridge Fair, in the place where the courts there were usually kept ("Annals of Camb." iii. p. 136). No explanation of the circumstance is given.

1622. The suit concerning the right to erect booths in the yard of Sturbridge Chapel which had been pending for some time was this year terminated. The Corporation obtained a grant of the Chapel from the Queen.

1625. In consequence of the Plague again being prevalent in the kingdom Charles I. by Royal Proclamation forbids the holding of this, as also Bartholomew's Fair, by reason of the usual "extraordinary resort out of all parts of the kingdom" of persons to attend this fair, which would if held lead to the common danger. This proclamation is given *in extenso* in our chapter on "Legislation."

1630. The plague existing in Cambridge the holding of this, and also Bartholomew and Southwark Fairs, was prohibited by Royal Proclamation.

1633. A question arose as to Dower, or the right to dower of the widows of booth-holders in this fair; and the Corporation on the 14th May enacted the following declaration:

The custom in such case is (and so hath ever time out of mind been used) that the relict and widow of her husband (who in his life was seised of

booths in Sturbridge fair) shall have her dower of such booths only whereof her husband was seised and died intestate. But where the husband in his life time made sale of his booths or devised them by his last will and testament, the wife and relict in such case shall have no dower of any booths.

1636. The King (Charles I.) addressed a letter to the Vice-chancellor of the University and the mayor of Cambridge (dated Hampton Court, June 14), setting forth that the town had been often infected with the plague by means of persons repairing to the fairs, with goods brought from infectious places, whereby the scholars had been forced to forsake their studies and scatter themselves for safety unto remote parts of the kingdom: to avoid the like mischief from the contagion then raging in London and other places H. M. required the Vice-chancellor and Mayor to take order that Midsummer fair should not be kept this year, nor the goods of Londoners or others be sold within the town or three miles of the same. Refractory persons were to be bound to appear before the King or the Privy Council to answer the contempt, or on their refusal might be committed to prison. All justices of the peace of the county and town were commanded to be aiding and assisting.

In consequence of this letter it was feared that a similar order might be made as to Sturbridge Fair; and accordingly on Common Day, held 2nd Aug. steps were taken by the townsmen in view of procuring this fair to be held. But the result was the following letter dated 21 Aug.

To our trustie and wel beloved The maior & Aldemen of our Towne
of Cambridge.

Charles R. Trustie and wel beloved we greete you well, whereas out of our royal care of our Universitie and Towne of Cambridge, and to prevent the encrease and further spreading of the plague within our Kingdome by such a publique concourse of people as doth usually resort to Sturbridge faire from all parts thereof, wee have thought fitt to forbid the keepinge of the said faire for this yeare, and have accordingly given order for signifyeing our royall pleasure therein by a Proclamacion, which requireing some time for the solemne publicacion thereof; to y^e end ye may not in the meane while proceede to proclaime and sett forth the precincts of the said

faire, as wee are informed that your custome is to doe on the 24th of this presente moneth, Wee doe by these our Letters declare our said purpose to you of putting off the said faire for this yeare. And in consequence thereof, Our will and pleasure is, That you now forbear to make any such preparacion to the said Faire or to doe any act whatsoever apperteyning thereunto, under paine of our royal displeasure.

Given under our Signett at our Courte at the Castle of Warwicke, the 21th day of August, in the Twelke yeare of our raigne 1636.

The Town Clerk, the Attorneys of the Town Court and other of the Corporation were ordered to attend at the fair-field to publish his majesty's pleasure and command. This was accordingly done on 24th Aug., the letter being read at the usual place of proclaiming the fair.

A proclamation prohibiting the fair was issued; and although it bore date prior to the Royal letter was only received after it. The proclamation contained this passage:

... And his majesty doth hereby further charge and command, under the like penalty, all Citizens and Inhabitants of his City of London, that none of them for this present year, shall bring or send any of their Goods or merchandize to *Ely*, *Newmarket*, or any other place near to the University of Cambridge, at or about the usual time appointed for Sturbridge fair, which were but to transfer that fair to other places, with no less Danger of dispersing the Sickness throughout the Kingdom. Given at our Court at Warwick Castle, the 20 day of Aug.

1637. The fair was also again prohibited on account of the prevalence of plague.

1638. Although the Plague prevailed this year also, it seems that the fair was held. On the 24th Aug. the Corporation imposed a rate of 1s. in the £ on the booth-holders for defraying the charges of procuring the fair to be kept again—"being otherwise in danger of being put by"; and for endeavour of a like nature in the two preceding years.

1644. A writer in the parliamentary interest referred to the "Goodly and full Fair" held at Sturbridge this year "with free trade and comfortable

commerce as was formerly accustomed in our former most peaceable times.”

1647. The University complained to the House of Lords against the bailiffs of the Corporation for contempt of the order of the House in favour of the University in the matter of the “Stourbridge fayer privileges.” The matter appears somewhat obscure.

1649. This year an event occurred which had a considerable though indirect bearing upon this fair. The “Act for the Draining of the Great Level of the Fens” was passed. This led to considerable alterations in the navigation between Lynn and Cambridge. The tide, which formerly flowed up as far as Ely—bringing merchandise at easy charge up to that point—did not, on the completion of these works, come within twenty miles of that place. In 1653 the University and Corporation of Cambridge justly petitioned Parliament on the subject (“Annals of Camb.” iii. p. 455). I believe no redress was obtained. There were obviously some counterbalancing advantages in lessening the frequency of floods, and in rendering better roads possible.

1650. At a Common Day, held 24th Aug., the Corporation, taking notice that of late years there had been controversies about a preaching minister for Sturbridge Fair, agreed that the power of election being in the mayor and aldermen, such preacher should be elected yearly on the day of the election of mayor, bailiffs, and other officers. See 1710.

1654. About this time the Corporation of Cambridge erected a banqueting-room and court-house at Sturbridge fair. It was commonly called the Mayor’s House. At a later period (1670) Some disputes arose regarding this building being erected upon grounds subject to the right of commonage.

1655. When the office of “Lord of the Taps” was founded does not appear, but on the 20th Aug. this year the Corporation made the following order:—“It is agreed that xx^s shall be given out of the moneys in the chest to Michael Wolfe towards the buyinge of a Coate against Sturbridge fayer now next ensuinge, he being Lord of the Taps this present yeare.” The coat in question was a crimson one, gaily decorated with taps. The office of the Lord of the Taps was to taste the ale in any or all the booths in the fair, and ascertain if it were in suitable vendible condition. “Ned Ward” speaks of

this functionary (1700) as going “arm’d all over with spiggots and fossets, like a porcupine with his quills, or looking rather like a fowl wrapped up in a pound of sausages.”

1658. In “Worthington’s Diary” there is an entry made at the Vice-chancellor’s court at the fair. In Brathwaite’s “Honest Ghost,” published this year (p. 189), there occurs the following:—

“When th’ fair is done, I to the colledg come,
Or else I drink with them at Trompington,
Craving their more acquaintance with my heart,
Till our next *Sturbridg faire*; and so we part.”

Local events were associated with the fair, as the most prominent recurring incident in the district, and dated by reference to it.

1660. Worthington speaks of this fair as “the Carpenter’s harvest.”

1665. The fair was again prohibited this year on account of the prevalence of the plague.

1666. The like by an order in Council “to prevent the spread of the infection.”

1668. Pepys received so earnest an invitation from his kinsman, Roger Pepys, that he resolved to let his wife go to this fair. His entry, under date 15th Sept., is:—“Up by times ... took wife and Mercer and Deb. and W. Horner (who are all to set out this day for Cambridge, to cosen Roger Pepys to see Sturbridge Fayre) ... saw them gone, there being only one man in the coach beside them.” He probably followed some days after, or about the 29th; but unfortunately the diary is a blank up to 11th October. It would have been matter of some interest to know his views of this great gathering.

Edward Kemp preached a sermon at St. Mary’s Church, Cambridge, on the Sunday before the fair, which was published.

1673. In the Vice-chancellor’s “Little Black Book” is given a copy of the following letter from Charles II. restoring to the University the right of weighing hops, which had been assumed by the Town during the Civil War troubles:—

Charles R. Trusty and well beloved we greet you well. Whereas wee are informed from our University of Cambridge that severall of their rights and priviledges (which they have heretofore injoyed by charter and custome) have in these late yeares of publick distraction been intrenched upon by our towne of Cambridge, and some of the officers thereto belonging, particularly the right of setting up the sole publick beame for the weighing of hops and other things of great bulk in Sturbridge faire, which did anciently belong to the said University and their officers, and which as we are informed (besides other evidences) appears by the acts of your courts registred in the mayoralty of Mr Foxton. Now wee being desirous to keepe a good correspondence between our said University and towne, and that either body should enjoy their just rights, have thought fitt to request you to permitt our University and their officers (till you shall shew sufficient cause to the contrary) to enjoy without disturbance the aforesaid right of sole weighing such hops as shall be sould at Sturbridge faire, together with all other their antient priviledges. And upon notice shall be carefull, that no intrenchment bee made upon any of those rights which you may justly claime. Given under our signet manuell at our court of Whitehall the thirtieth day of August in the twelfth yeare of our reigne. (Signed) William Morrice.

To our trusty and well beloved the mayor and aldermen of the towne of Cambridge.

The original was delivered to Mr John Ewen, mayor, by me Matth. Whenn.

1677. The Corporation of Cambridge ordered the common seal to be affixed to a petition to the King for the prevention of a new fair at Maidstone, which might be prejudicial to Sturbridge Fair. This opposition I assume had reference to the large trade in hops here transacted. (See hereon De Foe's account of this fair under date 1723.) There is this curious entry in the Corporation Common Day Book:—"It is agreed that Mr. Langley who took great paines in keeping of the Patent for the intended Faire at Maidstone shall have two gynneys given him, to be paid by the Treasurers."

1683. Dixon, in his "Canidia, or the Witches," published this year, says:

“A fire licking a Child’s hair
Was to be seen at *Sturbridge fair*,
With a lambent flame, all over a sweating mare.”

And again:—

“Women-dancers, Puppet-players,
At Bartholomew and Sturbridge-Fairs.”

1686. Mr. Millington, book auctioneer of London, sold in Cooks’ Row in the fair this year (8th Sept.) the library of James Chamberlain, fellow of St. John’s College (1700).

1688. On 10th September the Corporation made an order that the prices of hackney coachmen who drive from Cambridge to Sturbridge fair, or from that fair to Cambridge, from sun rising to sunset, should be 12*d.* for one, two, three, or four persons, and after sunset 18*d.* for the like number of persons.

1696. Mr. Morley in his “Memoir of Bartholomew Fair” (1859), writing of this period says, “The great fair near Cambridge—Stourbridge Fair—was in the days of which we are now speaking, a place of large commerce” (p. 351).





CHAPTER XII.

THE EIGHTEENTH CENTURY.

1700.

There was published “A Step to Stirbitch-fair, with remarks upon the University of Cambridge,” by Edward Ward. Like all “Ned Ward’s” books, it is written in a coarse slangy style; and I do not find anything throwing much light upon the fair, except in the matter of book auctions, of which his account is very amusing.

1701. The mayor and corporation having given a company of actors leave to perform at the fair without the sanction of the Vice-chancellor, and in defiance of his authority, the senate, on the 4th Sept. passed a grace enacting that the privileges of the University should be defended and vindicated at the public charge; and in the meantime, to prevent a breach of discipline the authority of proctors during the time of the fair was conferred on sixty-two Masters of Arts, and it was decreed that whoever disobeyed them should *ipso facto* incur the penalty of expulsion.

It seems that the Vice-chancellor (Dr. Bentley) committed Dogget the actor to gaol, and ordered the booth built for the theatre to be demolished.

1705. The London newspapers of this year announced “That the fair would be proclaimed on the 7th Sept. with great solemnity by the Vice-chancellor of the University, the Mayor of the Town, accompanied by Lord Duplin and Mr. Cadogan, the representatives in Parliament, the Recorder, Aldermen, &c., preceded by red-coats and other officers on horseback, with music playing before them; that it was expected there would be greater concourse of people and a more flourishing trade than had been known for several years past, owing to the conduct of a set of gentlemen who were endeavouring to revive the reputation of a fair not many years ago the most considerable in Europe.” This announcement, which in great part contained nothing out of the common, it turned out was inserted at the instance of a Londoner who was going to see the fair for the first time; and it had the effect of drawing together more people than had been seen there for ten years. The visitor in question records in the “Gentleman’s Magazine” that

he regularly took coach every afternoon at the Market-hill (Cambridge) with other gowmsmen, drinking tea at the Coffee-booth, “where now and then we had the company of some very agreeable ladies of Cambridge town and education, and a fortnight was thus spent.”

1709. There was published in London: “Nundinæ Sturbrigienses,” a poem in Latin hexameters, of some five hundred lines, by Th. Hill, Coll. Trin. Cant. Soc. It is included in vol. ii. “Musæ Anglicanæ,” editio quinta. Londini, ex officina J. S. R. Tonson and J. Watts, 1741. An * indicates that the poem in question was added to this edition, and not found in former ones. The poem gives a description of the fair as it existed in the reign of Queen Anne.

1710. The question of the preachership of the fair referred to under date 1650, came up this year in strong force. The corporation had usually appointed the minister of Barnwell, but this year they appointed another, a fellow of King’s College. Their right to the nomination was now disputed by the impropriator and minister of Barnwell. The corporation resolved to maintain their nominee, and the opposing parties advertised their intention of standing on what they regarded as their rights. Proceedings were accordingly commenced in the Bishop of Ely’s court. The following year (Sept. 1711) the Vicar of Barnwell published the following:—

Whereas ’tis the resolution of the corporation of Cambridge, against the present incumbent of Barnwell, to set up a preacher in Sturbridge Fair; being led thereinto by artificially persuading some of his predecessors into an illegal note, against the patron, his clerks and successors in the said living: and Sturbridge Fair being in the parish of Little St. Andrew’s, Barnwell, and the ministers thereof have (when right and law prevail) time out of mind, without any disturbance (the said corporation of Cambridge finding alwaies a pulpit) performed the service of the two Lord’s-days during the said fair, with their congregation, service-books, vestments, pulpit ornaments, and parish-clerk, in gratitude for the collection that hath been there alwaies made, for the better support of themselves under their small parochial income, till the last year 1710; for which intrusion, then, the unwary usurper was censured in the Bishop’s ecclesiastical court: These do humbly give notice to the gentlemen

of the fair, that the pulpit not being allowed this year as usual, and it not being known soon enough to provide one, the service of the Lord's day, during this present fair, will be performed in the parish-church, morning and evening, by the minister of Barnwell.

Will. Piers.

Mr. Piers appears to have carried his point, as no mention of a Sturbridge fair preacher subsequently to 1711 occurs in the Corporation books. Dr. Hurd, Bishop of Worcester, was, whilst fellow of Emmanuel, preacher at Sturbridge fair.

Preaching in the Fair.—The services were performed during the two Sundays occurring in the principal period of the fair, both morning and afternoon. The sermon was preached from a pulpit placed in the open air, in the centre of the large square, some 300 by 240 feet, called the *Duddery*, where the woollen-drapers, wholesale tailors, and sellers of second-hand clothes took up their residence, in spacious booths. In the centre of this square was formerly a tall maypole, with a vane at the top. It was the most orderly part of the fair.

Ned Ward, in his book already referred to (1700), mentions this part of the fair, and says there stands “an old weather-beaten pulpit, where on Sunday a sermon is delivered for the edification of the strolling sinners, who give open attention, as in a field-conventicle” (p. 242).

1718. On the 21st Sept. died, aged 89, Samuel Newton, one of the Aldermen of Cambridge. By his will he gave to the town four booths in the fair, and a sermon in his commemoration was for many years preached at St. Edward's before the mayor and corporation on the Sunday next preceding the 22nd Sept.

1727. I do not know if there was any speciality in the procession to proclaim the fair this year. The following details are given in Cooper's “Annals of Cambridge,” under this date. The order was thus: The Crier in scarlet on horseback; twenty-eight petty Constables on foot; three drums; banners and streamers; the Grand Marshal; two trumpeters; the Town music (twelve in number), two French horns; the Bellman in state with a stand, on horseback; four Serjeants at Mace on horseback; the Town Clerk on horseback. The Mayor in his robes mounted on a horse richly caprisoned,

led by two footmen called red coats with white wands. The two representatives in Parliament on horseback. Twelve Aldermen according to seniority on horseback (three and three) in their proper robes, the six seniors having their horses attended by as many henchmen or red coats with wands. The twenty-four Common Councilmen, three and three according to seniority. Eight Dispensers in their gowns, two and two; four Bailiffs in their habits (two and two). The Treasurers in their gowns. The Gentlemen and Tradesmen of the town.

The procession was followed by a great number of the boys of the town on horseback, who as soon as the ceremony of proclaiming was over, rode races about the place; and on returning to Cambridge each boy had a cake and some ale at the Town-hall.

This procession was maintained until about 1758, when it began “to be abridged,” owing as it is said to the trouble and charge of keeping it in suitable condition.

De Foe’s Description of the Fair.—1723. This year the fair was visited by Daniel De Foe, and he gives an account of it which I regard as of great value. He understood how to grapple with what he saw, and how to record the results of his inquiry. I give his description with very small curtailment. The account was not published until 1724:

I now draw near to Cambridge, to which I fancy I look as if I was afraid to come, having made so many Circumlocutions beforehand; but I must yet make another Digression before I enter the Town; (for in my way, and as I came in from Newmarket, about the beginning of September;) I cannot omit, that I came necessarily through Sturbridge Fair, which was then in its height.

If it is a Diversion worthy of a Book to treat of Trifles, such as the Gayety of Bury Fair, it cannot be very unpleasant, especially to the Trading part of the World, to say something of this Fair, which is not only the greatest in the whole Nation, but in the World; nor, if I may believe those who have seen them all, is the Fair at Leipsick in Saxony, the Mart at Frankfort on the Main, or the Fairs at Nuremberg or Ausburg, any way to compare to this Fair at Sturbridge.

It is kept in a large Corn-field, near Casterton, extending from the side of the River Cam, towards the Road, for about half a Mile square.

If the Husbandmen who rent the Land, do not get their Corn off before a certain Day in August, the Fair-Keepers may trample it under foot, and spoil it, to build their Booths: On the other Hand, to ballance that Severity, if the Fair-Keepers have not done their Business of the Fair, and remov'd and clear'd the field by another certain Day in September, the Plowmen may come in again, with Plow and Cart, and overthrow all and trample it into the Dirt; and as for the Filth, Dung, Straw, &c., necessarily left by the Fair-Keepers, the Quantity of which is very great, it is the Farmers Fees, and makes them full amends for the trampling, riding, and carting upon, and hardening the Ground.

It is impossible to describe all the Parts and Circumstances of this Fair exactly; the Shops are placed in Rows like Streets, whereof one is call'd Cheapside; and here, as in several other Streets, are all sorts of Trades, who sell by Retale, and who come principally from London with their Goods; scarce any trades are omitted, Goldsmiths, Toy-shops, Braziers, Turners, Milleners, Haberdashers, Hatters, Mercers, Drapers, Pewterers, China-Warehouses, Taverns, Brandy-Shops, and Eating-Houses, innumerable, and all in Tents, and Booths, as above.

This great Street reaches from the Road, which as I said goes from Cambridge to Newmarket, turning short out of it to the Right towards the River, and holds in a Line near half a Mile quite down to the River-side: In another Street parallel with the Road are like Rows of Booths, but larger, and more intermingled with Wholesale Dealers, and on one side, passing out of this last Street to the Left Hand, is a formal great Square, form'd by the largest Booths, built in that Form, and which they called the Duddery; whence the name is deriv'd, and what its Signification is, I could never yet learn, tho' I made all possible search into it. [Duddery is evidently derived from the old word Dudde, signifying cloth ("Promptorium Parvulorum," ed. Way, i. 134). Duds for clothes is still used as a cant word, and by the Scotch (Bailey's "Dictionary;" Glossaries to Burns and Walter Scott).] The area of this Square is about 80 to 100 yards, where the Dealers have room before every Booth to take down, and open their Packs, and to bring in Waggon to load and unload.

This place is separated, and Peculiar to the Wholesale Dealers in the Woollen Manufacture. Here the Booths, or Tents are of a vast Extent, have different apartments, and the Quantities of Goods they bring are so Great, that the Insides of them look like another Blackwell Hall, being as vast Ware-Houses pil'd up with Goods to the Top. In this Duddery, as I have been inform'd, there have been sold £100,000 worth of Woollen Manufactures in less than a Week's time, besides the prodigious Trade carry'd on here, by Wholesale Men, from London, and all Parts of England, who transact their Business wholly in their Pocket-Books, and meeting their Chapmen from all Parts, make up their Accounts, receive money chiefly in Bills, and take Orders: These they say exceed by far the Sales of Goods actually brought to the Fair, and deliver'd in Kind; it being frequent for the London Wholesale Men to carry back orders from their Dealers for £10,000 worth of Goods a Man, and some much more. This especially respects those People, who deal in heavy Goods, as Wholesale Grocers, Salters, Brasiers, Iron-Merchants, Wine-Merchants, and the like; but does not exclude the Dealers in Woollen Manufactures, and especially in Mercery Goods of all sorts, the Dealers in which generally manage their Business in this manner.

Here are Clothiers from Hallifax, Leeds, Wakefield and Huthersfield in Yorkshire, and from Rochdale, Bury, &c., in Lancashire, with vast Quantities of Yorkshire Cloths, Kerseyes, Pennistons, Cottons, &c., with all sorts of Manchester Ware, Fustians, and things made of Cotton Wool; of which the Quantity is so great, that they told me there were near a thousand Horse-Packs of such Goods from that side of the Country, and these took up a side and a half of the Duddery at least; also a part of a street of Booths were taken up with Upholsterer's Ware, such as Tickings, Sackings, Kidderminster Stuffs, Blankets, Rugs, Quilts, &c.

In the Duddery I saw one Ware-house or Booth with six Apartments in it, all belonging to a Dealer in Norwich Stuffs only, and who they said had there above £20,000 value in those Goods, and no other.

Western Goods had their Share here also, and several Booths were fill'd as full with Serges, Du-Roys, Druggets, Shalloons, Cantaloons, Devonshire Kersies, &c., from Exeter, Taunton, Bristol, and other Parts West, and some from London also.

But all this is still out done, at least in show, by two Articles, which are the peculiars of this Fair, and do not begin till the other part of the Fair, that is to say for the Woolen Manufacture begins to draw to a Close; these are Wooll, and the Hops, as for the Hops there is scarce any Price fix'd for Hops in England, till they know how they sell at Sturbridge Fair; the Quantity that appears in the Fair is indeed prodigious, and they, as it were, possess a large Part of the Field on which the Fair is kept, to themselves; they are brought directly from Chelmsford in Essex, from Canterbury and Maidstone in Kent, and from Farnham in Surrey, besides what are brought from London, the growth of those, and other places.

Enquiring why this Fair should be thus, of all other Places in England, the Center of that Trade; and so great a Quantity of so Bulky a Commodity be carry'd thither so far: I was answer'd by one thoroughly acquainted with that matter, thus: The Hops, said he, for this part of England, grow principally in the two counties of Surrey and Kent, with an exception only of the town of Chelmsford in Essex, and there are very few planted anywhere else.

... I must not omit here also to mention, that the River Grant, or Cam, which runs close by the N.W. side of the Fair in its way from Cambridge to Ely, is Navigable, and that by this means, all heavy Goods are brought even to the Fair-Field, by Water Carriage from London, and other Parts, first to the Port of Lynn, and then in Barges up the Ouse, from the Ouse into the Cam, and so, as I say to the very Edge of the Fair.

In like manner great Quantities of heavy Goods, and the Hops among the rest, are sent from the Fair to Lynn by Water, and shipped there for the Humber, to Hull, York, &c., and for New Castle upon Tyne, and by New Castle, even to Scotland itself. Now as there is still no planting of Hops in the North, tho' a great Consumption, and the Consumption increasing Daily, this, says my Friend, is one reason why at Sturbridge Fair there is so great a Demand for the Hops: He added, that besides this, there were very few Hops, if any worth naming, growing in all the Counties even on this side Trent, which were above forty miles from London; these Counties depending on Sturbridge Fair for their supply, so the Counties of Suffolk, Norfolk, Cambridge, Huntingdon, Northampton, Lincoln, Leicester, Rutland, and even to Stafford, Warwick, and Worcestershire, bought most if not all their Hops at Sturbridge Fair.

These are the Reasons why so great a Quantity of Hops are seen at this Fair, as that it is incredible, considering too, how remote from this Fair the Growth of them is, as above.

This is likewise a testimony of the prodigious Resort of the Trading people of all Parts of England to this Fair; the Quantity of Hops that have been sold at one of these Fairs is diversley reported, and some affirm it to be so great, that I dare not copy after them; but without doubt it is a surprising Account, especially in a cheap Year.

The next Article brought hither, is Wool, and this of several sorts, but principally Fleece Wool, out of Lincolnshire, where the longest Staple is found; the sheep of those Countries being of the largest Breed.

The Buyers of this Wool, are chiefly indeed the Manufacturers of Norfolk and Suffolk and Essex, and it is a prodigious Quantity they buy.

Here I saw what I have not observ'd in any other county of England, namely, a Pocket of Wool.

This seems to be first call'd so in Mockery, this Pocket being so big, that it loads a whole Waggon, and reaches beyond the most extream Parts of it, hanging over both before and behind, and these ordinarily weigh a Ton or 25 Hundred weight of Wool, all in one Bag.

The Quantity of Wool only, which has been sold at this Place at one Fair, has been said to amount to £50,000 or £60,000 in value, some say a great deal more.

By these Articles a Stranger may make some guess at the immense Trade carry'd on at this Place; what prodigious Quantities of Goods are bought and sold here, and what a confluence of People are seen here from all Parts of England.

I might go on here to speak of several other sorts of English Manufactures, which are brought hither to be sold; as all sorts of wrought Iron, and Brass-Ware from Birmingham; Edg'd Tools, Knives, &c., from Sheffield; Glass-Wares and Stockings from Nottingham, and Leicester; and an infinite Throng of other things of smaller value, every Morning.

To attend this Fair, and the prodigious conflux of People which come to it, there are sometimes not less than fifty Hackney Coaches, which come

from London, and ply Night and Morning to carry the People to and from Cambridge; for there the gross of the People lodge; nay, which is still more strange, there are Wherries brought from London on Waggon to ply upon the little River Cam, and to row People up and down from the Town, and from the Fair as Occasion presents.

It is not to be wondered at, if the Town of Cambridge cannot Receive or Entertain the Numbers of People that come to this Fair; not Cambridge only, but all the Towns round are full; nay, the very Barns, and Stables are turn'd into Inns, and made as fit as they can to Lodge the meaner Sort of People.

As for the People in the Fair, they all universally Eat Drink and Sleep in their Booths and Tents; and the said Booths are so intermingled with Taverns, Coffee-Houses, Drinking-Houses, Eating-Houses, Cook-Shops, &c., and all in Tents too; and so many Butchers, and Hagglers from all the Neighboring Counties come into the Fair every Morning with Beef, Mutton, Fowls, Butter, Bread, Cheese, Eggs, and such things; and go with them from Tent to Tent, from Door to Door, that there's no want of any Provisions of any kind, either dres'd or undres'd.

In a Word, the Fair is like a well Fortify'd City, and there is the least Disorder and Confusion (I believe) that can be seen anywhere, with so great a Concourse of People.

Towards the latter End of the Fair, and when the great Hurry of Wholesale Business begins to be over, the Gentry come in, from all parts of the County round; and tho' they come for their diversion; yet 'tis not a little Money, they lay out; which generally falls to the share of the Retailers, such as Toy-shops, Goldsmiths, Brasiers, Ironmongers, Turners, Milleners, Mercers, &c., and some loose Coins, they reserve for the Puppet Shows, Drolls, Rope-Dancers, and such-like, of which there is no want, though not considerable like the rest: The last Day of the Fair is the Horse-Fair, where the whole is closed with both Horse and Foot-Races, to divert the meaner Sort of People only, for nothing considerable is offered of that Kind: Thus Ends the whole Fair, and in less than a week more, there is scarce any sign left that there has been such a thing there....

I should have mention'd, that here is a Court of Justice always open, and held every Day in a Shed built on purpose in the Fair; this is for keeping the

Peace, and deciding Controversies in matters Deriving from the Business of the Fair: The Magistrates of the Town of Cambridge are Judges in this Court, as being in their Jurisdiction, or they are holding it by special Privilege: Here they determine Matters in a Summary way, as is practis'd in those we call Pye-Powder Courts in other Places, or as a Court of Conscience; and they have a final Authority without Appeal.

1729. This year was passed “An Order for the Registering and Regulating the Prices of Hackney Coaches at Sturbridge Fair,” which was quite a formidable document. I give one paragraph only: ... And whereas in pursuance and by virtue of such immemorial prescription usage and Charters the said mayor bailiffs and burgesses have from time to time taken on themselves the regulation of Hackney Coaches coming to the said fair; and did heretofore take a toll of 5s. from each coach coming to the said fair, which of late years they have omitted to receive in consideration of the great expenses of such hackney coachmen coming to the said fair; and did order appoint and establish the prices to be taken by all coachmen coming to the said fair and there tendering themselves to carry passengers and persons from the town of Cambridge to the said fair, and from the said fair to the town of Cambridge, at the price or sum of 3*d.* ...

The price (after many more recitals) was fixed at 6*d.*

1733. There was a dispute between the University and the Corporation as to the right to weigh hops in the fair, as indeed there had been for several previous years. The matter was referred to the Commissary of the University and the Recorder of the Town, who decided in favour of the University. A paper on the subject was drawn up and published by Thomas Johnson of Magdalen College, one of the taxors.

1738. The University published a severe edict against schismatical congregations at Stourbridge fair, and appointed Pro-proctors to see it executed. These measures were occasioned by the fear that the famous John Henley would erect an oratory in the fair. He had applied to the Vice-chancellor for leave to hold an oratory there and had been refused.

1741. A great gale this year blew down many of the booths at the fair, and caused great inconvenience and some damage.

1747. On 29th June the Court of Common Pleas gave judgment in an action of trespass brought by James Austin against King Whittred for seizing his cheese, &c., at this fair in 1745; which trespass the defendant justified by way of distress damage feasant made by him as servant to the Corporation, the owners of the fair. The court held the plea bad in substance, as *every person had of common right a liberty of carrying his goods to a public fair for sale.*—"Willes Reports," 623.

1748. A company of players from the theatres in London performed a pantomime called "Harlequin's Frolics or Jack Spaniard caught in a Trap," in Hussey's Great Theatrical Booth. There were also some entertainments of singing and dancing. It was believed these were permitted in honour of the approaching peace. But in the following year there were also companies of players present.—"Annals," iv. p. 262, note.

1749. The Land Tax assessed on the fair this year amounted to £112 7s. 10d.

Carter the Historian of Cambridge published an account of the fair this year. I shall only quote from it such points as have not been mentioned by De Foe and others. He refers to the name of the fair being obviously derived from the rivulet called the Stour, which has a bridge over it near the site of the fair.

"During the fair Colchester oysters (natives) and white herrings, just coming into season are in great request, at least by such as live in the inland part of the kingdom." ... "The fair is like a well governed city.... If any dispute arise between buyer and seller &c., on calling out 'Red-coat' you have instantly one or more come running to you; and if the dispute is not quickly decided, the offender is carried to the said Court [of the fair] where the case is determined in a summary way...."

1757. Postlethwayt in his "Dictionary of Trade and Commerce," 2nd edition, speaks of the fair as "beyond all comparison the greatest in Britain, and perhaps in the world"—as it certainly was at this time.

1759. The Corporation ordered the collector of the tolls to provide weights and scales for weighing hops and other goods at the fair, and agreed to indemnify him against any suit in relation to the weighing of such goods.

Peculiar custom of the Fair.—1762. At this fair about this date, there was in practice the custom of “Initiation” or “Christening.” It took place usually on the evening of the horse-fair day—perhaps because there was a species of horse-play about the performance, at the “Robin Hood” inn, famous in the annals of the fair. The formula was as follows:—The freshman was introduced to the elder members in the parlour of the inn, and two sponsors being previously chosen for him, he was placed in an armchair, his head uncovered, and his shoes off. Two vergers, holding staves and lighted candles, assisted the officiator, who was robed in a Cantab’s gown and cap, with a bell in one hand and a book in the other. He commenced the ceremony by asking “Is this an Infidel?” Answer, “Yes.” “What does he require?” Answer, “Instruction (or to be instructed).” “Where are the sponsors? let them stand forward!” A bowl of punch or a bottle of wine was placed on the table handy for the officiator, who then chaunted the following doggrel:—

Over thy head I ring this bell,
Because thou art an infidel,
And I know thee by thy smell—[\[7\]](#)
Chorus. With a hoccus proxius mandamus,
Let no vengeance light on him,
And so call upon him.

With several verses more of the same sort.

Then the officiator turned round and inquired “Who names this child?” The sponsors replied “We do,” and then they called the novitiate by some slang name, as “Nimble-heels,” “Stupid Stephen,” “Tommy Simper,” or other ludicrous designation. The officiator then drank and gave the novice a full bumper, continuing the chaunt:—

“Nimble-heels” henceforward shall be his name,
Which to confess let him not feel shame
Whether ’fore matter, miss, or dame—

And then the chorus as before. Then,—

This child first having paid his dues,

Is welcome then to put on his shoes,
And sing a song, or tell a merry tale—
As he may choose.

Chorus and conviviality ending up by a formal supper. If several novices were offered together, one ceremony sufficed, with a few necessary verbal alterations.

1771. In a letter of the Rev. Michael Tyson, dated *Corpus Christi College, Cambridge*, Sept. 12th, this year, occurs the following passage:—"There is an old and curious plan of Sturbridge Fair in the mayor's booth, taken when it was in its splendour, when its street and square extended all over those fields by Barmwell. I mean to make a copy of this, and to draw up an *Historiola* of the Fair; but this is too local to be of any entertainment but to those connected with Cambridge. Thank Heaven my Deanship ends on Michaelmas day...."—Nichols' "Literary Anecdotes," viii. 569.

1778. Violent storm during the fair; Bailey's large music booth blown down and many others injured.

1783. At the Quarter Sessions of Cambridge held July this year the following order was made:

"Whereas some disputes have arisen, touching the Intercommon of Stirbridge Fair Green, between the Commoners of Cambridge, and those of Barnwell within the said Town, and a suit hath been instituted in order to try the right of the said Common: It is this day agreed and ordered, that the Costs of such suit on the part of the said town of Cambridge, touching the said intercommon, be paid and borne by the said town; and that the Town Clerk be desired to prosecute the said suit, to assert the right of the inhabitants of the said town to the said Common."

It is recorded that some of the scenes at the fair about this date were of a reprehensible character, and tradition especially points to a booth raised by Charles Day, the character of one of whose patrons is sketched with a free hand in "Nichols' Literary Anecdotes," viii. p. 540.

1786. There was published "The History and Antiquities of Barnwell Abbey, and of Sturbridge Fair" (being a reprint of "Bibliotheca Topographica Britannica," No. xxxviii.), from which I have drawn some of the preceding details.

1789. An interesting and amusing account of the fair as it appeared in 1789—reign of George III.—is given in “Reminiscences of Cambridge,” by Henry Gunning, formerly an Esquire Bedell, vol. i., pp. 149-158, second edition, London, 1855.





CHAPTER XIII.

THE NINETEENTH CENTURY.

1802.

During the performance at the theatre in the fair, 27th Sept., a cry of “fire” arose in different parts of the house, which was greatly crowded. Although the manager and performers assured the audience that the alarm was without foundation, and tried every persuasion to obtain order, a general rush took place. Some threw themselves over from the upper boxes into the pit; others were trampled upon and bruised on the stairs. In the end three girls and a boy were taken up dead, and many others were more or less seriously injured. It was supposed the cry was got up for the purposes of robbery; one hundred guineas reward was offered for the offenders, but they escaped detection.

1827. In Hone’s “Year Book” is given a graphic account of this fair as it had existed within the memory of the writer, whose “personal recollections of more than sixty years ago,” are embodied therein; from which I condense the following, as giving a view of its later, but not last stage:

The first booths, on the north side of the road were occupied by the customary shows of wild beasts and wild men, conjurors, tumblers and rope-dancers. Mr. Baker’s company of “comedians” was respectable; and Lewy Owen the clown, a young man of good family, who had abandoned himself to this way of life, full of eccentric wit and grimace, continually excited broad grins. The late Mrs. Inchbald was a performer at this fair. There was a large theatrical booth, occupied by a respectable company of comedians from Norwich, under the management of Mr. Bailey, formerly a merchant of London. He was a portly good-looking man, of gentlemanly manners and address, the compiler of the Directory bearing his name—a work of much merit, containing besides the names of residents in the several towns, concise yet correct topographical description of the places: the book has now become very scarce. Other show booths, occupied by giants and dwarfs, savage beasts and other savages, extended with stunning din along this noisy line. In front of these were the fruit and gingerbread

stalls.... On the south side of the road opposite to these booths was the cheese fair. Dealers from various parts took their stands there, and many tons weight were disposed of. Such as were fit for the London market were bought by the cheese factors from thence; and cheese from Cheshire, Wilts, and Gloster by the gentry and farmers and dealers from Suffolk, Norfolk, and adjoining counties; large quantities of Cottenham and cream cheeses being brought by farmers from those counties for sale. Opposite to the east end of the cheese fair, on the north side of the road stands an ancient chapel or oratory, no doubt erected for the devout dealers and others resorting to this fair, and for such pious travellers as passed or repassed the ferry to Chesterton [various references have been made to it; still standing, 1882]. At and nigh to this spot were the wool-fair and the hop-fair. Large stores of sack-cloths, waggon-tilts, and such like were near the skin, leather sellers' and glovers' row, where the finer articles of leather and leather gloves were sold. Little edifices of general convenience were numerous.

At the end of the show-booths and facing the row began the principal range of booths, called Garlick-row. This range of shops was well constructed. Each booth consisted of two rooms; the back room separated from the shop by a boarded partition served for a bed chamber and other domestic purposes, from which a door opened into a field. A range of booths was generally appropriated to furniture sellers, ironmongers, silversmiths, jewellers, japanners and fine cutlery dealers. Another range to silk-mercers, dealers in muslin, toys and millinery. Yet another to dealers in Norwich and Yorkshire manufactures, mercery, lace, hose, fine made shoes, boots, clogs and patterns (*sic*). While dealers in fashionable wares from London, as furs, fans, toys, &c. occupied a distinct group. A further group was devoted to oilmen, dealers in pickles, and preserves, one of whom—Mr. Green from Limehouse—kept a most important store here. His returns were from £1,500 to £2,000 during the fair. The father of the writer from whom I am quoting “kept the fair” for forty years and upwards, “and usually brought home £1,000 or more for goods sold and paid for, besides selling to half that amount on credit to reputable dealers and farmers.” At the end of this row stood the dealers in glass-ware, looking-glasses and small articles of mahogany furniture. The Inn—the King’s Arms, I believe—was the common resort of the horse-dealers. Here sat the *Pied-poudre* court, having a pair of stocks and a whipping-post in front, and a strong room underneath. Close adjoining northward was the oyster fair. The

oysters brought from Lynn were very large, about the size of a horse's hoof, and were opened with pincers; the more delicate from Colchester and Whitstable were very small. In the meadow adjoining were the coal fair, pottery fair and Staffordshire dealers. The greater part of these articles were delivered from on board vessels which drew up close to the bank of the river.

Opposite to the oyster fair was a close wherein the horse fair was kept. The show of beautiful animals in that place was perhaps unrivalled, unless in Yorkshire. The finest racers and hunters from Yorkshire, the most brawny and muscular draught horses from Suffolk, and from every other country famous for breeding horses animated the scene. This horse fair drew together a great concourse of gentry, farmers and dealers from all parts of the neighbouring counties, and scores of valuable animals changed masters in the space of a few hours. The horse fair was held on the first Friday after the fair was proclaimed.

Higher up, and about fifty yards from the road was Ironmongers' row, with booths occupied by manufactures from Sheffield, Birmingham, Wolverhampton, and other parts; and dealers in agricultural tools, nails, hatchets, saws, and such like implements. About twenty yards nearer the road were woollen drapers; and further on, and opposite to Garlick-row westward, were booths for slop sellers, and dealers in haubergs, or waggoners' frocks, jackets, half-boots, and such like habiliments for robust ploughmen and farm labourers. Then followed the hatters' row, close to which was a very respectable coffee-house and tavern, fitted up with neat tables covered with green baize, having glazed sash-windows and a boarded floor, kept by the proprietor of Dochrell's coffee-house in Cambridge, famed for excellent milk punch. There were also a number of suttlng booths where plain and substantial dinners were served up in a neat comfortable style, well cooked and moderately charged, "except on the horse fair and Michaelmas days, when an extra sixpence was generally tackt to the tail of the goose."

Shoemaker row was at the end of Garlick-row and consisted of ten or twelve booths. The basket fair, Tunbridge ware fair, and broom fair, were behind nearly at the top. In the basket fair were to be had all kinds of hampers, baskets and basket work; hay rakes, scythe-hafts, pitchfork and spade-handles, and other implements of husbandry, waggon loads of which

were piled up there. In the Tunbridge ware section were malt, shovels, churns, cheese-presses and other wooden ware.

The circuit of the fair at the period to which this account relates was estimated at three miles. A list of many of the principal London dealers who attended this fair is appended to this account. Vide Hone's "Year Book," 1841 ed. col. 1539-48. A rough plan or chart of the fair is there given.

1828. The formal opening of the fair is described in Wall-Gunning, "The ceremonies observed in the senate-house of the University of Cambridge." Camb. pp. 129-31.

1842. The practice—the origin of which I have not been able to trace—of the Proctors of the University giving entertainments at the Midsummer and Sturbridge fairs was this year discontinued by a Grace passed 2nd July.

1855. The University, for the last time, "called the fair" on 18th Sept. this year. The following form was used on the occasion—very much modified from that of 1548.

Proclamation of the Fair, by the University.—Oyez! Oyez! Oyez! All persons are desired to keep silence while Proclamation of this Fair is being made.

His Royal Highness Prince Albert, Chancellor of this University Doth in the name of our Sovereign Lady Queen Victoria strictly charge and command:

That all persons who shall repair to this Fair or the precincts thereof Do keep Her Majesty's peace, and make no affrays or outcries whereby any gathering together of people be made, nor that they wear any weapons upon pain of imprisonment and loss of their weapons and further correction as shall be thought fit by the Officers of the said University.

That all dishonest women, all vagrant and unruly persons avoid and withdraw themselves from this Fair and the precincts thereof immediately after this proclamation, that Her Majesty's Subjects may be quieter, and good rule the better maintained upon pain of imprisonment and further correction at the discretion of the Officers of this University.

That all Bakers baking bread to sell at this Fair or the precincts of the same Do bake and sell good and wholesome bread, and of such goodness as

the law doth require, upon pain of the Statute in that behalf provided. [Bale ("Declaration of Bonner's Articles," fo. 21 b, about 1550), mentions the Baker-Boyes crye, as he sat between his Bread-Panners at the fair, "Buy and beare away; steal and runne awaye," &c.]

That all persons who sell Ale or Beer within this Fair or the precincts of the same Do sell by no other measures than by Gallon, Pottle, Quart, Pint, and half-pint, sized and sealed according to the Standard of this University upon pain and penalty of the Statute in that behalf provided, and that every such Victualler and seller of Ale and Beer have a sign at his door upon pain of Three Shillings and four pence.

That all persons who sell by weights and measures any kinds of Victuals, Wares, or Merchandize, that their weights and their measures be sized and sealed, and be in all respects according to the Standard of this University upon pain of the Statute in that behalf provided.

That all Vintners do sell good and wholesome wines without mixing or imposition, and that their wine Pots be sized and sealed according to the Standard of this University upon pain of three shillings and four pence for every offence.

That no persons in this Fair Do suffer, keep or maintain any unlawful gaming in their houses or grounds, upon pain of the Statute in that behalf provided.

That no person receive into his house or booth any person of ill life and conversation or suspected of the same, upon pain of imprisonment and further correction as shall be thought fit by the Officers of this University.

That no person whatsoever sell or offer to put to sale any kind of wares upon the Sunday upon pain of imprisonment and further punishment by law provided: And that no person upon the said day, especially in the time of service or sermon, receive any persons into their houses or booths, and there suffer them to remain idle or drinking upon such pain and penalty as shall be inflicted upon them by the officers of this University.

If there be any that will sue for any wares, Debts, Injuries or Trespasses, or think themselves wronged in any of the premises, let them make complaint to the Chancellor's Commissary of this University who will hold and keep Court at the Great Tiled Booth on — next, the — instant at —

o'clock to the intent that Justice may be administered according to the Charters and Privileges of this University.

God save the Queen.

[Copied from the book of Formulæ in the University Registry.

ALFRED ROGERS,
April 28, 1882.]

1882. The fair still lingers on. Its commercial greatness has long since passed away—ebbed out of existence by slow degrees, resulting from many social and other changes, rather than from any one marked cause. But, as may be expected after six and a half centuries (at least) of notable existence, it dies hard. Three of its features still remain. The horse fair, always famous, was this year greater than for some time past. The onion fair is still associated with Garlick row, while hurdles, gates, and implements of wood are still prominent. Thus traditions cling. In “Æsop Dress’d”—a rare collection of fables by J. Mandeville (4to. 1704, p. 9; should be 33), there appeared the following:

“An ass of stupid memory
Confes’d, that going to *Stourbridge Fair*,
His back most brok with wooden ware.”

The old associations are, however, rapidly crumbling away.

The fair is still proclaimed by the mayor at the old time of commencing; but the fair is not now held until a fortnight later and only lasts three days. There are points in the Proclamation worthy of note.

Proclamation of Sturbridge Fair by the Mayor of Cambridge.—Oyez! Oyez! Oyez! Mr. Mayor doth strictly charge and command all manner of persons to keep silence whilst the Fair of Sturbridge is publicly proclaimed. God save the Queen.

Oyez! Oyez! Oyez! Our most Gracious Sovereign Lady Victoria by the Grace of God of the United Kingdom of Great Britain and Ireland Queen Defender of the faith by Mr. Mayor of the Borough of Cambridge Her Majesty’s Lieutenant of the said Borough one of Her Majesty’s Justices of the Peace for the Borough and County of Cambridge and chief Governor of

this Fair Doth strictly charge and command that all Merchants and other persons that be repaired or shall or will repair to this Fair of Sturbridge beginning on the feast of St. Bartholomew the Apostle (old style) and continuing until the fourteenth day next after the feast of the exaltation of the Holy Cross (old style) do keep Her Majesty's Peace.

That all idle and evil disposed persons within this Fair depart the same forthwith.

That no Merchant put to sale or offer to sell any wares or merchandize but in the usual and accustomed places for their several wares and merchandizes appointed.

That Victuallers Tiplers and other persons buy no goods or merchandize of any wayfaring man or other person who shall bring the same to their booths or houses to sell but only of such as shall be known unto them to be of honest conversation whom they shall be always able to have forthcoming upon demand.

That all Merchants and other persons within this fair cease from shewing or selling any wares or merchandizes and from all labour and travel on the Lord's day.

And lastly Mr. Mayor giveth to understand that if any Merchant or other person will sue or complain touching any cause or matter done and committed within this Fair or the liberties thereof and here determinable let him repair to the place accustomed and there according to the law of the land the same cause or matter shall be heard and determined. God save the Queen.





CHAPTER XIV.

CONCLUSION.

While the presentation of the preceding details has been essential to the plan of this work, I desire, by way of appropriate conclusion, to estimate the influence of the fair upon the development of commerce in England, and, in some degree, also in Europe. I find a most comprehensive review of this character from the masterly pen of Prof. James E. Thorold Rogers, M.A., in his great work, the "History of Agriculture and Prices in England" (1866, vol. i. pp. 142-4).

After pointing out that the port of Lynn, with the rivers Ouse, and Cam, were the means by which water-carriage was made available for goods—an important point; indeed it may be regarded as certain that in the middle ages and later, no great fair could be held far removed from water communication—he proceeds:

The concourse must have been a singular medley. Besides the people who poured forth from the great towns—from London, Norwich, Colchester, Oxford, places in the beginning of the fourteenth century of great comparative importance, and who gave their names, or, in case certain branches of commerce had been planted in particular London streets, the names of such streets, to the rows of booths in the three-weeks' fair of Stourbridge—there were, beyond doubt, the representatives of many nations collected together to this great mart of medieval commerce. The Jew, expelled from England, had given place to the Lombard exchanger. The Venetian and Genoese merchant came with his precious stock of Eastern produce, his Italian silks and velvets, his store of delicate glass. The Flemish weaver was present with his linens of Liege and Ghent. The Spaniard came with his stock of iron, the Norwegian with his tar and pitch. The Gascon vine-grower was ready to trade in the produce of his vineyard; and, more rarely, the richer growths of Spain, and, still more rarely, the vintages of Greece were also supplied. The Hanse towns sent furs and amber, and probably were the channel by which the precious stones of the East were supplied through the markets of Moscow and Novgorod. And perhaps by some of those unknown courses, the history of which is lost,

save by the relics which have occasionally been discovered, the porcelain of the farthest East might have been seen in some of the booths.

Blakeney, and Colchester, and Lynn, and perhaps Norwich, were filled with foreign vessels, and busy with the transit of various produce; and Eastern England grew rich under this confluence of trade. How keen must have been the interest with which the franklin and bailiff, the one trading on his own account, the other entrusted with his master's produce, witnessed the scene, talked of the wonderful world about them, and discussed the politics of Europe!

To this great fair came, on the other hand, the woolpacks, which then formed the riches of England and were the envy of outer nations. The Cornish tin-mine sent its produce, stamped with the sign of the rich earl who bought the throne of the German Empire, or of the warlike prince who had won his spurs at Crecy, and captured the French king at Poitiers. Thither came also salt from the springs of Worcestershire, as well as that which had been gathered under the summer sun from the salterns of the eastern coast. Here, too, might be found lead from the mines in Derbyshire, and iron, either raw or manufactured, from the Sussex forges. And besides these, there were great stores of those kinds of agricultural produce which, even under the imperfect cultivation of the time, were gathered in greater security, and therefore in greater plenty, than in any other part of the world, except Flanders.

To regulate the currency, to secure the country against the loss of specie, and more harmlessly to prevent the importation of spurious or debased coin, the officers of the king's exchange examined into the mercantile transactions of the foreign traders. To form a ready remedy against fraud, the mayor sat at his court "of the dusty feet;" a mixed multitude were engaged in sale or purchase; the nobles securing such articles of luxury as were offered them, or which law and custom assigned to their rank—their rich robes of peace, their armour from Milan, their war horses from Spain. The franklin came for materials for his farm, and furniture for his house; sometimes even to buy rams in order to improve the breed of his flock. The bailiffs of college and monastery were busy in the purchase of clothing. And on holidays and Sundays, some canon, deputed from the neighbouring priory, said mass and preached in the booth assigned for religious worship.

This is certainly a not over-coloured picture of the past of this once mighty fair. Mr. Cunningham, in his most excellent work, “The Growth of English Industry and Commerce” (1882, Cambridge University Press, p. 164), says:—“By far the greater part of the commerce of this country was carried on at such fairs; and *Sturbridge* Fair was one of the most important in the whole kingdom, rivalling it was said the great fair of Nijni Novgorod, as a gathering of world-wide fame.” And he adds by way of note:—“In the eighteenth century it continued to be a most important mart for all sorts of manufactured goods, as well as for horses, wool, and hops.”



BARTHOLOMEW FAIR.

CHAPTER XV.

ORIGIN.

This is I believe the only fair, or certainly the only one of any note, ever held within the walls of the City of London. Southwark Fair became vested in the Corporation in the fifteenth century. I do not propose to write anything more than an outline history of Bartholomew Fair. Mr. Morley's most interesting "Memoir of Bartholomew Fair" (1859) is available to those who desire more minute details. But as an institution which existed for seven hundred years, and more or less illustrates the social history of the metropolis, and in some sort its trading customs, during a considerable portion of that period, it cannot be passed over lightly. I shall adopt a chronological mode of illustration as, on the whole, best suited to the end in view.

Founding the Priory of Bartholomew, A.D. 1102.—In the reign of Henry I., the Priory, Hospital and Church of St. Bartholomew, in Smithfield, were founded by one Rahere, a minstrel of the king, and "a pleasant witted gentleman." It seems that Rahere was determined to this pious work in a fit of sickness, during a pilgrimage he made to Rome agreeably to the fashion of the times, when St. Bartholomew appeared to him, and required him to undertake the work and perform it in Smithfield. Before that time Smithfield, or the greater part of it, was called "the Elms," because it was covered with elm trees. FitzStephen says the name of Smithfield is merely a corruption of "Smooth field," or plain, which harmonizes with the fact that the ground was used at an early period for tilting matches or tournaments, which were provided for the amusement of the citizens, who then consisted of most of the noble families of the land, and who daily took their active exercise here. These "jousts" or entertainments were carried out with great splendour.

This monk Rahere, the founder of the Priory, &c., has been termed the king's jester, or court fool. The Cotton MS. records in its quaint language and spelling that Rahere "ofte hawnted the Kyng's palice, and amo'ge the noysefull presse of that tumultuous courte, enforsed himself with jolite and carnal suavite: ther yn spectaclis, yn metys, yn playes, and other courtely

mokkys, and trifyllis intrudying, he lede forth the besynesse of alle the day.” There always existed at the court in these early times some one employed as story-teller and companion in the king’s amusements; and it seems not to be doubted that Rahere occupied this position—turning his opportunities of patronage to good account (as others occupying a like office have done) for the benefit of his fellow citizens. His memory is still perpetuated by the Association of “Rahere Almoners,” who meet at stated periods in the famed historical precincts of Smithfield.

Rahere became the first Prior of the monastery he had thus founded, and seems to have established a fair almost simultaneously, as was indeed the custom of the age. There appears to have existed here, even at this early period, a periodical gathering known as the “King’s Market,” which Mr. Morley considers may have been held amongst the trees, while the Priory was built upon the marsh or smooth-field, around which the fair was held. The Prior is said—either in consequence of his zeal for the monastery, or from the old associations of his former profession—to have gone annually into the fair, and exhibited his skill as a juggler: giving the largesses he so received from the spectators to the treasury of the monastery.—*Frost*, p. 9.

Rahere also became Lord of the Fair, and his representative presided as judge in the Court of Piepowder attached to the fair. This court was held within the Priory gates. This at all events was the case down to 1445.



CHAPTER XVI.

THE TWELFTH TO THE SIXTEENTH CENTURIES.

First Charter, 1133.

The Prior obtained from the King a Charter, wherein, after providing for an independent election of a new prior by the monks in the event of Rahere's death, and after confirming the privileges and possessions of the Priory, it was declared "I grant also my firm peace to all persons coming to and returning from the fair, which is wont to be celebrated in that place at the Feast of St. Bartholomew; and I forbid any of the Royal Servants to implead any of their persons, or without the consent of the Canons, on those three days, to wit the eve of the feast, the feast itself, and the day following, to levy dues upon those going thither. And let all people in my whole kingdom know that I will maintain and defend this Church, even as my crown; and if any one shall presume to contravene this our Royal privilege, or shall offend the prior, the canons, clergy or laity of that place, he, and all who are his, and everything that belongs to him, shall come into the King's power."

In addition to the King's "firm peace," and the usual privileges, it came to be believed that there were special miracles in store for those who braved the perils of distant travel in making pilgrimage to the Festival and Fair of St. Bartholomew. In Mr. Morley's book will be found a long enumeration of these. "What wonder (he asks) if to see the miracles worked at the celebration of the Feast of St. Bartholomew, in the first years after the foundation of his Priory in Smithfield, the people came from far and near, and were to be found 'shouldering each other' as well as 'dancing and rejoicing' in a concourse at the fair"?

1154-86. We have it on the authority of Stow that Henry II. granted to the Priory the privilege of a fair to be kept yearly at Bartholomew tide for three days, to wit the eve, the day, and next morrow; to which the clothiers of all England and drapers of London repaired, and had their booths and standings within the Church Yard of this Priory, closed in with walls and

gates, locked every night, and watched for safety of men's goods and wares. A Court of Piepowder was daily during the fair holden for debts and contracts. But he adds a note in regard to the time of the fair—"that forrens [foreigners] were licensed for three days; the freedmen so long as they would, which was sixe or seven dayes." It is clear that the venerable historian had mixed and confounded various and distinct events. I do not find other reference to this charter of Henry II. except by Hone, who says this charter gave the mayor and aldermen of the City criminal jurisdiction during the fair. The chief articles of commerce at the fair about this period were cloth, stuffs, leather, pewter, and live cattle.

1292. The first dispute between the City of London and the Priory of St. Bartholomew regarding the fair arose this year. It was on the subject of *Tolls*. The fair as we have already seen had spread beyond the Prior's bounds. The Custos of the City—for in 1288 Edward I. upon a quarrel with the City seized its liberties, and Ralph Sandwich was appointed Custos to collect the Tolls for the Sovereign—applied for half the tolls. The Prior claimed the whole on the ground of ancient custom, &c. The King was at Durham, and the matter coming before him on the approach of the fair, made the following order:—

Dominus Rex &c.—The Lord the King hath commanded the Custos and Sheriffs in these words: Edward by the Grace of God, to the Custos and Sheriffs of London, greeting. Whereas the Prior of St. Bartholomew, of Smithfield in the suburbs of London, by the Charters of our progenitors, Kings of England, claimeth to have a certain Fair there every year, during three days viz. on the Eve, the Day, and on the morrow of St. Bartholomew the Apostle, with all Liberties and Free Customs belonging to the Fair; a contention hath arisen between the said Prior and you the said Custos, who sue for us concerning the use of the liberties of the said Fair, and the free Customs belonging to it. And hindrance being made to the said Prior by you the said Custos, as the said Prior asserteth, to wit, concerning a Moiety of the Eve and of the whole morrow aforesaid, concerning this We Will, as well for us as for the aforesaid Prior, that justice be done as it is fit, before our Treasurer and Barons of the Exchequer, after Michaelmas day next within a month. We command you that sufficient security be taken of the said Prior for restoring to us on the said day the proceeds of the aforesaid fair, coming from the moiety of the foresaid Eve and from the whole

morrow, if the said Prior cannot then show something for himself, why the said proceeds ought not to belong to us. We command you that ye permit the same Prior in the meantime, to receive the foresaid proceeds in form aforesaid; and thereto you may leave this Brief. Witness myself at Durham the 9th day of Aug. in the 20th year of our reign.

While the question was thus pending the disputants grew so warm that the City authorities arrested some of the monks, and confined them in the Tun prison on Cornhill. They were released by command of the King, but thereupon nine citizens forced the Tun and released all the other prisoners, by way of resenting the royal interference. The rioters were imprisoned in their turn, and a fine of twenty thousand marks was imposed upon the City; but the civic authorities proposed a compromise, and, for a further payment of three thousand marks, Edward consented to pardon the offenders, and to restore and confirm the privileges of the City.—*Frost*, pp. 10-11.

The result of the reference above ordered to the Barons of the Exchequer &c. was unfavourable to the claim of the City, the Charter of the Hospital was again confirmed. The question of the Tolls was not indeed finally disposed of; but as it sleeps for a century or so, we must not now depart from the course of our record—see 1445.

1305. Another and special incident arose at the fair of this year. I will quote the eloquent description of Mr. Morley. On the eve of St. Bartholomew, the first day of the fair in the year 1305, the traders and pleasure-seekers, the friars and the jesters, clothiers, tumblers, walkers upon stilts, hurried across the grass of Smithfield from the side on which the fair was being held, to the Gallows under the Elms, where officers of state and a great concourse of men awaited a most welcome spectacle. The priory was indeed built on the site of the gallows; but in that suburban gathering-place of the people—place of executions, place of tournaments, place of markets, place of daily sport, place of the great annual fair—one gallows-tree was not enough to satisfy a justice that loved vengeance and had slight regard for life. Under the Elms of which already mention has been made (Cow Lane now represents their site)—under the Elms we read in a close roll, so early as the fourth year of Henry III., gallows were built “where they had stood before.” An execution during fair time on that ancient exhibition ground, was entertainment rarely furnished to the public: for the Church forbade, among other work, fulfilment of the sentence of the law on any

holiday of festival; *and a fair was a Saint's Holiday*. But on this occasion, law was eager to assure the execution of its vengeance. The redoubtable Wallace, hero of the Scottish people, had been taken. The rugged patriot, strong of heart and strong of hand, had been brought to London in his chains the day before the fair was opened, and on the day of the opening of the fair was arraigned and condemned at Westminster as a traitor, and without even a day's respite, at once sent on to his death. Under the Elms, therefore, in Smithfield, stood all the concourse of Bartholomew fair, when William Wallace was dragged thither in chains at the tails of horses, bruised, bleeding, and polluted with the filth of London. The days had not yet come when that first part of the barbarous sentence on high treason was softened by the placing of a hurdle between the condemned man and the mud and flint over which he was dragged. Trade in the fair was forgotten while the patriot was hanged, but not to death; cut down, yet breathing, and disembowelled, mummers and merchants saw the bowels burnt before the dying hero's face, then saw the executioner strike off his head, quarter his body, and dispatch from the ground five basket-loads of quivering flesh, destined for London, Berwick, Newcastle, Aberdeen and Perth. Then, all being over, the stilt-walkers strode back across the field, the woman again balanced herself head downwards on the points of swords; there was mirth again round the guitar and tambourine, the clothiers went back into the Churchyard, and the priest perhaps went through a last rehearsal with the man who was to be miraculously healed in church on the succeeding day! —“Memorials of Bartholomew Fair,” pp. 71-2.

1321. In this, the 14th Edward II. there was issued a writ inquiring by what warrant the Priory held its rights over Bartholomew Fair. This writ was part of the machinery of a general inquisition into the rights claimed by subjects, which had in many cases been alienated without license from the crown, and often gave rise to private oppression of the people. The Prior pleaded the Royal Charters of his house and testified upon oath that his predecessors had held such a three-day fair since times beyond the reach of memory. The justification satisfied the King's Exchequer.

1334. In this, the 7th Edward III. a new Charter of the fair was granted to the Hospital of St. Bartholomew confirming the old rights and reassuring the King's firm peace to all persons travelling towards, staying in, or returning from the fair; also forbidding any servants of a royal or episcopal

court to implead any of their persons “or without the consent of the prior and canons on those three days ... to exact tolls either without the City or within it, whether in the passage of roads or bridges, but let all proceeds that arise according to the usage of fairs belong to the canons of the aforesaid church.” This latter provision clearly had reference to the claims of the City. See 1376.

It was a review of these and similar facts which induced Mr. Morley to remark that in early times, if not from the beginning, there were practically two fairs held in Smithfield—one within and one without the Priory bounds. The outer fair, he adds, “was possibly composed of the mere pleasure givers and pleasure seekers, who attended on the company of worshippers and traders then attracted to the priory, and whose tents were pitched in the open market of Smithfield, outside the gates, not [? but] free from toll to the Church. Within the gates, and in the Priory churchyard, the substantial Fair was held” (pp. 61-2).

1348. In the preceding century license had been given by Edward I. to the brethren of the Hospital of St. Bartholomew in Smithfield to cover with stone and wood the stream running through the midst of the hospital to Holborn Bridge, “on account of the too great stench proceeding from it.” The large influx of persons at the Fair must have made matters worse. In the year 1348 the pestilence broke out in London at the time of the fair, and ended about fair-time in the following year. During the interval between fair and fair, so great had been the mortality that, in addition to the burials in churches and other churchyards, *fifty thousand* bodies had been buried in the graveyard of the Carthusians, adjoining the fair ground. Mr. Morley may well assume that it must have been the great object of interest and terror to the slender throng of men who hardly dared assemble; and who—missing from the annual crowd so many familiar faces—spoke to each other with a feeble hope of the apparent lifting of the plague. “What mirth was there in that handful of the living camped so near the silent congregation of the dead?” See 1593.

New Charter.—Edward III. under date August 1, 1376, granted to the Prior, &c., the following charter, which has heretofore escaped observation, probably because in the records of the City it had been endorsed as a “Writ to proclaim the Fair of the Prior of Saint Bartholomew in Smethefelde,” whereas it is seen to be a most important grant or confirmation of previous

charters. I give a full translation, marking certain passages with italics:—Edward by the grace of God King of England and of France, and Duke of Ireland, to the Mayor and sheriffs of London and Middlesex, Greeting. Whereas among other liberties and quittances granted to our beloved in Christ the Prior and Convent of the church of Saint Bartholomew of Smethefelde, London, by charters of our progenitors, former Kings of England, which we have confirmed, it is granted to the same—That they may have all manner of freedom for ever, and that the church aforesaid shall be as free as any church in the whole of England that is most free, and as free as our demesne chapel, which church also our said progenitors granted to will, maintain and defend in manner like as our very crown; and, moreover, *they gave firm peace to those coming to the Fair that is much frequented at the feast of Saint Bartholomew in the said place of Smethefelde*, So that in those three days' space, namely, the eve of the feast, or the day itself, or the day following, from such comers, whether without the City or within, *or in passing along the ways or over the bridges, no one shall require any customs*, but that all things which arise out of the right of fairs shall be to the said church and the Canons serving God there, and that is any one shall presume in any thing to contravene this Royal privilege, or shall offend the Prior Canons or laymen of that place, he and his men, and all that he has, shall devolve into our Royal right: and also lord Richard, formerly King of England, our progenitor, by his letters ordered the then sheriffs of London and Middlesex, and all their bailiffs, that they should neither vex nor allow to be vexed the foresaid Canons of the church of saint Bartholomew (which is our demesne chapel) concerning their fair which they have at the feast of the same church, nor require from those coming to the Fair of saint Bartholomew for the purpose of selling or buying, whether without the City or within, or also in passing along the ways or over the bridges, customs or services, or anything that may diminish the liberty of the said church of saint Bartholomew—as in the charters, letters and our confirmation aforesaid more fully is contained: *and now we have understood that some by sinister covin and conspiracy previously had between them have knavishly designed to hinder merchants and others who wish to come and have been wont to come to the said fair with their merchandise, so that they cannot come thither and do their business therein*, as well to the loss of them the Prior and Convent and overthrow and weakening of their right as to the manifest letting and hindrance of our

common people: We, duly heeding the fervent devotion and affection which our foresaid progenitors had towards the said church, as by the charters and letters aforesaid more fully doth appear, and willing (as we are bounden) to maintain and defend the said fair, *which for so long time hath endured* and was granted by our said progenitors to the honour of God in subvention of Holy Church, and all other rights and privileges, lest in our time they perish, have taken into our special protection and defence the said Prior and Canons, and their men and servants, and merchants whomsoever and others wishing to come with their goods and things to the said fair, there tarrying and therefrom returning whither they will; and so we command you to maintain, protect and defend the said Prior and Canons, their men and servants, merchants and others whomsoever coming to the said fair with their goods and things, there tarrying and therefrom returning, and to permit the Prior and Convent to hold their said fair in form aforesaid, and to receive and have freely and without any hindrance, from those coming to the said fair and returning therefrom, *the customs and all other the profits which pertain to them in right of the said fair* according to the form of the charters, letters and confirmation aforesaid, and as they ought to hold the same fair and to have and receive the customs and other things which pertain to that fair, and as they and their predecessors have until now held that fair and have been wont to have and receive the customs and other things which to that fair pertain. And, concerning any pleas or other things to the said fair for the said three days appertaining, do you in no wise intermeddle, neither requiring any thing for customs and other things to that fair appertaining, nor hindering, molesting, nor in any way aggrieving the Prior and Canons of the said place as to the receiving of the customs and profits aforesaid, nor, as much in you lies, permitting them to be molested or aggrieved. And if any shall presume to diminish the customs and rights of the said fair, then be you in aid to the said Prior and Canons, or their bailiffs of the said fair, when hereupon you shall be requested by them or any one of them, by such ways and methods as shall seem to you the more expedient, to compel and distrain those who would diminish the said customs and rights to yield and pay the said customs and rights to the said Prior and Convent: and this do you in no wise omit. And, that those all and every the premises may come to the knowledge of all, and that no one, of what state or condition soever he be, under grave forfeiture to us, and under the peril incumbent thereon, may presume in any manner to practise any

covin or any other acts calculated to disturb in any way that fair or the profit of the fair, or the merchants or others, so that they cannot lawfully, without damage and in peace come to that fair with their merchandise, and do their business there, and return therefrom, do you cause the same to be publicly proclaimed, observed and held within your bailiwick and districts, where it shall seem to you most expedient, as often as and when hereupon by the said Prior and Convent, or any one of them, you shall on our behalf be requested. Witness Ourselves at Westminster the first day of August in the fiftieth year of our reign of England, but of our reign of France the thirty-seventh. Faryngton.

¶ This proclamation was made.

Miracle Plays.—This Fair of St. Bartholomew was long the scene of “miracle plays.” The Company of Parish Clerks—an incorporated company or gild who had charge of the records, the burials, and afterwards of the births in London, during a very long period—played at Skinners’ Well (near Smithfield) before Richard II. and his Queen and Court, towards the close of the fourteenth century; and early in the following they played before Henry IV. at the same place, during eight days, “Matter from the Creation of the world.” The early plays at this fair are believed to have been representations of great miracles ascribed to St. Bartholomew. Later came the “mysteries,” and finally the “moralities,” out of which our modern drama has been developed. All these in their turns were presented at this once famous fair.

Slaves.—In this same Fair of Smithfield, as well before as after the period upon which I am now writing, men and women—*i.e.*, slaves and captives—were sold among the articles of merchandise. And on a part of the site over which the fair extended, after the accession of Henry IV., men and women were burnt alive as heretics. The martyr fires were usually kindled on that spot of ground outside the Priory gates, over which the lighter portion of the fair spread—ground occupied by the holiday makers, and the tumblers, jesters, and dancers by whom they were entertained.

Tolls.—1445. At the close of the thirteenth century there had arisen a dispute between the City of London and the Prior regarding the tolls of this Fair, which was then decided in favour of the Priory. When the matter came up for adjudication again does not seem clear. The fair had continued to

grow, and its greatest expansion was in the direction of the City. Indeed, at this or a later period, it extended down the West side of Aldersgate nearly as far as St. Martin's-le-Grand, or to St. Paul's itself. On the other side the jurisdiction of the City extended only to Smithfield Bars. In 1399 Henry IV. had granted to the Citizens of London the office of gathering tolls in Smithfield. Probably in consequence of this arrangements were come to between the Priory and the City. Certain is it that forty-six years later, or in 1445 (23rd Henry VI.), four persons were appointed by the Court of Aldermen as keepers of Bartholomew Fair and of the Court of Piepowder. In that Court, therefore, the City then became represented as joint lord of the Fair with the Priory, the lordship of the City being founded on its right over the ground beyond the jurisdiction of the Canons. See 1538 and 1593.

Dissolution of Monasteries.—1538. This is an eventful year in the history of the Fair—the Dissolution of the Monastery was declared. The Fair itself indeed remained—it was the Priory which created it that had melted away.

Reviewing the fair as it had existed during the four centuries passed since its origin—but many of the details of which I have necessarily passed over in the preceding outline—we may adopt the picture thus freely drawn by Mr. Morley: Thus we have in the most ancient times of the Fair a church full of worshippers, among whom were the sick and maimed, praying for health about its altar; a graveyard full of traders, and a place of jesting and edification, where women and men caroused in the midst of the throng; where the minstrel and the story-teller and the tumbler gathered knots about them; where the sheriff caused new laws to be published by loud proclamation in the gathering places of the people; where the young men bowled at nine pins, while the clerks and friars peeped at the young maids; where mounted knights and ladies curvetted and ambled, pedlars loudly magnified their wares, the scholars met for public wrangle, oxen lowed, horses neighed, and sheep bleated among their buyers; where great shouts of laughter answered to the Ho! Ho! of the devil on the stage, above which flags were flying, and below which a band of pipers and guitar beaters added music to the din. That stage also—if ever there was presented on it the story of the Creation—was the first wild-beast show in the fair: for one of the dramatic effects connected with this play, as we read in an ancient stage direction, was to represent the creation of beasts by unloosing and sending among the excited crowd as great a variety of strange animals as

could be brought together; and to create the birds by sending up a flight of pigeons. Under foot was mud and filth, but the wall that pent the city in shone sunlit among the trees; a fresh breeze came over the surrounding fields and brooks, whispering among the elms that overhung the moor glittering with pools, or from the Fair's neighbour, the gallows! Shaven heads looked down on the scene from the adjacent windows of the buildings bordering the Priory enclosure; and the poor people whom the friars cherished in their hospital, made holiday among the rest. The curfew bell of St. Martin's-le-Grand, the religious house to which William the Conqueror had given with its charter the adjacent moorland, and within whose walls there was a sanctuary for loose people, stilled the hum of the crowd at nightfall, and the Fair lay dark under the starlight.

Change produces change; and so other events followed at this period. For instance, the disputations of the scholars in the Mulberry Garden at the time of the Fair ceased after the suppression of the Monastery. John Stow had witnessed these when a lad, and he furnishes the following account of the same, and of some events preceding: "As for the meeting of the schoolmasters on Festival Days at Festival Churches, and the disputing of the scholars logically, &c., whereof I have before spoken, the same was long since discontinued; but the arguing of the schoolboys about the principles of grammar hath been continued even till our time; for I myself, in my youth, have yearly seen, on the eve of St. Bartholomew the Apostle, the scholars of divers Grammar schools repair unto the Churchyard of St. Bartholomew ... where upon a bank boarded about under a tree, some one scholar hath stepped up, and there hath opposed and answered till he were by some better scholar overcome and put down; and then the overcomer taking the place did like as the first. And in the end the best opposers and answerers had rewards, which I observed not but it made good schoolmasters and also good scholars diligently against such times to prepare themselves for the obtaining of this garland. I remember there repaired to these exercises amongst others, the masters and scholars of the free schools of St. Paul's in London, of St. Peter's at Westminster, of Thomas Acon's Hospital, and of St. Anthonie's Hospital; whereof the last named commonly presented the best scholars and had the prize in those days. This priory of St. Bartholomew being surrendered to Henry the Eighth, those disputations of scholars in that place surceased; and was again, only for a year or twain, revived in the Cloister of Christ's Hospital,

where the best scholars, then still of St. Anthonie's school, howsoever the same be now fallen both in number and estimation, were rewarded with bows and arrows of silver, given to them by Sir Martin Bower, goldsmith. Nevertheless however, the encouragement failed—the scholars of St. Paul's meeting with those of St. Anthonie's would call them Anthonie's Pigs, and they again would call the others Pigeons of Paul's because many pigeons were bred in St. Paul's Church, and St. Anthonie was always figured with a pig following him; and mindful of the former usage, did for a long season disorderly provoke one another in the open street with '*Salve tu quoque, placet mecum disputare?*'—'*Placet.*' And so proceeding from this to questions in grammar, they usually fell from words to blows with their satchels full of books, many times in great heaps, that they troubled the streets and passengers; so that finally they were restrained with the decay of St. Anthonie's school."

It was during this reign of Henry VIII. that Grotwell (or Cartwell), himself a common hangman—for there were then many of this occupation, and plenty of employment—was hanged with two others, for robbing a booth at the Fair. They were executed in the wrestling place at Clerkenwell.

I may resume the historical narration. When the King had taken the estates of the greater monasteries, they were put under the management of a Royal Commission, with Sir Richard Rich—under the style of Chancellor of the Court of Augmentations—at its head. The Prior's house became Lord Rich's town mansion; and with this mansion in Great St. Bartholomew there had been assigned to him and his for ever, the Close of the said late monastery or priory called Great St. Bartholomew Close, and all the limits and precincts of the said Close; also all those closes, edifices, called the fermery, the dorter, the frater, the cloisters, the gallery, the hall, the kitchen, the buttery, the pantry, the old kitchen, the woodhouse, the garner, and the Prior's stable, of the said late monastery and priory belonging; and also all that water and the aqueduct and water-course coming from the conduit-head of St. Bartholomew in the manor of Canonbury.

By the same Letters Patent the King farther granted to Sir Richard Rich, knight, his heirs and assigns, "all that Our Fair and Markets, commonly named and called Bartholomew Fair, holden and to be holden every year within the aforesaid Close called Great St. Bartholomew Close, and in West Smithfield aforesaid to continue yearly for three days," &c. And also all the

stallage, piccage, toll, and customs of the same Fair and Markets; and also all our Courts of Piepowders within the same; also the scrutiny of weights and measures and things exposed to sale, and the Assize of bread, wine, and ale, and other victuals. This grant included the tolls of the Cloth Fair, but not, of course, the rights of the City to the tolls for the fair outside St. Bartholomew's enclosure.

Growth of London.—1590. During the reign of Elizabeth various attempts had been made to stop the growth of London. Proclamations had been issued forbidding under heavy displeasure the building of new houses. But the Elizabethan era was an important one in the development of commerce, as it had been in the fostering of learning; and with the development of commerce there came a greater influx of strangers into the city. Thus it came about that more houses in the city were imperative. It was found that the lines of trade marked at Bartholomew Fair by the standings of the clothiers and others, would yield more money as streets of houses than as streets of booths, and so, before the close of the century, as Stow tells us, "notwithstanding all proclamations of the prince, and also the act of parliament, in place of booths within the churchyard (only let out in the fair time and closed up all the year after) be many large houses built, and the north wall towards Long Lane taken down, and a number of tenements are there erected for such as will give great rents." This last line of trading-houses was substituted for the profitless dead wall. Parallel with it, through the ground vacant of building north of the church, which that wall had enclosed, parallel also with one of the church walls, a street of considerable houses occupied the site and kept the name of Cloth Fair.

Plague.—1593 (53rd of Elizabeth). The plague being now prevailing in the city, the queen issued a proclamation on 6th August, about three weeks before the usual time of the fair, in substance as follows:—Whereas there was a general resort of all kinds of people out of every part of the realm to the said fair; but that (on this occasion) in the usual place of Smithfield there should be no manner of market for any wares kept, nor any stalls or booths for any manner of merchandise, or for victuals, suffered to be set up; but that the open space of the ground called Smithfield, be only occupied with the sale of horses and cattle, and of stall wares, as butter, cheese, and such like in gross, and not by retail, the same to continue for the space of two days only.

And for the vent of woollen cloths, kerseys, and linen cloth, to be all sold in gross and not by retail; the same should be brought within the close-yard of St. Bartholomew (afterwards known as the Cloth Fair) where shops were there continued (*i.e.* not deserted by reason of the plague) and have gates to shut the same place in the nights, and then such to be offered to sale, and to be bought in gross and not by retail; the same market to continue but three days—that is to say Even, the Day of St. Bartholomew and the Morrow after.

And that the sale and vent of leather be kept in the outside of the ring of Smithfield, as had been accustomed, without erecting of any shops or booths for the same, or for any victualler or other occupier of any wares whatsoever.

And that notice hereof be given to such of H. M.'s good subjects as for lack of knowledge of this H. M.'s princely ordonnance might resort to London to sell or buy small wares by retail, and there receive infection, and carry the same into their countries, H. M. commanded that the Lord Mayor of London should cause this proclamation to be presently published in all the usual places in the City, in the time of two or three market days, and to be also Proclaimed by the Sheriffs of Middlesex, Kent, Surrey, and Essex, in some places of those Counties near to the said City, whereby none might resort to the City at this Feast of St. Bartholomew, by pretence of any Fair, but such as should have cause to sell or buy the commodities in gross.

Imprisonment, without bail, during the Queen's pleasure, or further punishment, was to be the penalty for the infraction of this ordinance. Mr. Morley, reviewing this proclamation, says the inference to be drawn from it was that the fair, as a place of wholesale commerce, was not to be suppressed without more injury to trade than the fear of plague would force the Queen's advisers to inflict. But this consideration must be qualified by the fact that the chief risk came from the throng of pedlers, hawkers, stall-keepers, showmen, and holiday-makers from the country round about; and that the soberer resort of merchants to the fair, while it was certainly in one respect a greater good, was in the other respect also a lesser evil. Also, there was a wealthy nobleman at court unwilling to part with a year's tolls from the Cloth Fair and the Close, and able to urge actively, from motives of self-interest, considerations that were, at the same time, not wanting in justice.

1596. A formal agreement was made between Lord Rich and the Corporation of London, establishing a composition of the tolls of the fair; and, as to jurisdiction, placing both parties nearly in the relative position occupied by the Priory and the Corporation in 1445.

A Foreigner's View of the Fair.—1598. Paul Hentzner, a German tutor, travelled this year through Germany, France, Italy, and England, and kept an “Itinerarum,” of which many editions have been published. I quote the following description of Bartholomew Fair from the Aungervyle Society's translation (1881):—“It is worthy of observation that every year upon St. Bartholomew's Day, when a fair is held, it is usual for the Mayor, attended by the twelve principal Aldermen, to walk in a neighbouring field dressed in his Scarlet Gown, and about his neck a Golden Chain, to which is hung a Golden Fleece, and besides that particular ornament, which distinguished the most noble Order of the Garter ... himself and they on horseback; upon their arrival at a place appointed for that purpose, where a tent is pitched, the mob begin to wrestle before them, two at a time; the conquerors receive rewards from the magistrates. After this is over, a parcel of live rabbits are turned loose among the crowd, which are pursued by a number of boys who endeavour to catch them, with all the noise they can make. While we were at this show, one of our company, Tobias Salander, Doctor of Physic, had his pocket picked of his purse, with nine crowns *du soleil*, which without doubt was so cleverly taken from him by an Englishman who always kept close to him, that the Doctor did not the least perceive it.”





CHAPTER XVII.

THE SEVENTEENTH CENTURY.

1603.

The plague was again threatening the City, and James I. issued a proclamation, dated from Hampton Court, 8th August, ordaining that for the “desire of preventing an universal contagion among our people,” that (*inter alia*) Bartholomew Fair should not be holden, “nor anything appertaining unto them, at the times accustomed, *nor any time till they shall be licensed by us.*” These last words might have been held to imply more than was directly understood.

Proclamation by City of London.—1604. The arrangement of 1596 prepared the way for the Corporation taking the active control of the fair. Hence among the Orders of my Lord Mayor, the Aldermen, and the Sheriffs for their meetings and wearing of their apparel through this year, was the following:—

“ON SAINT BARTHOLOMEW’S EVEN FOR THE FAIR IN SMITHFIELD.—The Aldermen meet my Lord and the Sheriffs at the Guildhall Chapel, at two of the Clock after dinner, in their violet gowns lined, and their horses, without cloaks, and there hear Evening Prayer; which being done, they take their horses and ride to Newgate, and so forth to the gate entering in at the Cloth Fair, and there make a Proclamation,” which was as follows:—

PROCLAMATION.—The Right Hon. the Lord Mayor of the City of London, and his right worshipful Bretheren the Aldermen of the said City, streightly charge and command, on the behalf of our Sovereign Lord the King, that all manner of persons, of whatsoever estate, degree, or condition they be, having recourse to this fair, keep the Peace of our said Sovereign Lord the King.

That no manner of persons make any congregation, conventicle, or affrays, by the which the same peace may be broken or disturbed, upon pain of imprisonment and fine, to be made after the discretion of the Lord Mayor and Aldermen.

Also, that all manner of sellers of wine, ale, or beer, sell by measures ensealed, as by gallon, pottle, quart and pint, upon pain that will fall thereof.

And that no person sell any bread, but if it keep the assize, and that it be good and wholesome for man's body, upon pain that will fall thereof.

And that no manner of person buy nor sell but with true weights and measures, sealed according to the Statute in that behalf made, upon pain that will fall thereof.

And that no manner of person, or persons take upon him, or them, within this Fair to make any manner of arrest, attachment, summons, or execution, but if it be done by the officer of this City, thereunto assigned, upon pain that will fall thereof.

And that no person or persons whatsoever, within the limits and bounds of this fair, presume to break the Lord's Day in selling, showing, or offering for sale, or in buying or offering to buy, any commodities whatsoever, or in sitting, tippling, or drinking in any tavern, inn, alehouse, or cook's-house, or in doing any other thing that may lead to any breach thereof, upon the pain and penalties contained in the several acts of parliament, which will be severely inflicted upon the breakers hereof.

And finally, that whatever person soever find themselves aggrieved, injured or wronged by any manner of person in this Fair, that they come with their complaints before the Stewards of this Fair, assigned to hear and determine pleas, and they will minister to all parties justice, according to the laws of the Land and the Customs of this City. God save the King!

Then, the mayor, sheriffs and aldermen, sitting on horseback, robed in their violet gowns, having again made this proclamation at a point between the City Fair and that owned by the Warwick or Holland family (as successors of Sir Richard Rich?), ride through the Cloth Fair, and so return back again, through the Churchyard of Great St. Bartholomew's to Aldersgate, and thence home again to the Lord Mayor's house.

Tradition declares that the mayor, when he had read the Proclamation, drank ale from a silver flagon, and that thereupon the bustle and business of the fair began. I believe as a matter of fact the proclamation was usually read by the Lord Mayor's attorney, and repeated after him by the sheriff's

officer, in the presence of the Lord Mayor, Aldermen, and sheriffs. The officers of the Lord Mayor's household afterwards dined at the Sword-bearer's table. This may have become the custom at a later date. See 1688.

Merchant Taylors' right of search.—1609. An incident occurred this year which raised the question of jurisdiction concerning an important function which had heretofore been deemed of much consequence. Immediately before the fair of this year the Drapers questioned the right of search, for cloth pieces of insufficient length or quality, as exercised by the Merchant Taylors. What followed is shown by the records of the last-named company. Its clerk was ordered thereupon to attend Drapers' Hall on the next court day with a message to the following purport, viz., That the Merchant Taylors' Company had right to search, and that they had quietly enjoyed the same since the 27th of Henry VI., being above 150 years past, and still earlier, as by the Merchant Taylors' records appeared, wherein is mentioned a lengthened lawsuit between them and the Drapers about the same question of right of search, when a sentence was passed for the Merchant Taylors. There is in 1612 a note of a dinner at Merchant Taylors' Hall "for the search on St. Bartholomew's Eve."

The Drapers were incorporated as a Guild in 1364. In their charter was a special exemption made against any prohibitions to be exercised by the Company regarding the sale of cloth by any who were not free drapers, in favour of the King's beloved in God, the Prior of St. Bartholomew's, in West Smithfield, and other lords who had fairs in the suburbs of London. A draper meant originally one who made the cloth he sold. It was the London designation for clothier, a very few members of the Drapers' Company being resident beyond the limits of the City. Therefore, say the old writers, that Bartholomew Fair was frequented by "the clothiers of England and the drapers of London." Mercers especially frequented fairs and markets, where their standings were gay with haberdashery, toys, and even drugs and spices, the small articles of traffic on which they thrived. Mercers attending the French fairs towards the close of the thirteenth century paid only half-toll when they were not stall keepers, but exposed their wares on the ground. They, and the class of pedlers to which they were allied, may have enjoyed a like privilege in England. But while many of the mercers were thus of the brotherhood of Autolycus, others dealt largely in silk and velvet, and abandoned to the haberdasher traffic in small articles of dress.

Whittington, thrice Lord Mayor of London, was a mercer.—*Vide Morley*, p. 95.

Paving the Streets.—1614. This was an important year in the annals of Smithfield. It passed from its old and normal condition of mud, into a clean and paved enclosure, such as was familiar to many of us before the new market buildings were erected in 1866. Other changes had preceded. It was not until 1608 that the City had obtained a grant of the ground of the late Priory of St. Bartholomew, which had been constituted into a parish after the dissolution. Again, while it had ceased some time before to be the scene of the morning performances of the common hangman—Tyburn (itself afterwards absorbed in May Fair) having succeeded to the distinction; it had still remained the *locus* of a far more savage form of persecution. The ashes of the last martyr fire had burned out in 1611—the victim being Bartholomew Leggatt, a pious Unitarian, burnt for distrust of the Athanasian and Nicene creeds, by the order of James I. at the sentence of John King, newly-made Bishop of London!

The Drama.—As if more prominently to mark the transition state last indicated, and perchance also as a memento, that in the very place had been enacted (under the patronage of and for the purposes of the Church) the first drama that England had ever seen; and which had step by step progressed from mysteries to miracle plays, thence on to moralities, and was now advancing to the state of taking an independent stand as a National Drama—as if, I say, to commemorate this circumstance with emphasis, “rare Ben Jonson” produced his celebrated comedy of “Bartholomew Fair,” one of the chief features in which is the vivid painting of the characters through whom the satirist portrays the follies of the fair. They are many and various; each one planned to bring into prominence one of the characteristics of the motley gathering. Competent authorities have declared this to be equal to any of the best works of the author. I confess not to have discovered many points for admiration. There are a few good points in it which may be reproduced! A stranger appears in the fair, a Puritan, designated Zealot-of-the-land Busy. He is ordered to be put in the stocks, and says “I do obey thee, the Lion may roar but he cannot bite. I am glad to be thus separated from the *Heathen* of the Land, and put apart in the Stocks for the holy cause.” Humphrey Wasp inquires who he is. He replies “One that rejoiceth in his affliction, and sitteth here to prophecy the Destruction of *Fairs*, and

May-games, Wakes, and Whitson-ales, and doth sigh and groan for the reformation of these abuses.” Lanthorn Leatherhead recounts some of the “motions” (plays) in which he had taken part at this fair. “‘Jerusalem’ was a stately thing, and so was ‘Nineveh,’ and the ‘City of Norwich’ and ‘Sodom and Gomorrah;’ with the rising o’ the Prentices ...; but the ‘Gunpowder-plot,’ there was a get-penny! I have presented that to an eighteen or twenty-pence audience nine times in an afternoon. Your home-born projects ever prove the best, they are so easy and familiar; they put too much learning in their things now o’ days.” In this spirit John Littlewit had been adapting a too classical play to the comprehension of the frequenters of the fair, “as for the *Hellespont*, I imagine our Thames here; and their *Leander* I make a Dyer’s son about Puddle Wharf; and *Hero* a wench of the Bankside, who going over one morning to Old Fish Street, *Leander* spies her land at Trig-stairs, and falls in love with her; now do I introduce *Cupid*, having metamorphoz’d himself to a drawer [pot-boy] and he strikes *Hero* in love with a pint of sherry....”

The Plague.—1625. The Plague again appeared in the Kingdom, and Charles I. issued a Proclamation from his Court at Woodstock, wherein he recites that there is usually extraordinary resort *out of all parts of the Kingdom* of persons to attend this and Stourbridge Fair; hence there is prohibition against attending these fairs or any others held within fifty miles of the City of London.

1630. Another like proclamation in consequence of Plague—this time being in Cambridge. The King remembering that there were at hand “three great Fairs of special note, unto which there is extraordinary resort from all parts of the Kingdom,” attendance at Bartholomew, Stourbridge and Our Lady Fair (Southwark) was prohibited.

1637. Again the Plague, and there was issued: By the King. A Proclamation for putting off this next Bartholomew Faire in Smithfield, and our Lady Faire in Southwarke. Giuen at our Court at Oatelands, the three and twentieth day of Iuly in the thirteenth yeare of our Reigne. God save the King. Imprinted at London by Robert Barker, Printer to the King’s most excellent Maiestie: And by the Assigns of Iohn Bill. 1637. A sheet in Black Letter. Copy in Mr. Huth’s Library.

New Grant to the City.—1638. Charles I. this year granted a Charter to London which contained the following:

We will also, and by these presents for us our heirs and successors declare and grant that the said Mayor and Commonalty and Citizens and their successors for ever may have hold and enjoy all those fields called or known by the name of — and also all that field called West-Smithfield in the Parish of St. Sepulchre's, St. Bartholomew the Great, St. Bartholomew the Less in the suburbs of London, or in some of them, to the uses, intents and purposes after expressed; and that the same Mayor and Commonalty and Citizens, and their successors may be able to hold in the said field called Smithfield, *Fairs* and *Markets* there to be and used to be held, and to take receive and have pickage, stallage, tolls and profits appertaining, happening, belonging or arising out of the fairs and markets there, to such uses as the same mayor and commonalty and citizens, or their predecessors had, held or enjoyed, and now have, hold and enjoy, or ought to have, hold or enjoy the said premises last mentioned, and to no other uses, intents and purposes whatsoever.

Wrestling Matches.—It had been the time-honoured custom of this fair to have contests in wrestling. And during the reign of James I. (apparently) the Corporation of the City laid down the following regulation to be observed on the attendance of the Mayor and members of the Corporation to witness the sport:

“ON BARTHOLOMEW DAY FOR WRESTLING.—So many Aldermen as dine with my Lord Mayor and the Sheriffs, be apparelled in their scarlet gowns, lined, and after dinner their horses be brought to them where they dine, and those aldermen which dine with the sheriffs, ride with them to my lord's house to accompany him to wrestling. Then when the wrestling is done, they take their horses, and ride back again thro' the Fair, and so in at Aldersgate, and so home again to the said Lord Mayor's house.”

Then there was a regulation for attending the “Shooting” there, as follows: “The next day, if it be not Sunday, for the Shooting as upon Bartholomews day, but if it be Sunday, the Monday following.”

Description of the Fair.—1641. There was published a Tract (a small quarto of four leaves): “Bartholomew Faire, or Variety of fancies, where you may find, a faire of wares and all to please your mind. With the severall

Enormities and misdemeanours, which are there seene and acted. London, printed for Richard Harper at the Bible and Harp in Smithfield,” wherein the author, after giving a graphic account of the art of picking pockets there, proceeds:

It is remarkable and worth your observation, to behold and hear the strange sights and confused noises in the fair. Here a knave in a Fool’s coat, with a trumpet sounding, or on a drum beating, invites you and would fain persuade you to see his puppets; there a Rogue like a Wild Woodman, or in an antick shape like an incubus, desires your company to view his motion; on the other side Hocus Pocus with three yards of tape or ribbon in ’s hand, showing the art of Legerdemain to the admiration and astonishment of a company of cockoloaches. Amongst these you shall see a gray Goose-cap (as wise as the rest) with a What de ye lack? in his mouth, standing on his booth shaking a rattle, or scraping on a fiddle, with which children are so taken, that they presently cry out for these fopperies; And all these together make such a distracted noise, that you would think Babel were not comparable to it. Here there are also your gamesters in action; some turning of a whimsey, others throwing for pewter, who can quickly dissolve a round shilling into a three halfpenny saucer.

Long Lane at this time looks very fair, and puts out her best clothes with the wrong side outwards, so turned for their better turning off; and Cloth Fair is now in great request: well fare the alehouses therein; yet better may a man fare (but at a dearer rate) in the Pig market, alias Pasty nook or Pie Corner, where pigs are all hours of the day on the stalls piping hot, and would cry (if they could speak) Come eat me; but they are ... dear and the reckonings for them are ... saucy, &c. &c.

It is clear that the glory of the fair is departing—Royal Proclamations notwithstanding.

Political Pamphlets.—1647. It seems to have become the fashion to designate some of the many political pamphlets of this period “Bartholomew Fairings.” One such work appeared this year entitled: “General Massey’s Bartholomew Fayrings to Colonel Poyntz.” This was ascribed to the famous John Lilburne. It was answered in another pamphlet: “Reformados Righted, being an Answer to a paltry piece of Poetry entitled, &c.” There is nothing in either of these throwing any light upon the fair.

The same was not quite the case with a quarto pamphlet of the following year: "An Agitator Anatomised." Here was reference to "a large and beautiful Camel from Grand Cairo in Egypt." Mr. Morley thinks this may have been the beginning of "wild-beast shows" in the fair.

This year the Act was passed against "Stage plays." It seemed destined to have an influence on the fair.

1648. Evelyn in his "Diary," under date 28th August this year, notices his coming to London from Say's Court and seeing the "the celebrated follies of Bartholomew Fair." The date here seems to indicate some change in the date of the fair.

The Commonwealth and the Fair.—1649. This was a year of political commotion. The troubles with the King had terminated on the block. There was issued in the form of a tract, a book-play entitled: "A Bartholomew Fairing, New, New, New; Sent from the raised siege before Dublin, as a preparatory Present to the Great Thanksgiving Day. To be communicated onely to Independents." It was published without any printer's name. Its contents throw some light upon the political events of the period; but these have no bearing upon the fair, present or future.

It seems indeed to have been anticipated that the advent of the Puritans into power in this the first year of the Commonwealth might have led to the suppression of the fair. The speech of Zealot-of-the-land Busy, while sitting in the stocks at the fair in 1614 ("Bartholomew Fair," by Ben Jonson) seemed prophetically to hint at this. Mr. Morley gives the following instructive picture of the period:

The Puritans did not suppress Bartholomew Fair. There were indeed no dramas performed in it by living actors, but the state did not condescend, like Rabbi Busy, to engage in controversy with the puppets. It was for the Corporation of London, if it pleased, to exercise control, and there was a Lord Mayor, who, as we shall see, did make himself eminent for an attack upon the wooden Dagon of the Show. Against the fool in his motley none made war; Cromwell himself had in his private service four buffoons, and had he visited the fair, true hero as he was, might have been well disposed to mount a hobby-horse. Therefore the clown still jested, and the toyman thrust his baubles in the face of the Roundhead, while the Cavalier's lady, with a constellation of black stars about her nose, a moon of ink on her

chin, and a coach and horses—a very fashionable patch—on her forehead, laughed at the short hair under the broad-brimmed hat of the offended gentleman. Well might she laugh at the miserable scarecrow in plain cloak and jerkin, and in boots that fitted him: for he had no love locks and no peaked beard like the gallant at her side; he wore only a little pecked band instead of a laced collar, and as for his breeches—not only did they want ornament and width; but they even showed no elegant bit of shirt protruding over them! Across the Smithfield pavement, Cavaliers in boots two inches too long, and with laced tops wide enough to contain each of them a goose, straddled about; compelled to straddle in order that the long and jingling spur of one boot, hooked into the ruffle of the other, might not bring down the whole man into the gutter. Women I say might note such things, but the men were in earnest. The dainty Cavalier in the historical shirt, embroidered with the deeds of profane heroes, might glance from the speckled face of his companion towards the clean cheeks of the Puritan maid in the religious petticoat worked over with texts and scripture scenes; all had their vanities, their froth of weakness floating loose above the storm; all had an eye for the jest of the fair, but under it lay in a heaving mass the solemn earnest of the time. The fair brought together from almost all parts of England, men who had urgent thoughts to exchange, harmonies and conflicts now of principle and now of passion to express. The destiny of fatherland was hidden from all in a future black with doubt. Men brave and honest had their souls pledged in allegiance to an earthly king, over whom and against whom others as brave and as honest set up rights given to them by the King of kings.

1650. There was published a broadside and cut, with a “Description of Bartholomew Fair:”—

“Whether this be wit or nonsense, who need care,
'Tis like the subject, which is Bartholomew Fair:
A mess of altogether, well enough,
To get good money, which will make us huff,
And swagger bravely, drink a glass or so,
With some kind she-acquaintance which you know,
Are pretty tempting things, so much for that,
I must now come and tell you plain and flat:
That in this song the whole Fair you may view,

You may believe me when I tell you true.”

Set to the tune of “Digby’s Farewell.” Printed for F. Coles, T. Vere, J. Wright, and J. Clarke. Containing twelve stanzas of eight lines.

1656. During the Commonwealth several attempts were made by the lord mayors to put some check on the freedom of this fair.^[8] One of them, Sir John Deltrich, was knighted by Cromwell soon after the fair-time (viz. 5th Sept.) in 1656; and it has been rightly assumed that he was the mayor who pressed hard against those puppet showmen and others who had commenced the business of the fair, as he conceived, twelve hours too soon, and were already at work when he arrived to proclaim the opening. This event appears to have led to a burlesque opening by a company of tailors who met at the “Hand and Shears” already noticed on the night before the official opening, elected a chairman, and as the clock struck twelve, went out into the Cloth Fair, each with a pair of shears in his hand. The chairman then proclaimed the fair to the expectant mob; and then all formed a procession to proceed in tumultuous array to announce the fair to the sleepers in Smithfield, by the ringing of bells and other discordant manifestations. The following is the form of proclamation used, and contains nothing objectionable.

An unauthorised Proclamation.—O yez! O yez! O yez! All manner of persons may take notice that in the Close of St. Bartholomew the Great and West Smithfield, London, and the streets, lanes and places adjoining, is now to be held a Fair for this day and the two days following, to which all people may freely resort and buy and sell according to the Liberties and Privileges of the said Fair, and may depart without disturbance, paying their duties. And all persons are strictly charged and commanded in His Majesty’s name, to help the peace, and to do nothing in the disturbance of the said Fair, as they will answer the contrary at their peril; and that there be no manner of arrest or arrests but by such officers as are appointed. And if any person be aggrieved, let them repair to the Court of Pie-Powder, where they will have speedy relief according to Justice and Equity. God save the King.

This irregular proclamation seems to have been accepted as a legal act by the Lord Kensington who had become owner of one-half of the tolls of the

fair, and it continued down to 1839. It was but a repetition of the double jurisdiction claimed in Sturbridge Fair.

There is in the library of the British Museum a doggrel ballad, printed as a broad-sheet, called “The Dagonizing of Bartholomew Fair,” which describes, with coarse humour—the grossness of which may be attributed in part to the mingled resentment and contempt which underlies it—the measures taken by the civil authorities for the removal from the fair of the showmen who had pitched there in spite of the determination of the Lord Mayor and the Court of Aldermen to suppress with the utmost rigour everything which could move to laughter or minister to wonder. Among these are mentioned a fire-eating conjuror, a “Jack Pudding,” and “wonders made of wax,” being the earliest notice of a waxwork exhibition which I have been able to discover.—FROST’S *Old Showman*, &c., p. 31.

In “A Caveat for Cut-purses,” a ballad of the time of Charles I., there is the following:—

“The Players do tell you, in Bartholomew Faire,
What secret consumptions and rascals you are;
For one of their Actors, it seems, had the fate
By some of your trade to be fleeced of late.”

In another ballad, “Ragged and Torn and True,” there is this:—

“The pick-pockets in a throng
At a market or a faire,
Will try whose purse is strong,
That they may the money share.”

The Restoration.—1661. The Restoration led to a considerable reaction from the severities of the Commonwealth, and the incidents of the fair were affected thereby, as will be seen. The first noticeable feature is that the period of the fair becomes permanently prolonged from three to fourteen days; with occasional extensions it is said to six weeks’ riot and amusement. Another that the pamphleteering continued to be associated with the fair. There was one “Strange News from Bartholomew Fair” &c. by Peter Aretine, printed for “Theodosus Microcosmus.” The contents of this publication are altogether too gross for detailed mention. There was another

tract "News from Bartholomew Fair. Or the World's Mad: being a Description of the Varieties and Fooleries of this present Age," with Allowance (*i.e.* Licensed) "Printed for the general use of the Buyer, and particular Benefit of the Seller." It had for motto "Risum teneatis amici?" and a frontispiece representing a modified Puritan, in presence of Jacob Hall the fashionable rope-dancer, exhibiting the varieties of dress!

1663. "Pepys's Diary," that never-failing source of reference, throws some light upon the doings of the fair at this period. On the 25th Aug. morrow of St. Bartholomew's Day (new style), Mr. Pepys going at noon to the Exchange, met a fine fellow with trumpets before him in Leadenhall Street, and upon inquiry found that he was "Clerk of the City Market:" three or four men attended him each carrying an arrow of a pound weight in his hand. This was a revival by the Lord Mayor of the old City custom of challenging any to shoot at the fair. The previous day his lordship had attended to witness the wrestling. On the following there was to be the civic hunting! But the feeling had so far changed (perhaps in consequence of the event of 1656) that the Lord Mayor's presence was not desired at this. "The people of the fair cry out upon it, as a great hindrance to them."

1664. From the correspondence of the philosopher John Locke, at this date it is clear he had elbowed his way with the rest of the world through the crowd and made a study of this fair. Thus describing the sights of the city of Cleves (from whence he writes) to John Strachy at Bristol, he says "In the principal church at Cleves was a little altar for the service of Christmas Day. The scene was a stable, wherein was an ox, an ass, a cradle, the Virgin, the Babe, Joseph, shepherds, and angels, *dramatis personæ*. Had they but given them motion it had been a perfect Puppet play, and might have deserved pence a piece; for they were of the same size and make that our English puppets are; and I am confident these shepherds and this Joseph are kin to that Judith and Holophernes which I had seen at Bartholomew Fair."

Plague.—1665-6. There was no fair in these years in consequence of the Plague visitation. In the former of the two years at the usual fair-time bale fires were burning in the streets night and day to purify the air, and they continued until quenched by heavy rain. In the following year there occurred during the fair-time (as now extended) the Great Fire of London, flames two miles in extent and a mile in breadth, with smoke extending

fifty miles. There would have been a scene of intense confusion if the fair had been gathered; no real danger, perhaps, as the conflagration ended at Pye Corner, on the verge of the site of the fair. The houses then spared here were in existence down to Oct. 1809.

In the following year the fair was resumed, and probably was of some service to the City in bringing people and money to it again. Pepys “the immortal” records under date 28th Aug. “went twice round Bartholomew Fair, which I was glad to see again, after two years missing of it by the plague.” It seems patent that Court people and ladies of all qualities were at home in the fair at this period. Pepys records how he took his wife in 1668 “and there did see a ridiculous obscene little stage play called ‘Marry Audrey,’ a foolish thing, but seen by everybody; and so to Jacob Hall’s dancing of the ropes—a thing worth seeing and mightily followed.”

Tolls.—1671. The Corporation of London was dissatisfied with the profits of the fair accruing from the arrangement then subsisting, and referred it to the Comptroller to let the ground for the City and report the tolls to the first court after the fair. This was done, and appears to have been satisfactory, as the Corporation continued to receive the direct proceeds down to 1685, when the tolls were leased to the Sword-bearer for three years at a clear rental of £100 per annum. At the expiration of two years it was reported that the tolls had not amounted to more than £68; they were leased to the Sword-bearer at this rental for twenty-one years.

1674. In “Poor Robin’s Almanack” for this year, in a catalogue of jests upon the purposes or features of fairs, is the following “Aug. 24 Smithfield for Jack puddings, pigs heads, and Bartholomew Babies.”

1678. The “Irregularities and Disorders” of this fair were brought under the notice of the civil authorities; and the question was referred to a Committee “to consider how the same might be prevented, and what damages would occur to the City by laying down the same.” This is the first hint of suppression by the City; “and its arising,” says Mr. Morley, “is *almost simultaneous with the decay of the great annual gathering as a necessary seat of trade.*” He adds, “There is no year in which it can be distinctly said that then the Cloth Fair died. Even at this hour, when the fair itself is extinct, there are in the street called Cloth Fair, on the site of the old mart, one or two considerable shops of Cloth-merchants, who seem there to

have buried themselves out of sight, and to be feeding upon the traditions of the fair.”

Cloth Trade.—It is in connection with the woollen cloth trade that Bartholomew Fair most linked itself with commerce. It was not simply the great metropolitan cloth fair, but it was the greatest fair for woollen cloths held in England. For centuries wool had been the great staple of this country. Kings had taken its regulation under their own particular charge. The highest official in the land took his seat amongst the peers of the realm literally on a sack of wool. Cloth ranked first amongst the products of the nation’s industry. Among the fairs of the world English woollen cloth was an important article of commerce. The centre of this trade for several centuries was located in this particular fair. Other fairs had other specialities. But St. Bartholomew’s was the annual trade gathering of English clothiers and London drapers. The arms of the Merchant Tailors were engraved upon a silver yard—thirty-six inches in length and thirty-six ounces in weight,—with which century after century members of their body were deputed to attend at West Smithfield during the fair, and test the measures of the clothiers and drapers (See 1609). The “Hand and Shears” was a famous hostelry within the Close, where the cloth-merchants and the tailors fraternized. And here, too, the Court of Piepowder was long held when removed from the Abbey.

It remains to be stated in connection with the events of this year that there was a very grave question involved as to whether the City had any legal right to suppress the fair. The Cattle Fair was still very considerable (see 1715).

1682. There was published a new edition of “Wit and Drollery: Jovial Poems” (1682); there is contained the following epitome of the features of the fair (not contained in the edition of 1656):—

“Here’s that will challenge all the fair,
Come buy my nuts and damsons and Burgamy pears!
Here’s the Woman of Babylon, the Devil and the Pope,
And here’s the little Girl just going on the Rope!
Here’s *Dives and Lazarus* and the *World’s Creation*,
Here’s the *Tall Dutch Woman*, the like’s not in the nation.
Here is the Booths where the high Dutch maid is,

Here are the Bears that dance like any Ladies;
Tat, tat, tat, tat, says little penny Trumpet;
Here's Jacob Hall, that does so jump it, jump it;
Sound Trumpet, sound, for silver spoon and fork,
Come, here's your dainty Pig and Pork."

It had in fact come to this—as Sir Robert Southwell truly said in a letter to his son in 1685: "The main importance of this fair is not so much for merchandise, and the supplying what people really want; but as a sort of Bacchanalia, to gratify the multitude in their wandering and irregular thoughts."

1688. It had become a custom for the Lord Mayor after proclaiming the fair to call upon the keeper of Newgate, whose services were usually involved during the fair, and partake of "a cool tankard of wine, nutmeg, and sugar." This year Sir John Shorter—natural grandfather of Horace Walpole, and of his cousins the Conway Seymours—followed the usual course, but let the lid of the tankard flop down with so much force that his horse started; he was thrown to the ground, and died the next day. The practice was discontinued during the second mayoralty of Sir Matthew Wood.

In "The Lady's New Year's Gift; or, Advice to a Daughter," published this year, it is observed: "Some women are for merry-meetings, as Bessus was for Duels; they are engaged in a Circle of Idleness, where they run round for the whole year, without the interruption of a serious hour; they know all the Players names & are Intimately acquainted with all the Booths in Bartholomew Fair."

1690. Literature still continued to be associated with the fair. Thus there was published this year: "The City Revels, or the Humours of Bartholomew Fair," by J. G. Gent. Sold by Randal Taylor, near Stationers-Hall, and by most Booksellers. Price stitched 6d.—not a single copy of which is now known to exist. There was also published about this date "Roger in Amaze: Or the Countrymans Ramble through Bartholomew Fair. To the tune of: The Dutch Womans Jigg. Printed by and for A. M. and sold by J. Walter," &c. A sheet containing eight six-line stanzas. (Library of H. Huth, Esq.)

1691. There was a strong feeling setting in at this period against the fair. The Corporation ordered a return to the original term of three days, not only

as a check to vice, but in order that the pleasures of the fair might not choke up the avenues of traffic. It is clear that this was not effective, for the order was repeated three years later. See 1711.

1697. The Lord Mayor issued an Ordinance “for the suppression of vicious practices in Bartholomew fair, as obscene, lascivious and scandalous plays, comedies, and farces, unlawful games and interludes, drunkenness, &c., strictly charging all constables and other officers to use the utmost diligence in prosecuting the same.” *Vide* “Postman” of this date.

Political allusions were very freely made in the amusements of the Fair; and sometimes these brought speedy retaliation. Thus, in the present year William Philips, a Zany or Jack Pudding, was arrested and publicly whipped for perpetrating in the fair a jest on the repressive tendencies of the Government, which the poet Prior has condensed and preserved for us. The said clown made his appearance on the exterior stage of the show with a tongue in his left hand, and a black pudding in his right. Professing to have learned an important secret, by which he hoped to profit, he communicated it to the mountebank, in words recorded by Prior thus:—

Be of your patron’s mind whate’er he says;
Sleep very much, think little, and talk less:
Mind neither good nor bad, nor right nor wrong;
But eat your pudding, slave, and hold your tongue.

This same W. Philips is suspected to have an important history of his own—indeed, to have been something besides a clown. He is believed to have been the author of the “Revengeful Queen,” published in 1698; also of “Alcamenes and Menelippa,” and of a farce called “Britons, Strike Home,” which was acted in a booth in Bartholomew Fair. Relating to him is also supposed to have been a book published in 1688, of which nothing but the title-page is now known to exist. This is preserved in the Harleian collection, viz., “The Comical History of the famous Merry Andrew, W. Phill., Giving an account of his Pleasant Humours, Various Adventures, Cheats, Frolicks, and Cunning Designs, both in City and Country.” A copy of this would now command a large price.

Another of the great show characters of this period was Joseph Clark, the “Posturer.” He is the “whimsical fellow” mentioned by Addison in the

“Guardian,” No. 102. He was the son of a distiller in Shoe Lane, and was intended for the medical profession. This did not suit his views, nor did the trade of a mercer, to which he was next put. He probably became buffoon in the Court of the Duke of Buckingham. Finally he appeared in the Fair. His performance chiefly consisted in the imitation of every kind of human deformity; and he is said to have imposed so completely upon Molins, the famous surgeon, as to be dismissed by him as an incurable cripple! There is a notice of him in the “Philosophical Transactions,” where it is related that he “had such an absolute command of all his muscles and joints that he could disjoint almost his whole body.” A portrait in Tempest’s collection represents him in the act of shouldering his leg, an antic which is imitated by a monkey. Frost’s “Old showman,” p. 59.

1698. A Frenchman, Monsieur Sorbière, visiting London, says: “I was at Bartholomew Fair. It consists of most Toy Shops, also Fiance, and Picture, Ribbon Shops, no Books; many shops of Confectioners, where any woman may commodiously be treated. Knavery is here in perfection, dexterous Cut-purses and Pickpockets. I went to see the Dancing on the Ropes, which was admirable. Coming out, I met a man that would have took off my hat, but I secured it, and was going to draw my sword, crying out ‘Begar! Damn’d Rogue! Morbleu,’ &c., when on a sudden I heard a hundred People about me, crying, ‘Here Monsieur, see “Jephthah’s Rash Vow.”’ ‘Here, Monsieur, see “The Tall Dutchwoman.”’ ‘See “The Tiger,”’ says another. ‘See “The Horse and No Horse,”’ whose tail stands where his head should do.’ ‘See the “German Artist,”’ Monsieur.’ ‘See the “Siege of Namur,”’ Monsieur;’ so that betwixt Rudeness and Civility I was forc’d to get into a fiacre, and with an air of haste and a full trot, got home to my lodgings.”





CHAPTER XVIII.

EIGHTEENTH AND NINETEENTH CENTURIES.

1700.

Stage Plays and Interludes.—The Lord Mayor and Court of Aldermen resolved that no booths should be permitted to be erected in Smithfield this year; but on the 6th August it was announced that “the lessees of West Smithfield having on Friday last represented to the Court of Aldermen at Guildhall that it would be highly injurious to them to have the erection of all booths there totally prohibited, the Right Hon. Lord Mayor and the Court of Aldermen have, in consideration of the premises, granted licence to erect some booths during the time of Bartholomew Fair now approaching: but none are permitted for music-booths, or any that may be means to promote debauchery.” And on the 23rd, when the Lord Mayor went on horseback to proclaim the Fair, he ordered two music-booths to be taken down immediately.

1701. On the 4th June this year the Grand Jury of Middlesex made a presentment to the following effect:—

“Whereas we have seen a printed order of the Lord Mayor and Court of Aldermen the 25th June 1700, to prevent the great profaneness, vice, and debauchery, so frequently used and practised in Bartholomew Fair, by strictly charging and commanding all persons concerned in the said fair, and in the sheds and booths to be erected and built therein or places adjacent, that they do not let, sell, or hire, or use any booth, shed, stall, or other erection whatsoever to be used or employed for interludes, stage-plays, comedies, gaming-places, lotteries, or music meetings: and as we are informed the present Lord Mayor and Court of Aldermen have passed another order to the same effect on the 3rd instant; we take this occasion to return our most hearty thanks for their religious care and great zeal in this matter; we esteeming a renewal of their former practices at the Fair a continuing one of the chiefest miseries of vice next to the Play-Houses; therefore earnestly desire that the said orders may be vigorously prosecuted,

and that this honourable Court would endeavor that the said fair may be employed to those good ends and purposes it was at first designed.”

In the “Postman,” of September, appeared the following advertisement: “The tiger in Bartholomew Fair, that yesterday gave such satisfaction to persons of all qualities by pulling the feathers so nicely from live fowls, will, at the request of several persons, do the same thing this day; price, 6d. each.”

There was published this year for R. Hine near the Royal Exchange, “A Walk to Smithfield, or a True Description of the Humours of Bartholomew Fair, with the very comical Intrigues and Frolics that are acted in every particular Booth in the Fair, by persons of all ages and sexes, from the Court Gallant to the Country Clown. With the Old Droll-Players’ Lamentation for the loss of their Yearly Revenues: being very Pleasing and Diverting.”

It seems that at this period the principal London theatres closed during the fair. This was so with Drury Lane in 1702; and also with several of the theatres during May Fair. See 1714.

1703. In the “Observator” of August 21 this year was the following:

Does this market of lewdness tend to anything else but the ruin of the bodies, and souls and estates, of the young men and women of the City of London, who here meet with all the temptations to destruction? The Lotteries, to ruin their estates; the drolls, comedies, interludes, and farces to poison their minds, &c.; and in the cloisters what strange medley of lewdness has not that place long since afforded? Lords and ladies, aldermen and their wives, ’squires and fiddlers, citizens and rope-dancers, jack-puddings and lawyers, mistresses and maids, masters and ’prentices! This is not an ark, like Noah’s which received the clean and the unclean; only the unclean beasts enter this ark, and such as have the devil’s livery on their backs!

1707. This year a well-known theatrical manageress, Mrs. Mynn, produced a new version of the “Siege of Troy,” reduced from five to three acts, by the aged actor, Settle. The piece was printed with the following introduction:—

A Printed Publication of an Entertainment performed on a Smithfield stage, which, how gay or richly soever set off, will hardly reach to a higher Title than the customary name of a DROLL, may seem somewhat new. But as the present undertaking, the work of ten Months' preparation, is so extraordinary a performance, that without Boast or Vanity we may modestly say, In the whole several Scenes, Movements, and Machines, it is noways Inferiour even to any one Opera yet seen in either of the Royal Theatres; we are therefore under some sort of necessity to make this Publication, thereby to give ev'n the meanest of our audience a full Light into all the Object they will there meet in this expensive Entertainment; the proprietors of which have adventur'd to make, under small Hopes, That as they yearly see some of their happier Bretheren Undertakers in the FAIR, more cheaply obtain even the Engrost Smiles of the Gentry and Quality at so much an easier Price; so on the other side their own more costly Projection (though less Favourites) might possibly attain to that good Fortune, at least to attract a little share of the good graces of the more Honourable part of the Audience, and perhaps be able to purchase some of those smiles which elsewhere have been thus long the profuser Donation of particular Affection of Favour.

There was also published "The Cloyster in Bartholomew Fair; or, The Town-Mistress Disguis'd." London, Printed for A. Bancks, near Fleet Street. A Poem. 8vo. 8 leaves.

Limiting the Duration of the Fair.—1708. On the 2nd June this year the Court of Common Council passed the following resolution:—

This Court taking notice that the Fair of St. Bartholomew according to the original Grant thereof, ought to be holden annually three days and no longer. And that by Continuing the said Fair to Fourteen days, as of late hath been practised, and the erecting and setting up Booths in Smithfield of extraordinary largeness not occupied by dealers in Goods, merchandises, &c., proper for a fair; but used chiefly for Stage-plays, Musick and Tipling (being so many receptacles of vicious and disorderly Persons) Lewdness and Debauchery have apparently increased, Tumults and Disorders frequently arisen, and the Traffick of the said Fair, by the Traders and Fair-keepers resorting thereto, greatly interrupted and diminished. After long debate, and serious consideration had of the same, and being desirous to put a Stop (so far as in them lies) to the further spreading of Wickedness and Vice, to preserve the Peace of Her Majesty's Subjects, and restore the said

Fair to its primitive Institution, and the Traders resorting thither to the full enjoyment of their Trades, without any hindrance or obstruction. And this Court being of opinion, that no ways will be so effectual for the end aforesaid as reducing the said Fair to its ancient time of continuance, doth unanimously resolve, and so Order that for the future, the said Fair shall be kept Three days only, and no longer (that is to say) on the Eve of St. Bartholomew, that Day and the Morrow after being the 23rd, 24th and 25 days of August, of which all persons concerned are to take Notice and Govern themselves accordingly. See 1750.

On the 3rd July, same year, the Common Council considered certain strong petitions for the revocation of this Order. The result is seen in the following announcement, which appeared in the “Gazette” of 2nd August:

The Committee for letting the City’s Land in the Account of the Chamberlain of the City of London give notice, That the Fair, commonly call’d Bartholomew Fair, annually held in West Smithfield in London is from henceforth to be held three Days and no longer [days specified] and that the said Committee will sit every Wednesday at three of the Clock in the afternoon, to Lett and Dispose of the Ground in West Smithfield, to persons resorting to the said Fair; of which more particular information may be had at the Comptroler’s Office in the Guildhall of the said City.

Same year a person did penance in the Chapter House of St. Paul’s for publicly showing in the Fair a Blow-Book in which were many filthy and obscene pictures. The book was likewise burned, and the offender paid the costs.

The first travelling *menagerie* seems now to have appeared in this fair, and attracted considerable attention. It stood near the hospital gate. “Sir Hans Sloane cannot be supposed to have missed such an opportunity of studying animals little known, as he is said to have constantly visited the fair for that purpose, and to have retained the services of a draughtsman for their representation.” (Frost.)

It may be noted that wild beasts had been kept at the Tower certainly from 1253 downwards.

1709. There was published “Bart’lemy Fair: or an Enquiry after Wit; in which due Respect is had to a Letter concerning Enthusiasm, To my Lord —. By Mr. Wotton. London Printed for R. Wilkin, at the King’s Head in St. Paul’s Church-Yard.” This 8vo. pamphlet of 175 pages contains no reference to the fair, and probably only took its title from reference to the disputations there conducted, and of which I have spoken.

1710. There was a curious half-sheet octavo tract, printed this year, entitled “The Wonders of England, containing Dogget and Penkethman’s Dialogue with Old Nick, on the suppression of Bartholomew Fair in Smithfield.” The title enumerates several other strange and wonderful matters, as being contained in the book, but, like the showman’s painted cloths in the fair, pictures monsters not visible within; so there is not a line in the tract respecting the suppression of the fair. Yet

“Coming events cast their shadows before.”

1711. It seems probable that in 1691, or 1694, when the Corporation took steps to limit the period of the fair, that a printed statement of the reasons therefor was issued for the edification of the public mind. At all events during the present year there appeared: “Reasons Formerly published for the Punctual Limiting of Bartholomew Fair to those Three Days to which it is determined by the Royal Grant of it to the City of London. New reprinted with Additions, to prevent a Design set on Foot to procure an Establishment of the said Fair for Fourteen Days. Humbly Addressed to the present Right Honorable the Lord Mayor to the Worshipful Court of Aldermen, and to the Common Council of the said City. London Printed in the year 1711.”

1714. It had become the custom for the stars of Drury Lane, Covent Garden, the Haymarket, Lincoln’s Fields, and Goodman’s Fields theatres to enter into engagements to act in the theatrical booths in Smithfield, and probably also in Southwark; and a rich “benefit” they made, sometimes by acting, but more generally by becoming partners in a company organized for the purposes of the fair. Recruits were brought up from the provincial theatres, and thus became familiar to London audiences.

1715. In “Dawk’s News Letter” it is recorded, “On Wednesday Bartholomew Fair began, to which we hear the greatest number of black cattle (Welsh?) was brought that was ever known.” There was this year at

the fair the largest booth ever built—it was for the King’s players! It had become the custom to represent all the great sieges in which England had been concerned at the shows in the fair: hence, perhaps, something was done towards fostering a martial spirit, not without its advantages in a national sense.

1719. The restriction of the fair to three days, we are informed, had long been overruled by the public voice. There were this year twenty licensed dice and hazard tables in the fair.

1730. There was printed in the “Daily Post” for the 31st August the following:—

“These are to give notice to all Ladies, Gentlemen and others That, at the end of Hosier Lane in Smithfield are to be seen during the time of the Fair, Two *Rattle Snakes*, one a very large size, and rattles that you may hear him at a quarter of a mile about, and something of Musick, that grows on the tails thereof; of divers colours, forms and shapes, with darts that they extend out of their mouths, almost two inches long. They were taken on the mountains of Leamea. A Fine Creature, of a small size, taken in Mocha, that burrows under ground. It is of divers colours, and very beautiful. The teeth of a dead Rattle Snake to be seen and handled, with the rattles. A Sea Snail, taken on the coast of India. Also the horn of a Flying Buck. Together with a curious collection of Animals and of Insects from all parts of the World. To be seen without Loss of time.”

This seems to have been a very rude attempt at teaching natural history.

1731. The only recorded instance of *fire* breaking out in the fair occurred this year. The damage resulting was small. (See 1810.)

1733. It was about this date that Fielding the novelist commenced public life, by keeping a play-booth in this fair.

The Strolling Player.—The life of a strolling play-manager, attending fairs and such like places of amusement, was one of much incident, and certainly had its comical side. Here is the account of one as given by himself:—“I will, as we say, take you behind the scenes. First then, a valuable actor must sleep in the pit, and wake early to sweep the theatre, and throw fresh sawdust into the boxes; he must shake out the dresses, and wind up and dust the motion-jacks; he must teach the dull ones how to act,

rout up the idlers from the straw, and redeem those that happen to get into the watch-house. Then, sir, when the fair begins, he should sometimes walk about the stage grandly and show his dress: sometimes he should dance with his fellows; sometimes he should sing; sometimes he should blow the trumpet; sometimes he should laugh and joke with the crowd, and give them a kind of touch-and-go speech, which keeps them merry and makes them come in. Then, sir, he should sometimes cover his state robe with a great coat, and go into the crowd, and shout opposite his own booth, like a stranger who is struck with its magnificence: by the way, sir, that is a good trick, I never knew it fail to make an audience; and then he has only to steal away and mount his stage and strut, and dance and sing and trumpet, and roar over again.”—“Every-Day Book,” i. 1243.

1735. The practice had been to grant licences for the fair for fourteen days. The Court of Aldermen now resolved: That Bartholomew Fair shall not exceed Bartholomew Eve, Bartholomew Day, and the next morrow, and shall be restricted to the sale of goods, wares, and merchandises, usually sold in fairs, *and no acting shall be permitted therein*. It was known, too, that sir John Barnard intended rigorously to enforce the Licensing Act. There was in consequence no theatrical booths, and hence the most harmless portion of the amusement was absent.

1736. Theatrical booths were permitted again this year.

1739. The fair was extended to four days, and more theatrical booths attended in consequence.

In the “Farrago; or, Miscellanies in Verse and Prose” [by Richard Barton?], there is included (pp. 49-58) a piece entitled “Bartholomew Fair,” from which we take the following:—

Round ev’ry booth in face of day,
Actors a tawdry dress display;
Their ugly visors seem disgrace,
Yet often hide an uglier face.
The sun their sports not to delay,
Makes haste to bed, and closes day.
Each wooden house then groans, to bear
The populace that crowd the fair,

Where Wapping & St. James' unite,
Pleas'd with coarse objects of delight:
The chambermaid and countess sit
Alike admirers of the wit:
The Earl and footman *tête-a-tête*
Sit down contented on one seat.
The musick plays, the curtain draws,
The peer & 'prentice clap applause.

1740. The Prince of Wales visited the fair—not, indeed, for the first time, but with more state than on any previous occasion. An account of the visit was published some years afterwards in the “New European Magazine,” from which the following details are drawn:—

The shows were all in full blast and the crowd at its thickest, when the multitude behind was impelled violently forward; a broad blaze of red light issued from a score of flambeaux, streamed into the air; several voices were loudly shouting, “Room there for Prince George! Make way for the Prince!” as there was that long sweep heard to pass over the ground which indicates the approach of a grand and ceremonious train. Presently the pressure became much greater, the voices louder, the light stronger, and as the train came onward, it might be seen that it consisted, first, of a party of the yeomen of the guard, clearing the way; then several more of them bearing flambeaux, and flanking the procession; while in the midst of it appeared a tall, fair, and handsome young man, having something of a plump foreign visage, seemingly about four-and-thirty, dressed in a ruby-coloured frock-coat, very richly guarded with gold lace, and having his long flowing hair curiously curled over his forehead and at the sides, and finished with a very large bag and courtly *queue* behind. The air of dignity with which he walked; the blue ribbon and star and garter with which he was decorated; the small three-cornered silk hat which he wore, whilst all around him were uncovered; the numerous suite, as well of gentlemen as of guards, which marshalled him along; the obsequious attention of a short, stout person, who, by his flourishing manner, seemed to be a player—all these particulars indicated that the amiable Frederick, Prince of Wales, was visiting Bartholomew Fair by torchlight, and that Manager Rich was introducing his royal guest to all the entertainments of the place.

This event gave fashion to the fair, and, indeed, it had never been considered derogatory for persons in the first rank and fashion to partake in the broad humour and theatrical amusements of the place. We have already seen that many of the theatrical celebrities of the day “starred” in Smithfield, and many who afterwards became famous first trod the boards here.

The theatrical licences were extended to three weeks and a month at this fair.

1750. Alderman Blackford being mayor, he proclaimed in the middle of July his determination to reduce the fair to its original three days, and to use the powers of the Licensing Act (10 Geo. II.) for the more effectual punishment of rogues and vagabonds. He herein acted upon the representation of more than a hundred of the chief graziers, salesmen, and inhabitants of Smithfield, who complained that the “insolent violation of the law” by the fair people not only encouraged profligacy, but also obstructed business for six weeks! The time occupied in putting up and taking down the booths being a time also of great hindrance to the usual Smithfield marketing and trading. The real suppression of the fair as a fourteen day riot, dates from this time.

1751. The attempted strict limitation of the fair to three days led to considerable disturbances. Birch, a deputy marshal of the city, received injuries which proved fatal.

1752. The alteration of the calendar transferred the 3rd September into the 14th. Old Bartholomew’s Day stood at this new date on the calendar. This event very much aided in shortening the period of the fair. *Vide* “Morley,” p. 449.

1753. There was a great demonstration against the claim of the Corporation to levy tolls upon the goods of citizens, as well as upon those of strangers, during the time of the fair. Richard Holland, a leather-seller in Newgate Street, had in the preceding year refused the toll demanded on a roll of leather with which he had attempted to enter the fair, and on the leather being seized by the collector, had called a constable, and charged the impounder with theft. The squabble resulted in an action against the Corporation, which was not tried, however, until 1754, when the result was in favour of the citizens, and against the Corporation claims.

While the action was pending Holland's cart was driven through the fair with a load of hay, and was not stopped by the collector of tolls. The horses' heads were decorated with ribbons, and on the leaders forehead was a card, upon which the following doggerel lines were written in a bold hand:—

My master keeps me well, 'tis true,
And justly pays whatever is due;
Now plainly, not to mince the matter,
No toll he pays but with a halter.

On each side of the load of hay hung a halter, and a paper bearing the following announcement:—

The time is approaching, if not already come,
That all British subjects may freely pass on;
And not on pretence of Bartholomew Fair
Make you pay for your passage, with all your bring near.—
When once it is try'd, ever after depend on,
'Twill incur the same fate as on Finchley Common.
Give Cæsar his due, when by law 'tis demanded,
And those that deserve with this halter be hanged.

There was considerable rioting in the fair. Buck, the successor to the unfortunate Birch, was very roughly handled. The tumult was in some degree allayed by a serious accident to the wire-walker, Evans. The wire broke, and he was precipitated to the ground, one of his thighs being broken, and other injuries sustained.

The Bridewell Boys.—1755. An element in the occasional disturbances at the fair was the conduct of the “Bridewell Boys,” a body of youths from the Bridewell Hospital, distinguished by a peculiar dress and turbulence of manners. They infested the streets and public places to the terror of the peaceable; and being allowed the privilege of going to fires with the Bridewell engine, not unfrequently occasioned more mischief by their audacity and perverseness than by their dexterity in fire extinguishment, resembling in some degree the volunteer Fire brigades which at one time were very prevalent in the United States. On the 13th November this year, at a Court of the Governors of the Hospital, a memorable report was made

by the Committee, who inquired into the behaviour of the boys at the then preceding Bartholomew and Southwark fairs; and, as a consequence, some of them were severely corrected and cautioned, and others, after their punishment, were ordered to be stripped of their hospital clothing and discharged. At a later period the boys were deprived of their distinguishing costume, and a different plan of instruction was adopted.

1760. The Court of Common Council made a more determined effort than heretofore to put down this fair; but the interest of Lord Kensington (successor of Lord Rich) in a portion of the tolls, rendered it impossible of accomplishment. See 1827.

1762. Plays were interdicted at the fair this year by the Corporation, and some hardship resulted to those who had made arrangements in advance. Strong and successful measures were taken to prevent its extension beyond the authorized three days.

There was published “A Description of Bartholomew Fair” by George Alexander Stevens, whereof the following gives a good idea of the medley life there seen:—

Here was, first of all, crowds against other crowds driving,
Like wind and tide meeting, each contrary striving;
Shrill fiddling, sharp fighting, and shouting and shrieking,
Fifes, trumpets, drums, bagpipes and barrow girls squeaking,
“Come my rare round and found, here’s choice of fine ware-o;”
Though all was not found sold at Bartholomew fair-o.

There was drolls, hornpipe dancing, and showing of postures,
With frying black-puddings, and op’ning of oysters;
With Salt-boxes solos, and gallery-folks squalling;
The tap house guests roaring, and mouthpieces bawling,
Pimps, Pawnbrokers, strollers, fat landladies, sailors,
Bawds, bailiffs, jilts, jockies, thieves, tumblers and taylors.

“Here’s Punch’s whole play of the Gunpowder-plot, sir,”
With “beasts all alive,” and “pease-porridge all hot,” sir,
“Fine sausages fried” and “the Black on the wire,”
“The whole Court of France” and “nice pig at the fire.”

Here's the up-and-downs, "who'll take a seat in the Chair-o?"
Tho' there's more up-and-downs than at Bartholomew fair-o.

Here's "Whittington's cat," and "the tall dromedary,"
"The chaise without horses," and "Queen of Hungary;"
Here's the Merry-go-Rounds, "Come who rides, come who rides, sir?"
Wine, beer, ale, and cakes, fire eating besides, sir;
The fam'd "learn'd Dog" that can tell all his letters
And some men, as scholars, are not much his betters!

1798. There was a serious proposal made to restrict the fair to one day. This was only abandoned from the fear of riot.

1804. There was an action brought in the fair before the Court of Piepowder on 5th September—showing that the court had sat beyond the prescribed three days, which at one time it did not, even though the fair continued longer—by a fire-eater against one of the spectators of his tricks, who had half suffocated him by suddenly clapping a bundle of lighted matches under his nose. The defendant was fined a guinea by the homage, and the steward gave charge to the constables to turn him out of the fair if he appeared in it again.

1808. There appeared: "The History and Origin of Bartholomew Fair," published by Arliss and Huntsman, 37, Bartholomew Close (8vo. pp. 26).

1810. A circumstance occurred likely to have been attended with very serious consequences. Two bands of roughs, who were racing through the fair after their manner, met. In the scuffle that ensued two stalls were knocked down, and the falling of a lamp on to a stove caused the canvas to ignite, and a serious disaster was only averted by the presence of mind of a gentleman who was on the spot at the moment. In a similar rush in 1812 a child was killed.

In the "Morning Chronicle" appeared the following "Elegy, written in Bartlemy Fair at Five o'clock in the morning," from which I take the principal stanzas:—

...

Now the first beams of morning glad the sight,

And all the air in solemn stillness holds,
Save when the sheep-dog bays with hoarse afright,
And brutal drovers pen the unwilling folds.

...

Beneath those ragged tents—that boarded shade,
Which late display'd its stores in tempting heaps:
There, children, dogs, cakes, oysters, all are laid,
There, guardian of the whole, the master sleeps.

The busy call of care-begetting morn,
The well-slept passenger's unheeding tread,
The showman's clarion, or the echoing horn,
Too soon must rouse them from their lowly bed.

Perhaps in this neglected booth is laid
Some head volcanic, oft discharging fire!
Hands—that the rod of magic lately sway'd;
Toes—that so nimbly danced upon the wire.

Some clown, or pantaloon—the gazer's jest,
Here, with his train in dirty pageant stood:
Some tired-out posture master here may rest,
Some conjuring swordsman—guiltless of his blood!

The applause of listening cockneys to command,
The threats of City-marshal to despise;
To give delight to all the grinning band,
And read their merit in spectators' eyes,

Is still their boast; nor, haply, theirs alone,
Polito's lions (though now *dormant* laid),
The human monsters, shall acquire renown,
The spotted Negro—and the armless maid!

Peace to the youth, who, slumbering at the *Bear*,
Forgets his present lot, his perils past:

Soon will the crowd again be thronging there,
To view the man on wild Sombrero cast.

Careful their booths from insult to protect,
These furl their tapestry, late erected high;
Nor longer with prodigious pictures deck'd,
They tempt the passing youth's astonish'd eye.

But when the day calls forth the belles and beaux,
The cunning showmen each device display,
And many a clown the useful notice shows,
To teach ascending strangers—*where to pay*.

Sleep on, ye imps of merriment—sleep on!
In this short respite to your labouring train;
And when this time of annual mirth is gone,
May ye enjoy, in peace, your hard-earned gain!

1825. Bartholomew Day falling on a Sunday the fair was wholly suspended. Many thousands of persons walking for recreation repaired to Smithfield and viewed its appearance. The City officers most strictly enforced observance of the day: one keeper of a gingerbread stall who plied for custom and refractorily persisted was taken into custody, and held in prison till he could be carried before a magistrate on the following day, when he was fined for the offence.—Hone.

Hone's survey of the Fair.—It was on the morning following this day that Hone made his memorable visit to the fair, which he has recorded at large in his "Every Day Book" (i. cols. 1168-1251), and from which I take the following condensed description of the extent and nature of the exhibition:

There were small *uncovered* stalls from the Skinner Street corner of Giltspur Street beginning with the beginning of the churchyard, along the whole length of the churchyard. On the opposite side there were like stalls from Newgate Street corner. At these stalls were sold oysters, fruit, inferior kinds of cheap toys, common gingerbread, small wicker baskets, and other articles of trifling value. They seemed to be mere casual standings taken up by petty dealers and chapmen in smallware, who lacked means to purchase

room and furnish out a tempting display. Their stalls were set out from the channel into the roadway. One man occupied upwards of twenty feet of the road lengthwise with discontinued wood-cut pamphlets, formerly published weekly at two pence, which he spread out on the ground and sold at a halfpenny each in great quantities; he had also large folio bible prints at a halfpenny each, and prints from magazines at four a penny. The fronts of these standings were towards the passengers in the carriage way.

Then with occasional distances of three or four feet for footways from the road to the pavement began lines of *covered* stalls, with their open fronts opposite the fronts of the houses, and close to the curb-stone, and their enclosed backs to the road. On the St. Sepulchre's side they extended to Cock Lane, and from thence to Hosier-lane, and along the west side of Smithfield to the Cow-lane corner. In John Street they were resumed and ran thitherward to Smithfield bars, and there on the west side ended. Crossing over to the east side, and returning south, these covered stalls commenced opposite their termination on the west and ran towards Smithfield, turning into which they ran westerly towards the pig-market, and from thence to Long-lane. Again on to the east side to the great gate of Cloth Fair, and so from Duke Street on the south side to the great front gate of Bartholomew hospital; and then resumed to Giltspur Street and so reached the uncovered stalls.

These covered stalls thus surrounding Smithfield, belonged to dealers in gingerbread, toys, hardware, garters, pocket books, trinkets, and articles of all prices, from a halfpenny to a half sovereign. The gingerbread stalls varied in size, and were conspicuously fine from the Dutch gold on their different shaped ware. The usual frontage of the stalls was 8, 10, 12 feet, but some as large as 25 feet. They were 6 feet 6 inches or 7 feet high in front and from 4 feet 6 to 5 feet at back: and all formed of canvass tightly stretched on light poles. The fronts were to the pavements. The houses of business in the streets had their shutters up, and doors closed.

The *Shows* of all kinds had their fronts towards the area of Smithfield, and their backs close against the backs of the stalls. The centre of the area was thus entirely open, and from the carriage way through it all the shows might be seen at one view. Against the pens at the side there were not any shows. No carriages or horsemen were permitted to enter the fair on account of the crowded masses of people present....

It has to be noted that there was an unusually large assemblage of shows at the fair, including several menageries.

1826. The “Mirror of the Months” contained the following graphic anticipation of the fair to be held this year:—

Another year arrives, and spite of Corporation “resolutions,” and references to “the Committee,” and “Reports” and “recommendations” to abolish the fair, it is held again. Now arrives that saturnalia of nondescript noise and nonconformity “Bartlemy Fair;” when that prince of peace-officers the Lord Mayor changes his sword of state into a six-penny trumpet, and becomes the lord of misrule and the patron of pick-pockets; and lady Holland’s name leads an unlettered mob instead of a lettered one; when Richardson maintains, during three whole days and a half, a managerial supremacy that must be not a little enviable even in the eyes of Mr. Elliston himself; and Mr. Gyngell holds, during the same period, a scarcely less distinguished station as the Apollo of maid servants; when the incomparable (not to say *eternal*) *young* Master Saunder’s rides on horseback to the admiration of all beholders, in the person of his eldest son; and when all the giants in the land, and the dwarfs too, make a general muster, and each proves to be according to the most correct measurement at least a foot taller, or shorter, than any other in the fair, and in fact the only one worth seeing,—“all the rest being impostors!” In short, when every booth in the fair combined in itself the attractions of all the rest, and so perplexes with its irresistible merit the rapt imagination of the half-holiday school boys who have got but sixpence to spend upon the whole, that they eye the outsides of each in a state of pleasing despair, till their leave of absence is expired twice over, and then return home filled with visions of giants and gingerbread nuts, and dream all night long of what they have not seen.

The fair was small, and one of its principal features was the bookstalls, which occupied the whole of the west side of Giltspur Street.

1827. The fair was again large, and for the first time I am enabled to present a return of the cash returns of the various places of amusement there assembled. The result will be startling to those who have hitherto failed to realize the importance with which the fair was regarded: Wombwell’s menagerie, £1,700; Richardson’s theatre, £1,200; Atkins’s menagerie,

£1,000; Morgan's menagerie, £150; exhibition of "pig-faced lady," £150; ditto, fat boy and girl, £140; ditto, head of William Corder, quaker, who was hanged at Chelmsford for murder of Maria Martin—the crime being revealed through a dream of the victim's mother, £100; Ballard's menagerie, £90; Ball's theatre, £80; diorama of the battle of Navarino, £60; the Chinese jugglers, £50; Pike's theatre, £40; a fire-eater, £30; Frazer's theatre, £26; Keyes and Line's theatre, £20; exhibition of a Scotch giant, £20. The comparative attractiveness of the different sights affords room for reflection. Of course these entertainments only represent a portion of the cash transactions of the fair.

Lord Kensington at length intimated that considering the corrupt state of the fair, and the nuisance caused by it in the neighbourhood of Smithfield, he would now throw no obstacle in the way of its abolition. His share of the tolls was from £30 to £40 a year; the estimated value of these was from £500 to £600. The Corporation accordingly bought up these tolls, and henceforward the sole rights and interest in the fair became vested in the City.

The End.—1839. The London City Mission, having pointed out to the Corporation the moral pollution spread by the retention of the fair, the matter was again referred to the City Lands Committee, who referred the question to Mr. Charles Pearson the then able City Solicitor; and he speedily discovered a rational mode of dealing with it: he advised *an absolute refusal to let standings for show-booths in a fair that was created in the first instance for the purposes of trade!*

The Markets Committee had in the meanwhile been working in the direction of largely increasing the tolls for stalls, &c. The effect being that in 1836 they had increased to £162, 1838 to £284; this year £305. The smaller the number of booths the more each seemed able to pay, showing that the popular patronage of the fair was still considerable.

New Bartholomew Fair.—In 1843 the City authorities prohibited the assembling of "shows" of any and all kinds in Smithfield; but with this prohibition was the announcement that arrangements had been made for the standing of such shows as desired on a large piece of ground adjoining the New North Road, called Britannia Fields, near the site of the Britannia Theatre, in the parish of Hoxton.

In this step it may have been thought to preserve the income from tolls by a bodily transfer of the fair to another locality. I doubt if the original Charter would have supported such a course; but the influence of the City would have obtained the authority of Parliament for the change. But even Parliament cannot change the sentiments of the people in regard to their amusements, or divert the channels of commerce from the time-honoured channels in which they have been wont to flow; and the project for the new Bartholomew Fair fell dead very early in its inception; but for two or three years shows did congregate there.

1855. *The end had come!* The old ceremony of state proclamation had been discontinued in 1840. In 1850 the Lord Mayor (Musgrove) having walked quietly to the appointed gateway with the necessary attendants, found there was no fair to proclaim! After that year the Lord Mayor attended no more for the purpose. The last Bartholomew Fair was proclaimed this year (1855). The City indeed still pays to the Rector of Bartholomew the Great the annual fee of 3s. 6d. in respect of the proclamation no longer made. The live Cattle Market was discontinued the same year—removed to Islington. The Meat Market opened in 1868 has obliterated all traces of a state of things which had continued for seven centuries.

1859. Mr. Henry Morley published “Memoirs of Bartholomew Fair,” “inscribed with friendship to his friend John Forster.” In his preface he says “When I first resolved upon the writing these memoirs, I knew simply that Bartholomew fair was an unwritten portion of the story of the people. Bound once to the life of the nation by the three ties of Religion, Trade and Pleasure, first came a time when the tie of Religion was unloosened from it; then it was a place of Trade and Pleasure. A few more generations having lived and worked, Trade was no longer bound to it. The nation still grew, and at last broke from it even as a pleasure fair. *It lived for seven centuries* or more, and of its death we are the witnesses. Surely, methought, there is a story here; the memoirs of a Fair do not mean only a bundle of handbills or a catalogue of monsters. And then the volume was planned which is now offered to the reader, with a lively sense of its shortcomings.” Thus launched upon the world it was and is a book suited to the companionship of all lovers of objects of antiquity. I am glad to have been able to supplement its record with some details of interest.





CHAPTER XIX.

FAIRS OF FRANCE.

It is to France that we must look if we would fully comprehend alike the splendour and importance of the fairs of Europe. Even here, as elsewhere, they are now to be regarded as things of the past; but of a past that is full of instruction.

In the eighth and ninth centuries hardly any trade was known in France, other than that carried on in markets and fairs; these were, therefore, almost the only places for providing oneself with necessaries. Artificers and dealers lived apart, dispersed in the country; the towns were chiefly inhabited by the clergy and some handicraftsmen, with few or no monks or nuns, the far greater part of the monasteries being either in the open country or the neighbourhood of the cities. The nobility lived on their estates, or attended the Court. The *Pote* people were so far under their Lord's power as not to quit the place of their birth without his leave; the villain was annexed to the estate, and the slave to the master's house or land. Such a dispersion was little promotive of trade, which loves large and policed communities; *and it was to remedy this inconvenience that its Kings established so many fairs.* *Vide* "Extracts translated from New Hist. of France," 1769, i. 65.

There seem to have been three grades of fairs.—1. *Free fairs*, to which all might come without restriction of toll or other limitation. 2. Fairs having their franchises restricted by some local right or usage. 3. Common fairs, without any special franchises whatever. I shall mainly confine myself to a notice of those falling under the first of these definitions—free fairs.

CHAMPAGNE AND BRIE.

I may speak of the fairs of these provinces collectively. They were not only amongst the most celebrated of France or of Europe, but possess the charm of great antiquity. They are believed to have been founded by the earls of those provinces. Sidonius Apollinaris alludes to them, in the fifth

century. They were held in seventeen of the chief cities—some of which had as many as six yearly, others four, none less than two.

I have already given (in the first chapter in this book) some account of the commercial importance of these fairs in Europe, and need not re-traverse that ground. They have a great interest from an English point of view for reasons which will presently appear.

These districts were not indeed provinces of France at the early date above named. They only became so in 1284, and so far from their fairs gaining any additional lustre by the annexation, the very reverse appears to have been the fact. The domination of the crown of France spread awe instead of confidence into the minds of their wealthy traders!

The truth I suspect to be that charges and restrictions previously unknown were imposed. This view indeed finds direct support in the fact that in 1349 Philip de Valois granted letters patent confirming ancient franchises, and suppressing the new impositions. By means of this document we learn precisely what the ancient privileges were. The patent consisted of thirty-six articles, but the more material may be grouped under five heads, viz.:

1. *The Franchises*.—All foreign dealers their factors and agents to have free liberty under the Royal protection, to resort to these fairs with their goods, provided however that these same goods were designed to be sold or exchanged there; or failing this were to be removed within the appointed time for the duration of the fair. They were exempted from all dues, impositions, &c., according to the good and ancient usages, customs, and liberties of the said fairs. No favours or letters of respite might be granted against the said dealers, or the customs and liberties of the said fairs—all such, if obtained, being null. No dealers resorting to or returning from, should be stopped or molested, without special warrant from the wardens of the conservation, and for obligations made truly and really in the fair.

2. *Wardens of the Privileges*.—These were judges appointed during the fair, to see that the franchises were preserved, and to take cognizance of contests that might arise between traders there. Every fair was to have two wardens, one chancellor to keep the seal, two lieutenants, forty notaries, and 100 serjeants. The wardens and chancellors were sworn in the Chamber of Accounts, Paris, *where they were yearly to make their report of the state of*

the fairs. No judgment might be given during the fair but by the two wardens, or when one was unavoidably absent, by one warden and the chancellor.

3. *How goods were to be brought within the franchise.*—The drapers and traders of the seventeen cities of Champagne and Brie frequenting the fairs—that is to say those of the cities in which one of these seventeen fairs was held—might not sell their cloths or other stuffs, wholesale or retail, within or without the kingdom, *unless first sent to one of the fairs and exposed for sale from the first day appointed for the sale of cloth until the sixth following*, on pain of forfeiture; they being, however, at liberty to dispose of them as they pleased, if not sold in that time.

Farmers, curriers, &c., must bring their leather to the fair, and expose it all together from the first of the three days, without reserving any for the last days, *or selling in any other place than that designed for the sale of leather.*

Horse-dealers, both subjects and foreigners, must have their stables in the said fairs from the third day of the cloths (*i.e.* fixed for the sale of cloth) until the fair ended.

In like manner all other wares brought into the fair were to remain on sale, some for six days, others for three days only, according to their nature and quality.

4. *Inspections.*—These were of two kinds, one by the wardens conservators, and the other by examiners chosen out of the trading companies frequenting the fair. The wardens' inspection was at the opening of every fair, to see that the dealers had all suitable convenience and security—the inspectors being properly qualified judges of the character of the goods brought, with authority to stop and seize all that were of inferior quality; but this not without appeal to six, five, or four persons experienced in the particular trade.

5. *Payments, Bonds, and Exchanges.*—All tradesmen, alike French and foreigners, might agree in their contracts for payment of goods sold in the fair—to be paid in gold and silver current at the time of making the contract, notwithstanding any ordinance concerning money to the contrary. Interest for loans, and goods sold on credit at fairs, might not exceed fifteen

per cent. The interest might not be added to the principal in renewing bonds made at fairs. Nor might bonds made at any other time run in the style of those used at fairs, as if made there.

All letters, acts, contracts, &c., relating to fairs, to be null *unless under the authenticated seal of the fairs*. None unless he had actual residence in fairs might use the seal or other obligations, or enjoy the privileges thereof.

The re-establishment of these privileges—many of which were obviously made in the interest of merchants attending to buy—had the effect of restoring the fairs of these provinces to their former greatness. Again multitudes of traders came from Germany, Italy (particularly from Florence), Lucca, Venice, and Genoa, with gold, silver, and silk stuffs, spices and other goods of their country, or of the Levant, taking in exchange cloths, leather and other commodities, not only the produce of the provinces, but brought from other parts of France.

I speak of the fair of *Troyes* separately hereafter, on account of one of its distinguishing features.

Mr. Morley has pointed out that before the establishment of free fairs in France, the rights of *salutaticum*, *pontaticum*, *repaticum*, and *portulaticum*, absorbed one half of a foreign merchant's goods upon their first arrival and debarkation. Afterwards traders came exempt not only from imperial taxation, but from many of the ordinary risks of travel.

One great element of interest in these fairs centres in the circumstance of the following correspondence between the Wardens of the fair and the Lord Mayor of London concerning dealings in these fairs in the thirteenth century. They have been carefully preserved amongst the records of the City for six centuries—and now for the first time gain the glory of printer's ink. They reveal a feature in the comity of nations; and present a proof of the cosmopolitan interests of commerce which can scarcely be excelled. Hence I propose to give them entire:

1. *Letter directed to the Mayor by the Keepers of the Fairs of Champagne and Brie, dated September 1299.*

To the venerable man, the provident, wise and discreet Warden of London, or to his vicegerent, Peter de Fremeville, knight, and

Robert de Champagne (*de Campaniis*), keepers of the fairs of Champagne and Brie for our most illustrious Lord the King of the French, increase of all good with greeting and sincere affection. Whereas heretofore, by our letters patent sealed with the seal of the fairs of Champagne, we have entreated you to compel, or cause to be compelled, the burgess Fauberti, a citizen of Florence and horse-dealer (*mercatores equorum*), together with Guido Fauberti, Nutus (or Nuto) Fauberti, brothers of the said burgess, Master Gerald de Galaiòn physician, [and] James son of the said Nutus, associates of the said burgess, by the sale of their goods and the seizure of their bodies, sending them back to us, to yield and pay to Pucheus de Pré (*de Prato*), formerly horse-dealer in the said fairs, Martin de Burgo novo, brother of John de Burgo now deceased formerly horse-dealer, and John de Burgo novo, nephew of the said John deceased and of Martin aforesaid, or to the bearer of our said letters for them, one thousand six hundred petits livres Tournois with sufficient damages and expenses; and to satisfy us concerning the said King's amends for default of the fairs. In which sum of money they are held effectually bounden, and every of them in the whole, for the body of the fairs of Bani (*Bari*) *super Albam* from the year of Our Lord 1292, as well by reason and because of certain pledges made and committed in and upon the body of the said fairs, as by reason and because of the restitution of more sureties and more costs and damages, which by default of the said burgess and his associates before mentioned in and upon the body of the said fairs they had and were said to have incurred: as in certain open letters of definitive sentence sealed with the seal of the said fairs is said to be contained. Upon which things Tolnetus [elsewhere Nicholas] called Concesse, our sworn servant in the said fairs, by word of mouth related to us that he in the year of Our Lord 1293 presented to you our aforesaid letters (as he says), which deprecatory letters of ours directed to you if forsooth you received, yet you willed not to demand due execution of the same, or to write back any answer to us, although at the end it was duly contained that what you should do therein, you would will and deign by your letters to write back, and although in presence of many trustworthy persons you were so requested by our said servant; on the ground that war was begun and

raised between the most excellent princes, the King of France and King of England: as our said sworn servant on oath has related all these things to be true, whereat we most greatly marvel, if it is so and we hold ourselves not contemned, since this is to the no mean damage and grievance of the said creditors, and prejudice and contempt of the government of the said fairs committed unto us, because on account of the war aforesaid you were by no means bound to keep back our said letters deprecatory demanding due execution. Wherefore as much as we can with diligence on behalf of our most excellent lord, John by the grace of God, King of France and Navarre, Lord of Champagne and Brie, and on our part, by the tenor of these presents, we move your providence to be entreated, that you do cause all the goods of the aforesaid burgess Fauberti and his associates before named and of the said company to be solemnly proclaimed for sale, and to be sold and divided without delay to the uses and customs of fairs, or so much of them that out of the price of the sale the said creditors (or, for them, the bearer of these presents) as to the aforesaid sum of money with sufficient damages and expenses, and we, as to the amends of our said lord the King, be wholly satisfied; and that the body of the said burgess Fauberti together with the bodies of his associates aforenamed—if they can be found in your jurisdiction, and if the sale of goods does not suffice for the premises—you do send back to us to the fairs in sure and faithful custody to pay among them the charges of the creditors, and to clear themselves before us in this matter as to the uses and customs beforesaid. If, however, you wish to put forward any thing contrary to the report of our said servant, and believe your own interests to be concerned, be present in person before us, or, for yourself, send at a fitting day which the bearer of these presents shall cause to be named to you, to say what shall seem to you expedient. Otherwise, we shall then hold the said report to be fast and firm, you doing thereupon, on account of the reverence and honour due to our aforesaid lord the King and the intervention of our prayers, because we are bounden to you and yours in all manner of favours deserved, such and so much as you would wish us to do for you in the like or a greater case. What you shall do herein, have a care to signify to us by the bearer of these presents in your letters

patent together with the present letters demanding execution sent back, notwithstanding that they shall not be presented to you by the servant of the fairs. Given in the year of Our Lord one thousand two hundred and ninety-nine in the month of September.

J. DE SANCTO NABORE.

2. Letter sent to the Keepers of the Fairs of Champagne and Brie, dated March 19, 1299-1300.

To the noble men and discreet lords Peter de Fremeville knight and Robert de Champagne keepers of the fairs of Champagne and Brie for the lord the King of France, Elias Russel, Mayor, and the Citizens of London, Greeting and continual increase of sincere affection. Whereas you lately wrote unto us that we should compel the burgess Fauberti &c. [named as before] as well by sale of their goods as by seizure of their bodies and also sending them to you, to render to Pucheus de Pré formerly horse-dealer, Martin de Burgo novo and other creditors in your letters comprised, or to the bearer of your said letters, 1,600 petit livres Tournois together with damages and expenses, and also the amends of the Lord the King for default of fairs; in which sum of money the aforesaid dealers (*mercatores*), and every of them in the whole, are bound by their letters made in the fairs of Bari *super Albam*, by reason of divers contracts between them before had from the year of Our Lord 1292, as in your letters thereupon to us directed more fully is contained: We willing, so far as the laws and customs of England permit, by mutual interchange to comply with your prayers, have caused to come before us, in the presence of John de Flekers your servant and bearer of the presents, the aforesaid burgess and Nutus, dealers, to answer to your said servant concerning the said debt according to the form of your letters, which said dealers asserted that they are quit of all the aforesaid, because of them all they sufficiently satisfied the said creditors, and therein proffered a letter of Gencian de Paris, baker (*panetarii*) of the King of France, and Robert de Champagne, keepers of the fairs of Champagne and Brie sealed with the seal of the fairs of Champagne, in which it is contained that the

said burgess, for himself, his brothers, and associates, in the fairs of Bari super Albam in the year of Our Lord 1293, appeared in person before the said keepers, and spoke with the said Pucheus and compounded with him under such form that the said Pucheus held himself as paid by the said burgess, his brothers and associates abovesaid, by reason of the said composition, as the said Pucheus before the said keepers acknowledged and wholly assented to the said composition for himself and his associates. And because by the letters aforesaid it appeared that the said burgess and his associates by the said composition are totally quit of the debt aforesaid, we could not by your mandate lawfully compel them to pay the said money. Given at London on Saturday next before Mid-Lent in the year of Our Lord 1299.

3. *Second letter [of the Keepers] of the Fairs of Champagne and Brie for the burgess Fuberti to the Lord Mayor, dated May 1300.*

To the provident men, the venerable and honorable Mayor and Citizens of London, or their vicegerents, or one of them, Peter de Fremville, knight, and Robert de Champagne, keepers of the fairs of Champagne and Brie, continual increase of sincere affection with greeting. Whereas we, by our letters patent sealed with the seal of the said fairs, have many times (*pluries*) prayed and requested you to compel and cause to be compelled the burgess Fouberti, citizen of Florence and horse-dealer by seizure of his body and goods, and also by the sale of the goods of Guido Fouberti &c. [as before], to satisfy Pucheus de Pré formerly in the said fairs horse-dealer, Martin &c. [as before], on and of the sum (that is to say) of 1060 [for 1600] petits livres Tournois with moderate damages and costs, in which sum of money the said burgess Fouberti together with his associates aforesaid is held bound to the beforenamed Pucheus, Martin and John, as debtor, concerning the body of the past fairs of Barri *super Albam* in the year of Our Lord 1293, as well by reason and because of certain pledges made and committed in and upon the body of the abovesaid fairs, as by reason and because of the restitution of more sureties and more costs and damages which by default of the said

burgess and his associates beforementioned in and upon the body of the said fairs they had and were said to have incurred, as in certain letters of definitive sentence sealed with the seal of the fairs of Champagne is said to be contained: upon which, first, you would make no answer to us, or for our said letters deprecatory demand any execution, as Nicholas called Concesse our sworn servant, bearer of our said letters (as he said), reported to us on oath by word of mouth; but upon the tenor of our second letters which you caused to be detained with you—as John de Flichers our sworn servant, bearer of the same (as he says) related to us with his own mouth—upon these things with certain closed letters you wrote back, that you caused to come before you in presence of the said John de Flichers the aforesaid burgess and Nutus, dealers, according to the form of our letters to answer to our said servant concerning the said debt. Which said dealers asserted they were quit of all the abovesaid, because of all these they duly satisfied the said creditors &c. [reciting what was said in the last]. By the course of these presents we thus hereupon notify to you that the said sum of money has not yet been in any way satisfied, as Dignus de Pré, son and heir (as it is said) of Pucheus deceased, has given us to understand. And assuredly, moreover, as soon as the said burgess on account of the things aforesaid appeared before you, and alleged the things contained in your answer, you ought to have taken into your hand his goods and those of his said associates, and to have fixed a certain and fit day for him before you, as in our letters abovesaid was contained; for the cognizance of what relates to fairs belongs to no judge, but to us only by reason of the government of fairs committed unto us. Wherefore, on the part of our lord the King of France and on our own part, we again ask your providences to cause without delay so much of the goods of the said burgess and his associates aforesaid to be taken, sold, and divided to the uses and customs of fairs that the aforesaid Dignus de Pré may be fully satisfied of the whole sum of money aforesaid with damages and expenses, and we, of the amends; and the body of the said burgess, is the sale shall not suffice for the costs of the said complainant, left on account of your default *it behove us to inhibit the land and fairs of Champagne and Brie to all your subjects and their goods.* What

you shall do herein, have a care to signify to us in your letters patent by the bearer of these presents, sending back the present letters together with our other letters aforesaid detained with you, as has been said. Given in the year of Our Lord 1300 in the month of May. J. de Sancto Nabore.

I have placed a passage in italics, as indicating the fact that the merchants of London attended these fairs.

4. *Letter from the Lord Mayor of London in answer directed to the Keepers of the Fairs of Champagne [and Brie] dated 20 Aug. 1300.*

To the discreet and honourable men, if it please their most dear friends, the lords Peter de Fremville, knight, and Robert de Champagne, Wardens of the fairs of Champagne and Brie for the illustrious King of France, Elias Russel, Mayor of London, and the Citizens of the same City, Greeting and continual increase of sincere affection with health. Whereas heretofore you wrote to us that we should compel the burgess Fuberti, Citizen of Florence, horse-dealer &c. [naming the others as before], as well by sale of their goods as by the seizing of their bodies and sending them to you, to render to Pucheus de Pré, formerly horse-dealer, Martin de Burgo novo, and other creditors in your said letters comprised, or to the bearer of the said letters, 1600 petits livres Tournois together with damages and expenses, and also amends of the Lord the King for default of the fairs; in which sum of money the said burgess and his associates, by their letters made in your fairs beforesaid, are bound by reasons of divers contracts between them had belonging to the year of Our Lord 1293; as in your letters thereupon to us directed more fully is contained: We, as much as in us lies, and as the customs and rights of the Realm of England permit us to do, willing to comply altogether with your prayers and requests, have made to come before us, in the presence of your servant the bearer of the presents, the said burgess and Nutus whom we found in our jurisdiction. Nevertheless we sequestered their goods in the presence of your servant putting upon them concerning the said debt, as is contained in your letters aforesaid. And your letters being heard and

understood, the said traders (*mercatores*) asserted that they are not bound of right to answer to your said letters, because in your letters secondly to us directed (as you assert) it was contained that the said burgess and his associates before you in your fairs in the year of Our Lord 1292 bound themselves, upon which obligation they proffered a certain letter of satisfaction of the said debt, sealed with the seal of the fairs of Champagne and Brie. In which said letter it was contained that the said burgess before you compounded with the said Pucheus, to which composition he the said Pucheus assented; and in these your letters now to us directed it is contained that the said burgess and his associates in the year of Our Lord 1293 bound themselves before you in your fairs: at which writing we marvel. Moreover, at the time in which your said letters were directed unto us, our lord the illustrious King of England was in his war of Scotland with whom at present we have not been able to consult, nor are the said burgess and his associates of the liberty of our City of London: on which account, without the special mandate of our Lord the King of England we dared not move a hand toward the seizing of their bodies, or send the said burgess and others out of the Realm of England. Therefore we request and earnestly entreat your lordships that at present in this charge you will hold us excused from the actions abovesaid, and deign to write to our Lord the illustrious King of England upon the aforesaid debts and requests; and those things which shall be commanded us for the advantage of the said creditors, and for your good pleasure, we will dispatch without delay, and to the utmost of our power. Farewell in Him who is the salvation of all men. Given at London on Saturday next after the feast of the Assumption of the Blessed Virgin Mary in the year of Our Lord 1300.





CHAPTER XX.

OTHER FAIRS OF FRANCE.

I have now to notice some of the other great fairs of France. And here it has to be remarked that while the later sovereigns—certainly down to Louis XV.—adopted the regulations already reviewed, for their model in the government of fairs, yet that there were some necessary deviations, according as time, place, and other circumstances demanded. The chief of these deviations will be noted in the following summary, wherein I review the provincial fairs first, and afterwards those in and around Paris.

Postlethwayt, in his “Dictionary of Trade,” from which some of the preceding and following details are drawn, remarks, not with entire clearness: “Though it be not essential to these meetings of traders to have comedians, rope-dancers, and the like, yet there are few considerable ones without enough of them; and, perhaps, is what greatly contributes to the trade of them—the nobility and country gentry greatly flocking to them, more for their diversion than what they buy there, which might be had, perhaps, better and cheaper at home. It is well known how the nobility of Languedoc flock to the fair of Beaucaire, and those of Normandy to that of Guibray; but it is nothing in comparison to the assembly of German princes and nobles at the three fairs of Leipzic, and the two of Frankfort-on-the-Main.” He was writing in the first half of the last century. Things are now much changed.

BEAUCAIRE (in Languedoc).—An important town, whose manufactures consist of silks, red wines, taffetas, olive oil, and pottery. But its trade is chiefly due to its great fair, held annually between 1st and 28th July, the site extending from the Rhône to the base of the Castle Rock. This fair was established in 1217 by Raymond VI., Count of Toulouse, and was for many ages attended by merchants and manufacturers from all countries in Europe, and even from Persia and Armenia. Arthur Young visited it in 1788, and records (“Travels in France”) that the business transacted at it reached 10 million livres—£439,000. So late as 1833 it drew together 60,000 persons, and the amount of its transactions were stated to be 150 millions of francs—£6,000,000! This would appear to be an over-estimate.

I believe the fair now only lasts one week, namely from 22nd to 28th July inclusive. It is a rule that all bills must be presented on the 27th, and protested if necessary on 28th—last day of the fair. The trade in linen and cloth is very large.

BESANÇON.—This ancient city, a great centre of warfare and of trade from the days of the Cæsars, had once a fair of great celebrity. At a later period it was chiefly notable for carrying on the business of exchange. This business had been perfected at the fairs of Lyons, from whence it passed here. On the first day of the fair the merchants of a certain standing announced the terms on which they were willing to exchange with different countries, and on the second day an authoritative declaration was made of the fair terms of exchange with any foreign country. For this purpose, with the constant fluctuations in all actual coinage, it was necessary to have a unit which should be common to all lands, and free from the possibility of depreciation. Hence everything was reckoned by means of an imaginary unit—*scutus marcharum*, or money of account: so that the form which the business took was not that of buying bills, but of exchanging these fictitious coins, made realizable in one town, for quantities of actual coinage of another country, according to the authoritatively declared rate, which took account of the difficulty of transport, and of various risks. A *scutus marcharum* was worth in Genoa $67\frac{1}{3}$ soldi of the actual coinage of the place. The question to be settled was what, at this time, shall be paid in Piacenza for a *scutus marcharum* in Genoa? This was the fair rate of exchange, and the announcement of it was intended to exclude the operations of private speculators (in which it was not entirely successful), and to secure a division of the advantage among each of the parties transacting business. *Vide* Cunningham's "English Industry and Commerce," 1882, p. 278.

BORDEAUX.—This city has or had two fairs annually—one commencing on the 1st March, the other on the 15th October; they each continued fifteen days. The October fair was generally the more considerable.

The chief commodities disposed of were wines and brandies, and it was no unusual sight to see several hundreds of vessels beyond the usual average number in the port, some of these being of unusually large tonnage.

The fairs had the same privileges with those of Champagne, Lyons, Paris, and Poictou. The consular judges performed the office of conservators, with the same jurisdiction as those of Lyons.

CAEN (Normandy).—This free fair was once very famous. It begins the day after Low Sunday, and lasts fifteen days, of which the first eight were designated the “great week,” the other portion the lesser, because formerly the franchises lasted only the first eight; and because the concourse of strangers was much greater during the early week of the fair.

The merchants dealt in merchandise of all kind, but woollen manufactures were the great speciality. The shops in which the dealers expose their goods here are designated “Lodges.” A considerable number of horses and of cattle were brought to it from the provinces of Normandy. This fair was regarded as next in importance to that of Guibray.

It seems that in 1433 there was an attempt to despoil this fair, by an attack of 700 horsemen, of which I find the following brief record:—“Whereupon they sent the Lord Ambrose de Lore, with vii. c. horsemen, to robbe and spoyle the poore people, commynge to the faier, on the daye of Saint Michaell the Archangell, kepte in the Suberbes of the tounne of Caen.”—*Hall*, Hen. VI. ann. ii.

During the year several smaller and ordinary fairs are held for the sale of horses, cattle, butter, and poultry.

DIEPPE.—This is a free fair of comparatively modern date, said to be the last authorized in France, having been founded by letters patent in 1696. It was first opened on 1st December that year. It continues for fifteen days. All foreigners are at liberty freely to trade here, and goods declared to be for the fair are not liable to seizure while the fair lasts; nor were they liable to inspection by the wardens—a relaxation of practice apparently not quite in the interest of the buyers.

Its franchises and privileges are, that all goods brought into the port of Dieppe during the fair, and there sold or bartered, are exempt from one moiety of duties inwards and outwards. And merchandise imported and not sold during the fair may be carried out free of customs.

GUIBRAY (Lower Normandy).—A fair of very considerable importance, lasting from 10th to 25th August, was held here. Arthur Young, of

agricultural fame, describes in his “Travels in France” (1788), a visit to it on 22nd August, and records as follows: “At this fair of Guibray merchandise is sold, they say, to the amount of six millions (£260,500) ... I found the quantity of English goods considerable, hard and queen’s ware; cloth and cottons. A doz. of common plain knives, 3 livres; and 4 livres for a French imitation, but much worse.” It was a feature of this fair that the resident gentry for long distances around came here to make their purchases.

LYONS.—It has been supposed that the ancient fairs of this city were founded on a special privilege granted by the Roman conquerors. They are four in number—the first is that of the *Epiphany*, which always begins in January, the Monday after the twelfth day; the second is *Easter* fair, beginning on *St. Nisier*’s day in April; the third in August, which begins on *St. Dominick*’s day in that month; and the fourth is the fair of *All Saints*, beginning on *St. Hubert*’s day, in November. The situation of this city, at the confluence of the Saône and the Rhône, render it unrivalled for the facilities of water carriage through some of the richest parts of France.

These fairs were of the highest mercantile repute, and at a very early period bills of exchange were brought into requisition in the adjustment of the accounts for merchandise purchased there. It seems also that bills resulting from commercial dealings in many other parts of Europe were made payable at the Lyons fairs.

Fixed days for payment followed each fair. The ceremonies attending these days were as follows: The chief magistrate came to the lodge of the Exchange, accompanied by his registrar and six syndics, viz., two French, two Italian, and two Swiss or Germans; and there, after a short discourse to the assistants, recommending probity in trade, and observance of the laws, customs, and usages of the place, the laws, customs, and usages were read *in extenso*; and the clerk drew up a process verbal of the opening of the “payment.” The next day they met at the City-hall, and by plurality of voices *settle the course of exchange for all cities with which Lyons had any commercial correspondence*. This custom prevailed for some centuries; and even when the strict regulations here described were frequently departed from, the regulations were capable of being enforced on appeal.

When bills were drawn to be paid at one of these appointed times at Lyons, which had not then begun, the drawer said “pay this my first of Exchange, &c., in the next Epiphany (or other) payment;” but if the payment had already begun, the bill had to be drawn payable “in this current or present payment of Epiphany” (or other term). The bills so drawn were to be accepted in the first six days of the payment they were made payable in; and the person on whom they were drawn was not obliged to declare whether he would or not accept until the sixth day. But after that day the bearer might protest them for non-acceptance, though he might detain them during the whole time of that “payment,” to see whether any one offered to discharge them. The protest, however, was immediately forwarded to the remitters; and if any one paid a bill in the time of the payment before the sixth day (or that being a feast day, the day following) it was at his own risk.

The bearers of bills not satisfied by the last day of any “payment” were to protest them on the third day after the payment finished, otherwise they lost their right as against the drawers; but if this were done in form, and in the time prescribed, the holder might afterwards refuse payment from any one that offered it, and take his reimbursement upon the drawer, alike for principal and charges. And the said holders of bills were obliged to take their reimbursement on the drawers or indorsers in a time limited, viz., for all bills drawn from any part of *France*, in two months; those which were from *Italy, Switzerland, Germany, Holland, Flanders, and England*, in three months; and those which were drawn from *Spain, Portugal, Poland, Sweden, and Denmark*, in six months, to be counted from the date of the protest; or in default thereof they lost their rights against the drawers and indorsers. See *Besançon*.

The general reader must pardon these details, which are of commercial significance. It was customary at an early period to make the bills drawn from Amsterdam and elsewhere on the “payment” of Lyons, in “golden crowns of the sun;” but when this specie became decried in France, the usage of exchange came to be to draw for the payment of Lyons (as was practised in France generally), viz., in crowns of sixty sous, equal to the present English half-crown. These practices may be compared with the usages of Nuremburg, Frankfort, and Leipzig fairs.

The franchises of the fairs of Lyons in the early half of the last century had this special feature: that all goods intended for foreign countries, sent out of this city during the fifteen days of either fair, paid no customs outwards, provided the bales and parcels were marked with the city arms, and had certificates of franchise properly made out. To enjoy this privilege the merchandise had to be sent out of the kingdom before the first day of the following fair, unless special permission for delay had been obtained.

There is reason to believe that a considerable trade in books was transacted at these fairs during the sixteenth and seventeenth centuries.

These fairs have a great history, which cannot be followed up here, and there is the less need to make the attempt because the inquiry is already in competent hands, those of Mr. Chancellor Christie, of Darley House, Matlock. The authorities which may be consulted are the following:—

1. “Ordonnances et privilèges des Foires de Lyon, et leur antiquité avec celle de Brie et Champagne et la confirmation d’ialles par sept roys de France.” Printed at Lyons in 1560, and subsequently.

2. “Cat. de la Bib. Lyonnaise a M. Costa redige par Aime Vingtrisme.” (Lyon, Brun, 1853.) Pp. 458-61. Nos. 10,353-10,415.

3. A Memoir addressed to Charles VIII. in 1485, and presented by M. Pericaud ainé in his privately printed “Notes et documents pour servir a l’histoire de Lyon, 1483-1546” (Lyons, 1840).

4. In the “Proces de Bandiction de la Maison Neuve Accusé d’heresia à Lyon 1534,” printed by Fick, Geneva, in 1873.

MONTRICHARD (in Touraine).—This fair was famous for the great concourse of traders to it from all the provinces of the kingdom; but particularly for the great trade in woollen stuffs, amounting on an average to some 12,000 pieces at each fair.

RHEIMS.—This city had formerly four fairs; it has now two only, May and October—the great fair on St. Remigius’ day. These were all free fairs, two of the original fairs lasting eight days, the others but three days. Their franchises were mainly the same as those of Champagne. A very large commerce was in early times transacted at these.

ROUEN.—This ancient trading city had two fairs; the one called Candlemas fair, beginning on the 3rd February, and the other called Pentecost fair, opening the day after the festival. They each continued fifteen days, and were much frequented by foreigners, particularly the Dutch, British (English and Scotch), and those of other northern nations; its advantageous position for trade, by reason of facilities of water carriage, offering great inducements to the concourse of foreign traders.

Goods sold and exchanged at these fairs, and carried out of the city during the fifteen days, paid but half dues outwards.

TOULON.—This town—the Plymouth of France—has a fair, not designated “free,” which commences on 3rd November, and continues “fifteen working days.” Its franchises, granted in 1708, were that no goods while it lasts are subject to any duties; and all traders, alike French and foreigners, enjoy the franchises and liberties granted to the fairs of Lyons, Brie, Champagne, Rouen, and other cities. These underwent some modifications in the following year, at the instance of the farmers-general of the revenues of France.

TROYES.—This town (one of the cities in Champagne) was noted in the middle ages for its great fairs, of which there were two—one being fixed to the Monday after the Second Sunday in Lent; the other commencing on 1st September. Philip of Valois granted the privileges of these fairs.

A lasting record of the importance of the dealings thereat is handed down to us in the form of “Troy (Troyes) weight,” used in connection with dealings in the precious metals. It is said that this system of weights was brought from Cairo by the crusaders, and was first and permanently adopted as the standard of weight in the dealings of the fairs of Troyes. Hence it may be inferred that the trading was largely in the precious metals, in spices, and in drugs.^[9]

Goods sold at these fairs were exempted from all customs outwards, local dues excepted, under certain restrictions.

It is recorded especially of these fairs, that they had a staff of notaries for the attestation of bargains, courts of justice, police officers, sergeants for the execution of the market judges’ decrees, and visitors—the *prud’hommes*—whose duty it was to examine the quality of goods exposed for sale, and to

confiscate those found unfit for consumption. The confiscation required the consent of five or six representatives of the merchant community at the fair.

Sismondi, in his “History of the Italian Republics,” writing of the events of the thirteenth century, says:

The Tuscan and Lombard merchants however trafficked in the barbarous regions of the West, to carry there the produce of their industry. Attracted by the franchises of the Fairs of *Champagne* and of *Lyons*, they went thither, as well to barter their goods *as to lend their capital at interest to the nobles, habitually loaded with debt*; though at the risk of finding themselves suddenly arrested, their wealth confiscated by order of the King of France, and their lives too sometimes endangered by sanctioned robbers, under the pretext of repressing usury. Industry, the employment of a superabundant capital, the application of mechanism and science to the production of wealth, secured the Italians a sort of monopoly through Europe: they alone offered for sale what all the rich desired to buy; and notwithstanding the various oppressions of the barbarian kings, notwithstanding the losses occasioned by their own oft-repeated revolutions, their wealth was rapidly renewed.

Inspectors of Fairs.—In the course of the preceding notices of the chief fairs of France various references have been made to the inspection of goods, as forming part of the regulations of such fairs. These inspectors were appointed by the state. It was their business to attend at all fairs where there was any considerable trade in woollen and other textile fabrics; to inspect and mark them; and if deficient or not conformable to the authorized regulations, to seize them. Such examination it is obvious required to be made with great circumspection and reserve, and at hours suited to the convenience alike of buyers and sellers. The inspectors were usually accompanied, in the performance of their duties, by the judge of the police of manufactures, and the wardens and jurats of trades in the respective places.

Some free fairs had their own judges and particular jurisdiction.

An examination of M. Bottin’s “View of the Fairs of France” goes to show that they took place mostly on the frontiers of the kingdom, or on the marches of ancient provinces; or at the foot of high mountains, or at the beginning or end of the snow season, which for months shuts up the

inhabitants in their valleys; or in the neighbourhood of the famous cathedrals or churches frequented by flocks of pilgrims; or in the middle of rich pasture tracks. But there are some marked exceptions to these rules.

The establishment and abolition of fairs—with the exception of cattle markets and the markets of the metropolis—are now generally left to the discretion of the departmental prefects.





CHAPTER XXI.

THE FAIRS OF PARIS.

The City of Paris had fairs in great variety, some of which I now proceed to notice.

St. Denis or Lendit Fair.—One of the earliest, perhaps the first, was the mercantile fair of St. Denis, chartered early in the seventh century by Dagobert “in honour of the Lord and to the glory of St. Denys at his festival.” This fair, by reason of the privileges granted, became known under the name of the *forum idictum*—whence *l’indict*, and its corruption to *landit* and *lendit*. To it came the iron and lead of the Saxons, the slaves of the northern nations, the jewellery and perfumes of the Jews, the oil, wine and fat of Provence and Spain, the honey and madder of Neustria and Brittany, the merchandise of Egypt and the East.

The fair, which lasted ten days from the 10th of October, was opened by a procession of monks from the Abbey of St. Denis; and in later times it was usual for the Parliament of Paris to allow itself a holiday, called Landi, in order that its members might take part in the great marriage-feast of commerce and religion: just as the English Parliament usually finds relaxation in horse-flesh and mammon on the “Derby day” at Epsom!

English merchants frequented this fair in the ninth century, *vide* Cunningham’s “English Industry and Commerce,” 1882, p. 82.

But St. Denis had another fair, at one time famous, to which tradition has accorded the following origin. The Paris Cathedral received from Constantinople, in 1109, some fragments of the cross, regarded as authentic. The populace could not find room in the church where they were deposited in any one day; hence the bishop carried them in great pomp to the plain of St. Denis, where there was room enough for the vast concourse of worshippers who assembled to contemplate and adore. This ceremony and procession were renewed at stated periods. The schools of the cloister of Notre Dame had early taken part in the processions; and finally the students of the University of Paris claimed it as a patron festival, which it certainly was not.

In process of time a mart or fair became established on the recurrence of this Church festival. The ground was regarded as consecrated for the purpose. On each 12th of June (the day after the festival of St. Barnabas) the procession took place. It was at a later period called the "Feast of the Parchment."

Early in the morning of the day of procession, the students, attired in their best, assembled on horseback at the top of Mount St. Geneviève, to accompany the Rector of the University, who, arrayed in his scarlet cloak, and wearing his doctor's cap, proceeded on a mule or hackney, accompanied by the deans, proctors and myrmidons, to the plain of St. Denis, where the market for the sale of parchment was already opened. The rector upon reaching the fair caused to be put aside as much parchment as would be required by the University for the coming year, and received from the sellers a donation equivalent to £100 of the present day. This I assume was the toll paid for the right of holding the fair.

After this the students alighted from their horses, and instead of forming part of the procession back to Paris, amused themselves at the fair. This invariably led to riot and disorder, and not a year passed without blood being spilt. Thus from the fifteenth and sixteenth centuries the decrees of parliament against the carrying of arms or sticks, which were continually being renewed and always neglected, testify to the gravity of the evil, and to the difficulties of putting an end to it.

At last, in 1566, the fair was transferred from the plain to the town of St. Denis, and at about the same period paper began to supersede parchment even for public documents. The rector, therefore, ceased getting a supply of parchment at the fair, and the students having no further pretext for attending, it speedily fell into disuse. By the beginning of the seventeenth century the only vestige of it left was the general holiday which the rector granted to the students of the University upon the first Monday after the feast of St. Barnabas, *vide* Lacroix's "Science and Literature in the Middle Ages," pp. 34-36.

St. Germain.—This fair was held in a large permanent building specially provided, constituting something like twin market halls, elegantly constructed of timber, and long regarded as models of construction. The two halls embraced nine streets in line intersecting each other and divided into

twenty-four sections or aisles; the shops having little rooms or store-houses over them, and behind some of them were open spaces, with wells—regarded as of importance in case of fire, although not proving of much avail when the event occurred. The streets were distinguished by the names of the different trades conducted in them—as Goldsmiths' Street, Mercers' Street, &c.

The fair was opened the day after Candlemas Day. It was greatly frequented by traders from Amiens, Beaumont, Rheims, Orleans, and Nugent, with various sorts of cloth and textile fabrics. The goldsmiths, jewellers, and toymen of Paris made a fine display of their wares.

There were brought to this fair, one year with another, some 1,400 bales of cloth and other woollen stuffs, of which the inspector of manufactures at the Custom-house, Paris, was required to keep a particular register. Two inspectors of the fair were required to be present at the opening of the bales of goods. There was also a further inspection made by the Masters and Wardens of the Guilds of Drapery and Mercery.

I find a graphic account of this fair in Lister's "Travels in France," 1698, which I here transcribe:

We were in Paris at the time of the fair of St. Germain. It lasts six weeks at least; the place where it is kept, well bespeaks its antiquity; for it is a very pit or hole, in the middle of the Faubourg, and belongs to the great abbey of that name. You descend into it on all sides, and in some places above twelve steps; so that the city is raised above it six or eight foot.

The building is a very barn, or frame of wood, tiled over; consisting of many long allies, crossing one another, the floor of the allies unpaved, and of earth, and as uneven as may be: which makes it very uneasy to walk in, were it not the vast croud of people which keep you up. But all this bespeaks its antiquity, and the rudeness of the first ages of Paris, which is a foil to its politeness in all things else now.

The fair consists of most toy-shops, and Bartholomew-fair ware; also fiance and pictures, joiner's work, linen and woollen manufactures; many of the great ribband shops remove out of the Palais hither; no books; many shops of confectioners, where the ladies are commodiously treated.

The great rendezvous is at night, after the play and opera are done; and raffling for all things vendible is the great diversion; no shop wanting two or three raffling boards. Monsieur, the Dauphin, and other princes of the blood come at least once in the fair-time to grace it. Here are also coffee-shops, where that and all sorts of strong liquors ... are sold.

Knavery here is in perfection as with us; as dexterous cut-purses and pick-pockets. A pick-pocket came into the fair at night, extremely well-clad, with four lacqueys with good liveries attending him: he was caught in the fact, and more swords were drawn in his defence than against him; but yet he was taken, and delivered into the hands of justice, which is here sudden and no jest.

I was surprized at the impudence of a booth, which put out the pictures of some Indian beasts, with hard names; and of four that were painted, I found but two, and those very ordinary ones, viz. a leopard, and a racoun. I asked the fellow, why he deceived the people, and whether he did not fear cudgelling in the end: he answered with a singular confidence, that it was the painter's fault; that he had given the racoun to paint to two masters, but both had mistaken the beast; but however (he said) though the pictures were not well designed, they did nevertheless serve to grace the booth and bring him custom.

St. Laurence (or *St. Laurent*).—So called from its situation near St. Laurence's Church. It is so ancient that no date can be even approximately fixed for its origin. Its chief traders were goldsmiths and mercers, picture-painters, sempstresses, lemonade-sellers, toymen, earthenware people, gingerbread bakers, &c. &c. To it came people from Amiens, Beauvais, Rheims, and other places of Picardy and Champagne, with light fabrics, both plain and striped, and camlets of all sorts.

The fair seems originally to have lasted but one day; but the period gradually became extended to two months, commencing the day after St. James's day and ending at Michaelmas. It was proclaimed by sound of trumpet.

These two rival fairs had this peculiarity: they were always open as bazaars. They were not fairs in the usual sense of the term for more than three months in the year. The St. Germain fair was held in the winter, and the St. Laurent in the early part of the summer. The former never recovered

its popularity after the fire which destroyed the wooden constructions used during the fair (1763), though by the erection of new galleries, more elegant than the old ones, there was added to the attractions of a fair a dancing-saloon, the Winter Wauxhall, which was well attended for a time.

The St. Laurent fair was held in the upper part of the faubourg of that name, was larger and more elaborately decorated than the St. Germain fair, but it had no Wauxhall, and the only amusements for the frequenters of its Chinese Redoubt were swings and other foreign games.

The St. Ovide Fair.—This was established in August, 1764, and was held in the very centre of Paris, upon the Place Vendôme, then bounded on one side by the church and convent of the Capucines. It was held there for some years, and then transferred to the Place Louis XV., where it did not last long, although it had originally been made fashionable as the *Gingerbread Fair*. It was at this fair that Nicolet, previous to establishing his theatre *des grands danseurs du Roi*, displayed the wonderful strength and agility which gave rise to the proverb “*de plus fort en plus fort, comme chez Nicolet.*”—Lacroix, “The Eighteenth Century,” p. 356.

Onion Fair of Notre Dame.—This fair is held in September, commencing with the feast of Notre Dame, and continuing till the end of the month. It is held on the Isle of Notre Dame, along the Quai Bourbon. A prodigious quantity of black and red onions are brought into the city at this period, the citizens laying in a stock for the whole year.

Pork or Bacon Fair.—This “fair for gammons” is held on the Tuesday in Passion Week in the street of Notre Dame, lasting but the one day only. There is sold at it immense quantities of hams, flitches of bacon, and other salted pork. Many amusing articles have been written concerning it.

HORSE AND CATTLE FAIRS.

The horse and cattle fairs of France were and are very numerous. I shall give but a brief outline of the chief or more remarkable. Those of *Chénérailles* (a great town of Auvergne) are chiefly famous for their fat cattle, brought for the most part to Paris. The fairs are held the last Tuesday in every month. The fairs of *Guibray* and *Caen* are amongst the chief for horses. That of Fontenay, in Poictou, for the horses bred in that province. It

is held 24th June, and is one of the most noted in France. The fair at Niort, on 1st December, is chiefly for foals. At *Nogent-sur-Seine*, is a considerable horse fair, the 11th August. There are three annual cattle fairs at *Braisne-le-Comte*, near Soissons, viz. on 6th May, 14th September, and 14th December. The greater part of the sales are for Paris. The fairs of *Nangis* and *Crecy* in Brie, on 4th July and 29th September respectively, are very considerable, and from these the graziers and butchers in the Isle of France are supplied. *Montely* is a fair chiefly for cows, great numbers of which are brought by the farmers and peasants about Paris and all the Isle of France. It is held 9th September. There are also several fairs for pigs held in the villages around Paris, and innumerable other cattle and horse fairs of lesser note, not calling for any particular mention.





FAIRS OF RUSSIA.

CHAPTER XXII.

THE SMALLER RUSSIAN FAIRS.

The modern growth of Russia is greater than that of any other European country. Its fairs have done much to facilitate that growth. It seems as if its people were passing through those stages of commercial building up which the other nationalities have long left in the dim vista of the past. The greatest fair held in Europe at the present time is that of *Nijni Novgorod*; yet that is not greater, relatively, than was Sturbridge in England, or those of Lyons, or of Bari (Italy), or of Bruges, in Flanders. There are several other large fairs, of which I shall also give the best details available. They are chiefly in southern Russia. The fair of Riga is an exception. The fair of Kiakhta is in Asiatic Russia, as are also those of Irbit and Yekaterinburg. I shall first notice the smaller fairs, and finally that of Nijni.

BERDICHEFF (in the government of Volhynia, southern Russia).—This town has long been famous for its fairs. King Stanislaus Augustus permitted the holding of ten in the year. Five either now are or recently were held, viz. in January, March, June, August, and November. Those of June and August are the most considerable. These fairs have given rise to the commercial importance of the town. The chief trade of the fairs is in grain, wine, honey, wax, leather, and horses and cattle; while cotton and silk goods, glass-ware, hardware, salt, fish, and beetroot sugar are becoming of increasing importance. The value of the goods sold is estimated at £800,000; the Jews are the chief purchasers. At the principal horse fair there is sometimes a show of 40,000 horses. The nobles of the country with their families attend the fairs, and remain encamped in the neighbourhood of the town during the three weeks they last. At the January fair, 1883, a circus was burned, and about three hundred lives were lost.

ELIZAVETGRAD (southern Russia).—This town, formerly designated “Fortress of St. Elizabeth,” with its “Great Perspective,” and boulevard of white acacias, has four annual fairs, the most important of which is that of St. George, held on 23rd April (old style). The value of the goods brought into the fair in 1863 was over £300,000. The chief commodities of the district are tallow and grain. The goods brought into it are those

manufactured at Odessa, Wilna, and Berdicheff. There is also a daily market held here, with transactions of considerable magnitude, especially after harvest.

JITOMIR (or Zytomiers), chief town in the province of Volhynia, western Russia, has two annual fairs—one in July, the other in August. Apart from the trade at these, which is considerable, the ordinary commerce of the town is small. There are three markets weekly.

KARKOFF.—This town, situate in the administrative province of the same name in southern Russia, is a place of very considerable importance. It has four fairs, the “Krestchenskaya” or Epiphany fair, opened 6th January, being one of the most important in the empire. In 1863 goods to the amount of from two and a half to three millions sterling in value were brought to that fair, the textile fabrics alone representing a value of about one million sterling. Cattle and wool constitute the local produce. The wool sales take place exclusively at the Trinity fair in June. Bazaars and markets are also held on Sundays, Wednesdays and Fridays. These are particularly active immediately before Christmas and Easter. This is one of the most pleasant districts of Russia. The vine and the mulberry, with other fruits, thrive here.

KASAN (Kazan).—This, while an independent state, had a considerable fair, one of the greatest in Europe; but John the Terrible prevented Russian merchants from attending it. In 1552 Kasan was conquered by this same Ivan, and annexed to Russia. See *Makariev* and *Nijni Novgorod*.

KORENNAYA, southern Russia, twenty-seven versts from Kursk.—Two very large fairs are held, viz. on the ninth Friday after Easter, and on the 8th Sept. in each year. The cathedral within the famous monastery of Bogoroditsky-Znamensky (*Apparition of the Virgin*) contains a holy image held in great veneration—that of the apparition of said Holy Virgin, after whom the monastery is named. Immense crowds follow the procession of the holy image every year, at a period coincident with the first fair. The monastery was founded in 1597.

KREMENCHUK.—An important town in southern Russia on the Dnieper, in which fairs are held at end of January for fourteen days, on 24th June for eleven days, and on 1st September (all old style) for ten days. The business transacted is not large, particularly having regard to the favourable

situation. In 1862 the sales of these fairs amounted to £85,000, and the value of the goods brought to about £110,000.

KURSK.—A town in southern Russia, on the river Tuskor. Two fairs are held here—one in April, the other in the tenth week after Easter. There are also two weekly markets—Mondays and Fridays. See also *Korennaya*.

MAKARIEV.—The monks of the monastery of St. Macarius (after which the town seems to be named) by virtue of their charter established a fair here in 1641, after which annually in the month of July for a space of three weeks the few wretched huts, built on a sandy desert, were replaced by thousands of shops erected with a promptitude peculiar to the Russians. Taverns, coffee-houses, a theatre, ball rooms, a crowd of wooden buildings painted and adorned with taste, sprung up. People from many nations thronged here in great multitudes: Russians from all the provinces of the empire, Tartars, Tchuvaches, Teheremisses, Calmuks, Bucharians, Georgians, Armenians, Persians and Hindus; and in addition Poles, Germans, French, and English. Notwithstanding the confusion of costumes and languages, the most perfect order prevailed: all were there for the purposes of commerce. The riches which were gathered there within the space of two leagues were said to be incalculable. The silks of Lyons and Asia, the furs of Siberia, the pearls of the East, the wines of France and Greece, the merchandise of China and Persia. These were brought in contrast with the most ordinary articles of everyday life, in true Eastern fashion. This fair was in truth one of the developments of *Nijni Novgorod*, which see.

OREL.—An important town in south-western Russia founded by John the Terrible, about 1565, for the defence of the Grand Duchy of Moscow against the Tartars. The town has a large trade in tallow and hemp, also in linseed oil, wheat, cattle, timber and salt. This commerce has two outlets—the one by land; the other by water down the Oka, to Kaluga, Serpukhof, Kolomna, Murom, Nijni-Novgorod, Rybinsk, and St. Petersburg. There are three fairs annually—between 6th and 20th January, during the fifth and sixth weeks after Easter, and from 8th to 31st Sept. (O.S.) The first is the least considerable of these. The market or bazaar days are Fridays and Sundays. After harvest as many as 10,000 carts enter the town daily, laden with wheat and other produce.

POLTAVA, southern Russia, on the river Vorskla, long famous for the leeches found in its pools and morasses, and which are largely and widely exported. The importance of the trade of the town is chiefly due to its fair (Ilyinskaya) held on 10th July, and lasting a month. The average value of the goods carried to this great commercial gathering is estimated at about three and a half millions sterling. The number of carts engaged in bringing the produce from Moscow, Odessa, Kharkoff, Kursk and Voronej is upwards of 20,000. Russian manufactures are much sold, but wool is the great staple of trade. Horses, cattle, and sheep are likewise bought and sold in great numbers. There are two other fairs—one on the feast of the Ascension.

RIGA (the capital of Livonia, Baltic Provinces) had several centuries since, two considerable fairs, one held in May, the other in September, very much frequented by English, French, Dutch, and other merchants. At the period of these fairs the town wore a very commercial aspect, and the port was thronged with ships. The local customs were peculiar, and gave rise to difficulties. The townsmen had priority in the selection of warehouses, and in the sale of commodities, and as a result the vessels of foreigners were unduly detained, and the selection of the produce made in advance of their opportunities. Hence it was recorded in the middle of the last century that these fairs were on the decline.

ROSTOF, on the river Don, near its mouth in the sea of Azof (Lake Nero), and famous for its manufactures of white lead, vermilion, and other mineral and chemical substances; also for its linen manufacture. Large fairs are held twice a year, when very considerable numbers of cattle and horses change ownership.

VORONEJ, on the Voronej river, near its confluence with the Don; one of the most flourishing towns in southern Russia. Its trade is in grain, linseed, tallow. Four fairs are held annually, the larger being those of 9th May and 29th August (O.S.). Markets are held three times a week.





CHAPTER XXIII.

NIJNI-NOVGOROD.[\[10\]](#)

This may now be pronounced the great mercantile fair of the world. It probably bears a greater resemblance (but on a larger scale) to that of Sturbridge in its best days, than any other of past or present times. It is almost the last remaining type (in Europe) of the mediæval form of commerce. The origin and early history of this fair are somewhat obscure. Authentic records attest that mercantile gatherings were held at Nijni so early as 1366; and tradition points to a still earlier origin. Before Kasan was conquered by Ivan the Terrible in 1552, Russian merchants were prohibited from attending fairs in that province. A considerable fair then held was the precursor of the present.

The Russians held a fair at another place on the Volga. In 1641 the monks of the monastery of St. Macarius, by virtue of their charter, founded a fair at *Makariev*, seventy-one miles below Nijni. Of this fair I have already given some account. "The monks of the monastery (says Michell) very cleverly made Nijni a place of religious as well as commercial resort, and levied taxes on the trade which they fostered." Up to 1751 the tolls had still been collected by these monks; but in that year the fair became the property of the State. In 1824 it definitely fixed at Nijni-Novgorod. It was probably removed here temporarily in 1816, when the town of Makariev was destroyed by fire.

The situation of the town opposite the confluence of the Volga (having a course of 2,320 miles) and Oka (with 900 miles of navigation) rivers, is pre-eminently suitable for the purpose of commerce, of which these rivers indeed, prior to the introduction of railways, constituted the great arteries. The town of Lower Novgorod was founded as early as 1222, and was in 1237 occupied by the Tartars. When it was taken from them, they declared perpetual warfare against it, and sacked it more than once. By means of the two large rivers named—which extend, with their contributory streams and canal communication with the Baltic, over a considerable portion of northern, eastern and southern Russia—an easy communication is

maintained with the richest agricultural and manufacturing provinces. The Kamma, a tributary of the Volga, also affords water communication with the remote provinces of Ural and parts of Siberia. The productions of China are carried during the month of September over the Baikal Lake, and in spring reach the Volga along with the Siberian caravans. The productions of Astrakhan, Persia and Bokhara ascend that river, while those of Petersburg, Germany, England, and France descend it: so that the merchandise of the east and the west meet as in a common centre here. And this line of commerce dates back into far distant ages, promoted and shared in by those trading monks who took so leading a part in founding the great Hanseatic League.

It is an interesting historical fact that the first vessel of war ever built in Russia was launched at Nijni by a company of merchants from Holstein, who obtained permission in the seventeenth century to open a trade with Persia and India by way of the Caspian sea. The vessel was called the Friedrich. The travels of Olearius were in connection with this undertaking, of which there is a great history, to be recounted on some other occasion.

The town has many fine modern buildings. In the ordinary way, the best view to be had of it and the surrounding country is from the “Otkos” or terrace built by order of the Emperor Nicholas.^[11] It is said to be one of the best views in Europe. As far as the eye can reach extends the vast alluvial plain, rich with culture, and occasionally dotted with forests; whilst the Volga, flowing down from Tver, looks like a broad blue ribbon stretched over the country from one extremity of the horizon to the other. Much of the plain below is inundated in spring by the overflowing of the river, leaving a fertile deposit which considerably enhances the value of the land. The stationary population of the town does not exceed 30,000 or 40,000, but during the fair the inhabitants swell up to considerably over 200,000; and this quite irrespective of prodigious numbers of casual visitors. The ancient Kremlin, with its low arched gates, whitewashed towers, and crenellated walls, is one of the sights of the place. The thick green foliage of the gardens and the gay residences of the inhabitants all blend into a very picturesque whole.

Site of the Fair.—We must next take a glance at the site of the fair, which is outside the town, and can hardly be seen from the gates. Turn then from the Volga, or Asiatic direction, and there, across the Oka (here about a

quarter of a mile broad), is a low, almost inundated flat, of triangular shape, between the two rivers. This was regarded as the most convenient site. Great difficulties were presented by the swampy nature of the soil. Deep sewers vaulted over were constructed through the morass; these being connected by canals with the rivers. The buildings for the bazaars were raised on piles, and the whole boggy surface of the plain was covered to the depth of some feet with gravel and clean sand. Through this the ordinary surface water and the inundated flow percolates, and leaves clean passages or roads. In the midst of the plain is the great bazaar—an immense rectangular market-place—divided by lanes or passages, intersecting at right angles into sixty-four square groups of warehouses, or blocks of stone-built buildings, two storeys high, with projecting verandahs, so as to shelter goods and passengers from the sun or rain; containing, besides some public offices in the centre, 2,522 large stores for merchandise, to each of which is a small chamber for the merchant.

The connecting streets are some thirty or forty yards wide; and the centre avenue is yet much wider, and planted with trees. These streets much resemble those of Cairo, Smyrna, and other oriental towns. In the centre of that block of permanent buildings is located the official residence of the governor during the fair, as also all the business offices for the administration. It was in this official residence that the Duke of Edinburgh stayed during his visit to the fair a few years since. It is equivalent to the royal pavilion of some of the early English fairs. The principal avenues of the fair are connected with some ten miles of wharves or river frontage; and during the fair bridges are erected so as to give easy access from the town to the fair. The cost of preparing the site and the principal buildings was forty millions of roubles—£1,670,000 sterling. The fair, however, has long outgrown the original limits, and miles of temporary structures spring into existence for the occasion. It extends over some seven or eight square miles!

Unloading.—As the period of the fair approaches, the ordinary desolation of the location passes rapidly away. The rivers, busy indeed at all times when navigation is possible, now become almost blocked by traffic. A perfect forest of masts is visible. All distinct trace of the ordinary bridge of boats seems lost. The 400 or 500 steamers, built mainly in England and Belgium, which in the ordinary way are trading on the 1,600 miles from this

to the Caspian sea, all seem concentrated here. They dart about like straws on these mighty rivers. But more striking-looking are the quaint mediæval-looking barges, coming as they do from the most distant parts of the empire, piloted through canals and rivers in order to find their appointed place here. These are all being rapidly discharged of their cargoes by an army of ragged Tartar labourers. Here will be found merchandise from every quarter of the globe; merchandise which has in some cases been several years on its way hither; merchandise which comes from localities so remote as not to be brought into voluntary association with this fair. Centuries ago, we are told by the historian of Genoa, the Genoese merchants built larger ships than were required for their regular trading operations, ships calculated to withstand the terrors of the Bay of Biscay, and the storms of the German Ocean, in order to make voyages to the Hanseatic towns, to Wisburg and Gotland, as also to the coast of Russia in order to participate in this great fair (Bent's "Genoa," 1881, p. 107).

The Fair.—And now we arrive at the fair itself. Round the public offices in the centre are ranged the European wares, the French millinery, and English broadcloth. Next follow the Armenians, a numerous and distinguished class in every commercial assemblage throughout the East. Near these the Bokharians usually range themselves, and they are easily distinguishable from other Asiatics by their squat corpulent figures and dark complexions. Nearly a whole side of the bazaar is occupied by the Chinese market, in which the shops are all laid out in Chinese fashion. Tea is the chief article of the Chinese trade; and on this portion of the fair I shall speak later. Beyond the stone buildings of the bazaar commence the rows of wooden booths in which the motley Siberian and Tartar tribes establish themselves with their furs and peltry; the most remarkable to a European eye, though not the least common of their wares, being the dark mouse-coloured hide of the wild horse, with black mane and streak along the back, much prized by the Bashkirs and other tribes for its warmth as well as beauty.

The wine trade has never constituted a great feature of the fair, although wine skins from the Caucasus may be seen; and many of the brands of southern Russia may be found on application.

Most of the streets of the fair have elegant light arcades on each side, supported in front by cast-iron columns, where purchasers can walk about,

well sheltered in all kinds of weather. The stalls are generally very handsome, and in some instances extend from street to street, so as to leave two fronts. They present nothing of the confusion of an ordinary fair; the goods of every kind are as neatly ranged as in the shops of a city. To facilitate business there is a separate quarter set apart for each different and important class of goods. One quarter contains groceries, of which the value sold is very great. In another, dried fish and caviar are exposed in most fragrant variety, of which great quantities are sold, amounting to about £60,000 in value. I may here remark that the annual value of the sturgeon alone taken in the Volga is estimated at two and half millions of roubles; and above 30,000 barrels of caviar have been dispatched from Astrakhan in a single year. A third quarter contains leather articles of every kind, which may be bought exceedingly cheap; boots and shoes are disposed of in very large quantities. Morocco leather is also sold wholesale to a very large amount. A great deal of it comes from Astrakhan, where, as in other parts of European Russia, goats are kept for the use of their hides to make this leather, more than for their milk or flesh. The pleasant soap of Kasan is sold in large quantities. One is glad to find that it is in such demand.

The iron and iron-ware stored in the mile of shops where nothing but this metal is sold, has been brought at immense expense from Siberia; yet much of it in its original crude state probably came from Tula, not a great distance from where it is now, in its highly finished form, exposed for sale. Weapons and glittering arms of all kinds occupy conspicuous places in the hardware stores. There is, as a set-off, a very considerable supply of holy images and priestly vestments!

The cloth range is large and well stocked. One quarter contains ready-made clothes of all descriptions. The cloaks alike for men and women are made from stuffs with most singular patterns. Some of the figured works from Asia are really beautiful. The value of the woollen goods (Russian and foreign) sold annually is seldom less than three millions of roubles—£375,000. The quarter for fancy articles—gloves, handkerchiefs, ribbons, &c.,—is always crowded with purchasers, attracted by the graces of the fair occupants from Rue St. Honoré. The division for cotton goods is fully stocked. The mills of England are largely drawn upon for these; but they are not in the hands of Englishmen at this fair. The value of cotton goods sold here averages about twenty-two million roubles—£2,750,000! A grand

display is made by the silks and shawls, chiefly of oriental manufacture, and hence in very brilliant colours. The manufactured silks disposed of here yearly are estimated at ten and half millions of roubles, or £1,312,000; while of raw silk there is sold over 300,000 lbs. The furniture shops constitute a great feature of the fair; and one can but be surprised to see costly carved tables, chairs, sofas, and still more large and valuable mirrors from France and St. Petersburg. Glass and crystal articles, mainly from Bohemia, constitute a very attractive display, while the jewellery alike of Europe and of Asia is always a source of considerable attraction, and the means of creating a large expenditure of cash. The precious stones from Bokhara and other parts of Central Asia are placed in the most tempting prominence and profusion. But beware of talismans and turquoises that appear to be cheap; they will probably be found equally cheap and much more satisfactory nearer home. The malachite and lapis-lazuli ornaments and other stones from Siberia are sometimes good investments; but some expert knowledge is required. Curious belts of silver may be purchased, but not without long bargaining. The hall-mark is represented by the number 84. There is a stall for the sale of ornaments in gold and silver, set with Siberian and Persian stones. Beware! But it is impossible to recount in any detail all that may be purchased or seen.

The Tea Quarter.—One of the most singular sights of the fair is the tea quarter, which occupies the greater portion of an immense division standing by itself, and distinguishable by its Chinese architecture. The Chinese superintend this business themselves, or rather formerly did so. Along the wharves enormous pyramids of chests of tea are heaped upon the ground, covered only with matting made from the inner bark of the birch tree. These chests of tea, called “tsibiki,” are so packed as to be impervious to rain or damp. Outside the ordinary wooden chest is a covering of wickerwork of cane or bamboo, round which, at Kiakhta, raw bull-hides are tightly stretched, with the hair inwards. These chests arrive at Nijni from China, having been received in barter, at Kiakhta or Maimatchin, on the Chinese border of Russia. The Russians, who are great tea drinkers, are accustomed to the higher qualities of tea grown in North China; but these are now quite as easily obtained from Canton as from *Kiakhta* (which see), and it is said (contrary to former belief) that the sea carriage has no deteriorating effect whatever. Here may be seen some kinds of tea which scarcely ever enter into the English trade, viz. yellow and brick, the former of a delicious

fragrance and very pale, but injurious to the nerves if taken very frequently; it is handed round after dinner, in lieu of coffee, in Russia. The brick tea is consumed by the Kalmucks and Kirghizes of the Steppe. The best yellow tea sells for about 35s. per pound. The tea trade of the fair has shown a tendency to decrease.

Outskirts of the Fair.—To the casual visitor the outskirts of the fair are almost more interesting than its centre, for observation and study. The constant succession of carts in long strings; the crowds of labourers; the knots of earnest-looking traders with long beards; the itinerant vendors of liquid refreshments and white rabbit-skins; the greasy slovenly monk collecting kopecks of those who fear to withhold their charity lest their transactions be influenced by the Evil One; the frequent beggars, pleading for the most part that they have been burned out, and showing the most dreadful-looking sores as evidence of their veracity; all these go to make up the great assemblage, the unique *tout ensemble* of the great fair of Nijni-Novgorod as it has been, and is to-day. How long will it remain?

Administration of Fair.—The administration of the fair is carried on under the supervision of the Governor of the Province; the arrangement of all commercial matters and adjustment of difficulties being entrusted to a committee of gentlemen called the “Fair Committee,” chosen from among the assembled merchants. This committee consists of a president, three aldermen, and three committee-men, besides the manager of the fair-office and the mayor of the town of Nijni. The management of all Government property is in the hands of this committee. The letting of shops and store-houses and the erection of bridges and all temporary works comes also within their province. The conditions on which the shops and stores built by Government are let to merchants and dealers are exceedingly liberal, and this rent is the sole profit made by Government on the transactions of the fair. No imposts of any kind are levied in the shape of licences or duties. Shops are let to the first applicant, the sole reservation being that the occupier of the previous year has a prior claim. In order to promote competition, each row of buildings is devoted to a certain kind of merchandise, thus obliging the merchants to endeavour to undersell one another. To prevent monopolies or over-speculation, no merchant is allowed to hire more than three consecutive shops, nor is he allowed to occupy more

than one shop unless they adjoin each other. The number of shops let in 1874 was 6,086, and their total rent amounted to something over £28,000.

The fair lasts six weeks—the really busy period being from the 18th to 27th August, when the height is reached. Some fifteen days beyond are allowed for the settlement of accounts. The usance of the fair is twelve months credit, *i.e.* from one great fair to the following; but sometimes, in dull times, and under special circumstances, as much as two years credit is given. This was particularly the case in 1849.

Trade of the Fair.—The annual trade of the fair has been the subject of various conjectures; but I believe the Government of the Province has caused careful estimates to be made from time to time. In 1697 the trade of the fair was estimated at £12,000 per annum—evidently far too low. In 1790 it was stated to be £4,500,000!

The following are the details of the principal branches of the fair in 1849, which were understood to be less than the transactions of the preceding year: money being scarce, and there was a stagnation in the grain trade. The total estimate of the Russian produce offered for sale was £7,916,016, of which there were sold raw produce £1,917,940; provisions £858,684; home manufactures £3,981,716—total £6,758,340, leaving £1,157,675 unsold. The value of the foreign goods and produce was estimated at £2,430,191; of these Asiatic articles sold to the extent of £1,329,131; European raw materials £493,955, and manufactured goods £204,888—leaving £402,217 unsold. So that the total merchandise at the fair was estimated at the value of 10½ millions sterling, of which about nine millions were sold.

In Murray's "Handbook of Russia," written by Mr. Michell, the then well-known British Consul, and published in 1868, it is stated that the aggregate sale and purchases at the fair represented about sixteen millions sterling; which dealings were conducted by from 150,000 to 200,000 traders from the various countries of Europe and Asia.

Mr. Doria, secretary of the British Embassy at St. Petersburg, reported that the trade of the fair had increased from about six millions sterling in 1847 to over £20,000,000 in 1874 (165 millions of roubles), when upwards of 6,000 shops were let. The iron sold in various forms amounted to 5,557,800 pouds of 36 lbs.—the value being £2,193,812. Tea of the value of about £1,200,000 was sold.

At the fair of 1879 the iron trade figured largely, and the following facts were obtained regarding the supplies. The Russian ironmasters sent 15,130,498 pouds (1 poud = 36 lbs.) of wrought iron, steel, and metal work, of the value of 7,528,350 roubles. A considerable amount was also imported into the iron ports of the Volga, viz. at Laïchev, 1,337,541 pouds; Kasan, 16,474; Simbirsk, 22,066; Saratov, 92,361; Rostov, on the Don, 67,762. Cast iron was not in great force, there being only 530,488 pouds, of the value of 412,475 roubles. One of the largest contributions was sent from the works of Count Strogonof, being 6,725,588 pouds.

Revenue of the Fair.—The fair constitutes a source of State revenue. When in 1751 the fair first became the property of the State, its tolls or revenues were farmed at about £150 per annum. In the reign of the Emperor Paul (end of last century) the farmer of the tolls engaged to build a new bazaar, and to pay £4,500 a year into the exchequer. In 1824 a new governor's house, bazaar, and shops were erected, already described, and an annual sum of £8,000, part of the rental of these, was appropriated to pay the cost of these buildings. The rental, as we have seen, is now approximating to £30,000.

A “charity dormitory” was fitted up by Count Ignatieff, with accommodation for some 250 houseless vagrants; but if all of this class who are present were to apply for admission, probably accommodation for 20,000 would be needed!

The mode of estimating the number of persons attending the fair is peculiarly ingenious. The bakers are required to make daily returns of the quantity of bread they sell, and in this manner an approximation is arrived at. Of those present at the fair, only about one in a hundred are female.

It may be remarked that there is an excellent restaurant under the governor's house in the fair. Some of the refreshment booths in the fair present a remarkable sight, and, we may fairly add, smell! The “Armenian kitchen” is one of the sights. Excellent horse-flesh may be had at the Tartar restaurants!

The passport system has been abolished as to persons attending the fair, the governor finding it impossible to examine, or indeed even to open the 40,000 documents per day that were formerly sent in. Besides, identification is out of the question; and the pick-pocket fraternity use to

purchase, or more appropriately steal, the authorization they required under the old system.

Sanitary Arrangements.—The sanitary arrangements of the fair constitute by no means an unimportant feature. To a sometimes tropical heat there is the usual accompaniment of clouds of finely pulverised dust. The Easterns assembled are not proverbial for habits of personal cleanliness. There is indeed an aroma unmistakable. The sewers are flushed several times a day by means of water drawn from Lake Mestcherski, giving a fall of six yards into the river Oka. Round the central bazaar is a small canal, provided in case of outbreak of fire, and found valuable on many occasions. Smoking is prohibited within the limits of the fair under a fine of twenty-five roubles. The fair is guarded by a special service of Cossacks and police.

Amongst the amusements are a theatre with a very good ballet, for which latter Russia is famous.

There is a belief that the glory of the fair is departing. Wallace, in his “Russia,” 1877 (ii. 196-7), says:—“I went to the great fair—and was disappointed. All the descriptions of it which I have read are much too highly coloured. ‘The motley crowds of Orientals, representing every country in the East,’ is not visible to the naked eye of a prosaic observer. A few Georgians, Persians, and Bokhariots may be seen sitting at their booths or strolling about; but they are neither very picturesque nor very interesting in any way. There is a ‘Chinese Row’ where tea is sold, and where the roofs of the booths show traces of the influence of pagoda architecture; but I find there no children of the Celestial Empire. As to the various kinds of merchandise, they may all be seen to much better advantage in the shops and bazaars of Moscow. Altogether, I should advise the traveller not to go very far out of his way to visit this great annual gathering, which is commonly spoken of by Russians—especially by those of them who have never seen it—as if it were one of the seven wonders of the world.” This is in conformity with the general depreciatory style of the entire work.

I ought not to omit mention of a little privately-printed book, “The Great Fair of Nijni Novogorod, and How we got there.” By William Forsyth, Q.C. (1865.) He too was disappointed with the fair.

Two smaller Fairs.—Beyond the great fair which I have now described as fully as space would permit, there are two other fairs at Nijni, which,

however, are little visited by foreigners. The one held in January on the ice, at the mouth of the Oka, is devoted to the selling of wooden wares, such as boxes and toys. Great numbers of people come to this fair from the neighbouring villages. In January, 1864, the ice on which the booths and inns were constructed gave way, and a considerable number of men, women, children, and horses miserably perished by drowning. Since then this winter fair can hardly be said to have revived.

The other fair held on 6th July (N. S.) is for the sale of horses.



CHAPTER XXIV.

FAIRS OF ASIATIC RUSSIA.

Irbit, in the government of Perm, in Asiatic Russia.—The town is small, with a population of little more than 1,000. It is enclosed with palisades, and contains two churches and a market-place surrounded with shops. Here in past times a noted fair was held annually, attended by Russian merchants on their way to Kiakhta. In more recent times it has been superseded by the fairs of Yekaterinburg and Nijni.

KIAKHTA (sometimes designated Maimatchin, the depot for commerce).—This town is situated in Asiatic Russia, in the government of Irkutsk, on the Chinese frontier. The fair appears to have been established by treaty between China and Russia towards the latter part of the sixteenth century. The mode of business is after the fashion of those early barter marts, which fairs originally were. The reason for this state of things here is that the Russians are prohibited from exporting their coin, and there is no rate of exchange or other facilities for bills of exchange between the two countries. The Russian commodities are transported by land from St. Petersburg and Moscow to Tobolsk. From thence the merchants and merchandise may embark upon the Irtysh down to its junction with the Ob; they can then work up the last-named river as far as Naryn, where they enter the Ket, which they ascend to Makoffskoi-Ostrog. At that place the merchandise is conveyed about ninety versts on land to the Yenisei. It is then necessary to ascend that river, the Tunguska, and Angara to Irkutsk, cross the Baikal Lake, and go up the river Selenga almost to Kiakhta. On account of the labour of working up so many rapid rivers, and of the incessant transshipments—which can hardly be accomplished in one summer—many prefer to go overland altogether. They make as a general rendezvous the town of Irbit, where a considerable fair was formerly held. From thence the progress is in sledges during the winter to Kiakhta, which is usually reached in February—the season in which the chief commerce is carried on with the Chinese. The Russian merchants purchase on their way all the furs they can find in the small towns, where they are brought from the adjacent countries. When they return in the spring with the Chinese goods, chiefly tea,

occupying great bulk, the water route is preferred. Formerly the woollen cloths of Prussia were conveyed to this fair in large quantities—to the value of some £1,500,000—by the Russian merchants. The manufactories of Poland and Russia now furnish the cloth taken to China.

The mode of procedure in the dealings is this: The Chinese merchant comes and examines the goods he requires in the warehouse of the Russian trader. When the price is settled, the goods are sealed in the presence of the Chinese. Both parties then repair to the Mai-ma-tshin, where the Russian chooses his commodities, and leaves behind him a person of confidence, who remains in the warehouse until the Russian goods are delivered. About 8,000,000 lbs. of tea, of which two-thirds are of superior quality, were formerly taken into Russia as the proceeds of this barter. There is a small duty levied on the produce of each country. The trade has fallen off since sea-borne tea became prevalent. Much of this now goes to Odessa through the Suez Canal.

YEKATERINBURG (or Ekaterinburg or Jekaterinburg), in the government of Perm in Asiatic Russia, forming the capital of the mining districts of the Ural. It is a modern place, and a considerable fair has sprung up, superseding that formerly held at Irbit.



FOOTNOTES

[1] We shall find that at a later period the sale of slaves was introduced into the fairs and markets of England and the north of Europe generally.

[2] Suetonius records that Claudius Cæsar made suit unto the Consuls for a licence to hold fairs and markets for his own private manors and lands.—*Sueton.*, ch. xxii.

[3] The protection from “evil tolls” was also a matter of great consequence. It was to be regarded as a security from paying so large a custom or imposition upon any goods that the fair profit is lost therein, and the trade thereby prevented. The original term expressive of this is *Mala Tolneta*, the word toll or tolt being derived from the Saxon *Tholl*, Low Latin *Tolnetum*, or *Theolonium*, which signifies a payment in markets, towns, and fairs, for goods and cattle bought and sold. It also stands for any manner of custom, subsidy, imposition, or sum of money taken of the buyer for the importing or exporting of any wares; and it may be assumed that the words in *Magna Charta* were used in their evident sense. The compound word *Mala-tolneta*, which appears in the original text, signifies bad or evil tolls, or unjust exactions. In the later statutes it is rendered into French by the ancient term *Maletout* (*Vide* R. Thomson’s “Notes on the Great Charters,” 1829).

[4] In illustration of the early custom of holding foreigners living or trading in England responsible for the offences and crimes of other foreigners, the following instance may be given. In 1301 a person belonging to the house of the Spini, of Florence, was killed in a squabble with some other people belonging to the same house in England, and the guilty person having absconded, the officers of justice seized the bodies and goods of other persons belonging to the company, and also (luckily for the merchants), a sum of money collected by them in Ireland for the *Pope*, and some merchandise purchased on his account. He (the Pope) immediately sent a Bull to England requiring the liberation of the people and property arrested (“*Fœdera*,” v. ii., p. 891).

[5] This practice remained in force in France from the age of Charlemagne down to our own times.

[6] It had before this time been quite customary to hold fairs in churchyards.

[7] In the days of slavery in the United States of America, there was in frequent use the following couplet:

“The Lord him knows the nigger well,
He knows the nigger by *the smell*,” &c.

[8] The Vagrancy and Mendicity Acts were called into aid. Under these, “homeless beggars” were to be sent to their own parish. It is probable that the numbers were too great to be dealt with efficiently.

[9] James VI. of Scotland adopted Troy-weight in 1618; but curiously the Troy-weight (Scots) coincided more nearly with Avoirdupois.

[10] The name signifies *Lower New Town*, to distinguish it from Novgorod the Great on the Volkhof, North-Western Russia.

[11] This terrace is locally known as Mouravieff's Folly, in consequence of a tower built by him, upon which he designed to place a facsimile of the famous Strasburg clock, but on so gigantic a scale that the hours and minutes, the moon's phases, and planets, cycles, &c., should be distinctly visible from every locality of the town and fair!



INDEX.

Accounts, settling of, at fairs, [9](#).

Actors at Sturbridge fair, [128](#), [144](#).

Aix-la-Chapelle, early fair of, [7](#).

Alarm bells at fairs, [6](#).

Ale at fairs, price fixed, [81](#), [82](#).
tested, [82](#).

Alfred the Great, did he introduce fairs? [19](#).

Amphyctionic fairs, [3](#).

Anglo-Saxon fairs, [13](#).

Antwerp, influence of fairs, [10](#).

“Ara,” the signal of the money-changers, [9](#).

Armour from Milan sold at Sturbridge fair, [163](#).

Asia, early fairs in, [19](#).

Assize of bread, wine, and beer, [63](#).

Bacon fair of Paris, [282](#).

Bailey, Mr., manager of company of comedians, [150](#).

Bailiffs at Sturbridge fair, [78](#).

Bakers at fairs, [80](#), [81](#), [84](#), [155](#).

Barnwell Abbey, history of, [148](#).

Barnwell (Cambridge) fair, [13](#), [59](#), [69](#), [75](#).

Bartholomew fair, origin of, [164](#).

charter, [167](#).

new charter, [173](#), [175](#).

right of holding challenged, [173](#).

review of during four centuries, [181](#).

disputation of scholars in, [182](#).

described by a foreigner, [188](#).

proclaimed by City of London, [190](#).

unauthorized proclamation of, [205](#).

proclamation discontinued, [242](#).

under the Commonwealth, [201](#), [204](#).

described (1641), [199](#).

visited by a Frenchman, [215](#).

surveyed by Hone, [236](#).

threatened, [210](#), [213](#), [217](#), [229](#), [232](#), [240](#).

duration limited, [221](#), [223](#), [227](#), [229](#), [233](#).

cash taken by shows, &c., [239](#).

suppression of, [223](#).

the end, [240](#).

new, [241](#).

Beaucaire (France), fair of, [262](#).

Bells for giving alarm at fairs, [6](#).

Beer, sale of, at Sturbridge fair, [155](#).

Berdicheff (Russia), fair of, [285](#).

Besançon, fair of, [263](#).

Bible references to fairs, [5](#).

Bills of exchange at fairs, [267](#).

Blackstone on fairs and markets, [15](#).

Book sale at Sturbridge fair, [126](#).

Book stalls at Bartholomew fair, [239](#).

Books at the fairs of Lyons, [269](#).

Booths in Barnwell fair, [60](#).
 bequests of, [66](#), [67](#), [68](#), [79](#).

Booths in Sturbridge fair, [102](#), [103](#), [112](#), [118](#), [132](#), [141](#).

Bordeaux, fair of, [264](#).

Borough laws of Scotland, [27](#).

Braisne-le-Comte (France), fair of, [283](#).

Bread, assize of, [191](#).

Bridewell boys at Bartholomew fair, [231](#).

Brie (France), fairs of, [8](#), [245](#).

Bristol, fair at, [35](#), [66](#).

Bruges (Flanders), fair of, [8](#).

Butchers to sell good meat, [84](#).

Caen (Normandy), fair of, [264](#).

Calendar, alteration of, [47](#), [230](#).

Cambridge, fairs of, [35](#), [55](#).

Cambridge town, conflict with university, [56](#), [104](#).

Cambridge university, rights in Sturbridge fair, [70](#), [74](#).

Carter's account of Sturbridge fair, [144](#).

Cash receipts of shows, &c., at Bartholomew fair, [239](#).

Cattle fair at Smithfield, [210](#), [224](#).

Champagne, fair of, [8](#).

Champagne and Brie, fairs of, [245](#).

Chapel at Sturbridge fair, [77](#).

Charity dormitory at Nijni fair, [305](#).

Charters of fairs, [14](#).

Cheese fair at Sturbridge, [150](#).

China, productions of, at Russian fairs, [292](#), [297](#), [300](#), [308](#).

Christening at Sturbridge fair, [145](#).

Church festivals and fairs, [2](#), [15](#).

Churchyard fairs abolished, [25](#).

Christie, Mr. Chancellor, [269](#).

Citizens of London attending fairs, [60](#), [66](#), [68](#), [100](#).

Citizens of London free of fairs, [20](#).

City of London, grant to, of Smithfield, [198](#).

Clark, Joseph, the “Posturer,” [215](#).

Clerk of the fair, [24](#).

Cloth at fairs, [278](#), [299](#).

Cloth trade in Bartholomew fair, [186](#), [210](#).

Cloth, right of search, [98](#).

Clothiers at Sturbridge fair, [136](#).

Coinage, [46](#).

College gowns, material bought at fairs, [87](#).

Cologne, merchants of, might attend English fairs, [23](#).

Commerce at fairs, [163](#).

Commonwealth and Bartholomew fair, [201](#).

Company of merchants from Holstein, [293](#).

Cotton goods at Russian fairs, [299](#).

Courtray (France), fair of, [8](#).

Courts for adjusting differences. See [Piepowder, courts of](#).

Courts of pedlars, [27](#).

Coventry, fair at, [35](#).

Crecy, fair of, [283](#).

Crying the fair, [32](#).

Dagonizing of Bartholomew fair, [206](#).

Danish slaves sold, [10](#).

Day, Charles, his booth at Sturbridge fair, [147](#).

Defoe's description of Sturbridge fair, [133](#).

Dice and hazard tables at Bartholomew fair, [225](#).

Dieppe, fair of, [265](#).

Disputation of scholars in Smithfield, [182](#).

Disputes, adjustment of, [9](#).

Disputes between City of London and Prior of St. Bartholomew, [169](#).

Dissolution of monasteries, [180](#).

Dower, right of, in fair booths, [119](#).

Draining the Fens, [122](#).

Drama, the, at Bartholomew fair, [195](#).

Drapers' Company, [194](#).

Duddery in Sturbridge fair, [77](#), [135](#), [137](#).

Duration of fairs, [32](#).

Elegy on "Bartlemy" fair, [234](#).

Elizavetgrad (Russia), fair of, [285](#).

Ely, fair at, [35](#).

Embroidery, search for, [64](#).

England, early fairs in, [19](#).

England, laws relating to fairs, [12](#).

English merchants attending fairs, [37](#).
at French fairs, [272](#), [276](#).

Escheator, duties of, as to fairs, [25](#).

Europe, early fairs in, [19](#).

Evelyn visits Bartholomew fair, [201](#).

Exchanges at fairs, [248](#).

Executions at Smithfield, [171](#).

Fair committee, [302](#).

Fair, signification of the term, [2](#).

Fairs, origin of, [1](#).
by prescription, [15](#), [16](#), [17](#), [29](#).

Fair on Mount Calvary, [3](#).

Fairs, duration of, [33](#).
sources of revenue to religious houses, [2](#).
courts for adjusting differences at, [6](#), [26](#).
prohibited during plague. See [Plague](#).
restricting dealings in, [41](#).
seal of, [248](#).
specific legislation for, [28](#).

Feast days, fairs on, [34](#).

Fellowship of Mercers, [37](#).

Fielding kept a booth at Bartholomew fair, [225](#).

Fire, alarm of, at Sturbridge fair, [149](#).
at Bartholomew fair, [225](#), [234](#).

“Firm peace,” a privilege of fairs, [168](#).

Fish at fairs to be good, [83](#).
forestalling of, [73](#), [76](#), [111](#).

Flanders, fairs of, [8](#).
Flemish weavers at Sturbridge fair, [161](#).
Flood at Sturbridge fair, 1562, [100](#).
Foreign merchants in England, [21-24](#), [61](#).
Foreigners at Bartholomew fair, [168](#).
Forestalling, [50](#), [72](#), [73](#), [85](#).
Forsyth (W.), his work quoted, [307](#).
Four early fairs in England, [19](#).
France, early fairs in, [8](#).
 fairs in, [244](#), [261](#), [274](#).
Franchises of fairs, [18](#), [246](#), [269](#).
Fraternity of St. Thomas Becket, [38](#).
Free borough, right of fairs in, [18](#).
Freemen of London attending fairs, [34](#), [36](#).

Gaming prohibited at Sturbridge fair, [156](#).
Garlick-row, Sturbridge fair, [157](#).
Genoese commerce, [8](#), [9](#), [10](#), [296](#).
 merchants at Sturbridge fair, [161](#).
Germany, early fairs, in, [7](#).
Goal delivery in Sturbridge fair, [118](#).
Golden crowns of the sun, [269](#).
Greece, origin of fairs in, [3](#).
Greek church, festivals of the, [27](#).
Guibray (France), fair of, [266](#).
Gunning, Henry, "Reminiscences of Cambridge," [148](#).

Hackney coaches in Sturbridge fair, [117](#), [126](#), [140](#), [142](#).

“Hand and shears,” tailors at the, [204](#), [211](#).

Hangman hanged in Smithfield, [184](#).

Hanse Towns trading at Sturbridge fair, [161](#).

Hanseatic League, [23](#).

Helston (Cornwall), fair at, [13](#).

Heretics burned in Smithfield, [179](#).

Hertford, claimed exemption from tolls, [70](#).

Historical shirt, [203](#).

Hone’s survey of Bartholomew fair, [236](#).

Hone, account of Sturbridge fair, [149](#).

Hops at Sturbridge fair, [137](#), [139](#), [143](#).
right of weighing at Sturbridge, [125](#).

Horners’ Company, right of search, [66](#).

Horse-bread at fairs, [84](#).

Horse fairs, [43](#).
fair, Sturbridge, [152](#), [157](#).
and cattle fairs of France, [282](#).
dealers in French fairs, [247](#), [250](#).
fairs of Russia, [285](#), [307](#).

Hospital for lepers, fair for, [55](#), [59](#).

Hostilities suspended during fairs, [4](#).

Household stores bought at fairs, [63](#).

Idle games prohibited, [114](#).

Ill fame, arrest of persons of, [78](#), [155](#), [156](#).

Indulgences sold at fairs, [6](#).

Initiation at Sturbridge fair, [145](#).

Inquiries into grants of fairs, [16](#).
Inquisitions as to fairs, [17](#), [54](#).
Inspectors of fairs (France), [248](#), [273](#).
International reciprocity, [21](#).
Intoxicating liquors at fairs, [53](#).
Ironmonger's row, Sturbridge fair, [153](#).
Ironware at fairs, [298](#).
Ireland, fairs in, [51](#), [52](#).
Italy, fairs in, [6](#).

Jew traders, [7](#).
Jews at the fair of Paris, [275](#).
Jitomir (Russia), fair of, [286](#).
Jonson, Ben, "Bartholomew fair," [195](#).

Karkoff (Russia), fair of, [286](#).
Kasan (Russia), fair of, [286](#).
Keeper of the fair, [24](#).
Kensington, Lord, and Bartholomew fair, [205](#), [240](#).
Kiakhta (Russia), fair of, [301](#), [308](#).
"King's beam," [113](#).
King's jester, or court fool, [165](#).
King's market, Smithfield, [166](#).
Korennaya (Russia), fair of, [287](#).
Kremenchuk (Russia), fair of, [287](#).
Kursk (Russia), fair of, [287](#).

Land tax in Sturbridge fair, [144](#).
Lapland, fairs in, [28](#).
Laws relating to fairs amended, [51](#), [52](#).
Leather, sale of, at Bartholomew fair, [167](#).
Lendit fair (Paris), [275](#).
Lister's "Travels" quoted, [279](#).
Locke, John, at Bartholomew fair, [208](#).
Lombard exchange at Sturbridge fair, [161](#).
Lombard merchants, [272](#).
London, growth of, [185](#).
London merchants attending fairs, [34](#).
London merchants attend the fairs of France, [257](#).
London theatres closed during Bartholomew fair, [219](#), [224](#).
Lord of the fair, [166](#).
"Lord of the taps," [123](#).
Lord Mayor, fatal accident to, [212](#).
Lotteries in Bartholomew fair, [219](#).
Lynn, port of, and Sturbridge fair, [160](#).
Lyons, fairs of, [76](#), [93](#), [266](#), [270](#).

Magna Charta, privileges as to fairs, [20](#).
Maidstone fair prohibited, [126](#).
Maimatchin (Russia), fair of, [308](#).
Makariev, fair of, [287](#), [292](#).
Manors, fairs granted to Lords of, [18](#).
Markets of the Romans, [27](#).

Mayor's house at Sturbridge fair, [123](#).
Measures at Bartholomew fair, [191](#).
Measures tested at fairs, [83](#), [85](#).
Mecklenberg, sale of slaves at, [10](#).
Menageries, [280](#).
Menagerie, first travelling, at Bartholomew fair, [222](#).
Merchant Adventurers, Company of, [36](#).
Merchants attending fairs in England, [19](#), [20](#).
Merchant Taylors' right of search, [193](#).
Messen, German designation for fairs, [2](#).
Metropolitan Police District, fairs in, [49](#), [51](#).
Michell's "Handbook of Russia," [303](#).
Miracle plays, [179](#).
Missa, Latin designation for fair, [2](#).
Monasteries, dissolution of, [180](#).
Mont Casel, fair of, [8](#).
Montely, fair of, [283](#).
Montrichard (France), fair of, [270](#).
Mount Calvary, fair on, [3](#).
Mouravieff's folly, [293](#).

Nangis, fair of, [283](#).
New Bartholomew fair, [241](#).
Newcastle-upon-Tyne, fair at, [13](#).
Night-watch at Sturbridge fair, [88](#).
Nijni Novgorod, fair of, [163](#), [284](#), [291](#), [306](#).

trade at, [303](#).

Niort (France), fair of, [283](#).

Nogent-sur-Seine (France), fair of, [283](#).

Normans, fairs largely introduced by, [14](#).

North of Europe, fairs in, [10](#).

Northampton claimed freedom from tolls, [70](#).

Northumberland, fairs in, [13](#).

Notaries at fairs, [272](#).

Nottingham, fair at, [35](#).

Olearius, travels of, [293](#).

Olympian games, [3](#), [27](#).

Onion fair of Notre Dame, [282](#).

Orel (Russia), fair of, [288](#).

Owen Lewy, clown at Sturbridge fair, [150](#).

Owners of fairs, [53](#).

Oxford, fair at, [35](#), [66](#).

Oysters at Sturbridge fair, [144](#), [152](#).

Paris, fairs of, [275](#).

Passport system at fairs, [305](#).

Paving the streets, [194](#).

Payments at fairs, [267](#).

Parchment sold at fairs, [277](#).

Pepys on Bartholomew fair, [207](#), [209](#).

Pewterers' Company, right of search, [89](#).

Philips, W., actor, &c., [214](#).

Piepowder, courts of, [6](#), [26](#), [28](#), [29](#), [30](#), [91](#), [142](#).

Piepowder court at Sturbridge fair, [152](#), [159](#).

Plague, [44](#), [46](#), [101](#), [114](#), [118](#), [119](#), [121](#), [124](#).

Plague in London, [174](#), [186](#), [190](#), [197](#), [208](#).

Political allusions at Bartholomew fair, [214](#).

Political pamphlets, [200](#).

Poltava (Russia), fair of, [289](#).

Pope, merchandise of the, [22](#) ([note](#)).

Pork fair of Paris, [282](#).

Preaching at Sturbridge fair, [123](#), [130](#).

Prescription, fairs held by, [15](#), [16](#), [17](#).

Prince of Wales at Bartholomew fair, [227](#).

Printed matter, sale of, at fairs, [46](#).

Priory of Bartholomew, [164](#), [169](#), [173](#).

Privilege of fairs, [16](#).

Procession to proclaim Sturbridge fair, [132](#).

Proclamation of fairs, [33](#), [79](#).

Proctors' booth in Sturbridge fair, [117](#).

Proximity of fairs, [16](#).

Puritans, the, and Bartholomew fair, [202](#).

Queen Elizabeth, rejoicings on birth of, [73](#).

Rahere, founder of St. Bartholomew fair, [165](#).
almoners, [166](#).

Rattlesnakes at Bartholomew fair, [225](#).
Regulations for markets and fairs, [50](#).
Religious petticoat, [203](#).
Restricting dealings in fairs, [41](#).
Restoration, the, and Bartholomew, [206](#).
Retail dealings prohibited, [43](#).
Rheims, fair of, [270](#).
Rich, Lord, and Bartholomew fair, [184](#), [188](#).
Riga, fair of, [289](#).
Rival fairs, [16](#).
Robberies in fairs, [40](#), [184](#).
Robbery at Caen fair, [265](#).
Rogers, E. Thorold, on Sturbridge fair, [160](#).
Rome, fairs of, [5](#).
Roman fairs in England, [13](#).
Roman markets, [27](#).
Rostof (Russia), fair of, [290](#).
Rouen, fairs of, [270](#).
Royal grant, fairs originated by, [15](#), [17](#).
Russia, fairs of, [284](#).
 smaller fairs of, [307](#).
 Asiatic fairs in, [308](#).

St. Denis, fair of, [275](#).
St. Germain, fair of, [278](#).
St. Lawrence, fair of, [280](#).
St. Ovide, fair of, [281](#).

Salander, Dr. Tobias, in St. Bartholomew fair, [189](#).
Salisbury, fair at, [35](#), [66](#).
Sanitary arrangements at Nijni fair, [306](#).
Schismatical congregations prohibited, [143](#).
Seal of fairs, [24](#), [248](#).
Search for defective cloth, [193](#).
Selling after close of fair, penalty, [33](#).
Setting of willows, [101](#).
Ships of merchants coming to fairs, [20](#).
Shoemaker row, Sturbridge fair, [153](#).
Shops at Sturbridge fair, [151](#).
Sismondi quoted, [272](#).
Skinners' Company, and Sturbridge fair, [117](#).
Slaves, sale of, in fairs of Europe, [3 \(note\)](#), [70](#).
Slaves sold in Smithfield, [179](#).
Slaves at St. Denis fair, [275](#).
Smithfield, originally Smoothfield, [165](#).
Smithfield, stage entertainment on, [220](#).
Southwark (Our Lady) fair, [197](#).
Stage plays, [49](#), [50](#), [128](#), [144](#), [195](#).
Stage plays, act against, [201](#).
Stage plays prohibited at Bartholomew fair, [217](#), [229](#), [232](#).
Stars of London theatres acting at Bartholomew fair, [224](#).
Statute of Gloucester, inquiries under, [17](#).
Storm at Sturbridge fair (1741), [143](#), [147](#).
Strolling player, life of, [226](#).

Sturbridge chapel, [59](#).

Sturbridge fair, [21](#).

history of, [54](#).

impeached, [75](#).

new charter, [92](#), [106](#).

De Foe's description of, [133](#).

plan of, [147](#).

merchandise at, [149](#).

money taken at, [152](#).

last time called by university, [154](#).

proclamation by university, [154](#).

proclamation by town, [158](#).

Sunday fairs, [34](#).

Sunday trading prohibited, [156](#), [192](#).

Supplies purchased at fairs, [103](#).

Suspected people to be arrested, [99](#).

Tallow, sale of, [72](#).

Theatrical performances, [49](#).

Thermopylæ, fairs of, [4](#).

Tolls of fairs, [15](#), [21](#) ([note](#)), [65](#), [69](#), [94](#).

Tolls, Bartholomew fair, [169](#), [176](#), [180](#), [205](#), [209](#), [230](#), [240](#), [241](#).

Torhout, fair of, [8](#).

Toulon, fair of, [271](#).

Trespass at Sturbridge fair, [143](#).

Tribunals of commerce, [28](#).

Troy weight, [272](#).

Troyes, fairs of, [7](#), [271](#).

Tunbridge ware at Sturbridge fair, [154](#).

Tuscan merchants, [272](#).

Tyre, fairs of, [4](#).

Tyson, Rev. Michael, [146](#).

Universities, rights of, reserved, [43](#).

Venetian merchants at Sturbridge fair, [161](#).

Victuals, measures for sale of, to be sealed, [156](#).

Voronej, fair of, [290](#).

Walden claimed freedom from tolls, [70](#).

Wales, fairs in, [18](#), [39](#).

Wallace executed in Smithfield, [171](#).

Wallace's "Russia" quoted, [306](#).

Warden of the fair, [249](#).

Wardens of the privileges, [247](#).

Weights for fairs, [25](#).

Weighing goods at Sturbridge fair, [145](#).

Weights in Bartholomew fair, [191](#).

Westminster, statute of, [23](#).

Wine at fairs, price fixed, [83](#), [156](#).

Wines at Bordeaux fair, [264](#).

Winter fair, Russia, [307](#).

Wood at fairs to be good, [86](#).

Wooden ware, Sturbridge, [157](#).

Wool at Sturbridge fair, [139](#), [162](#).

Woollen goods at fairs, [278](#).

Women, “unhonest,” excluded from Sturbridge fair, [155](#), [156](#).

Wrestling matches in Bartholomew fair, [198](#).

Yekaterinburg (Russia), fair of, [310](#).

Zytomiers (Russia), fair of, [286](#).



A SHORT LIST OF ANTIQUARIAN AND OTHER WORKS.

In foolscap 4to, on Handmade Paper, bound in vellum of very beautiful design. 17s. 6d.

A BALLADE OF THE SCOTTYSSHE KYNGE.

Written by JOHN SKELTON, Poet Laureate to King Henry 8th.

Reproduced in Facsimile,—With an Historical and Bibliographical
Introduction by JOHN ASHTON.

THE BALLADE OF THE SCOTTYSSHE KYNGE is the earliest known printed English ballad; it was discovered under curious and interesting circumstances, which are narrated in detail in the Introduction, and is here very carefully facsimiled. A limited number of copies were issued in a tasteful form for those collectors of ballads and connoisseurs of early printing who desire to possess the work in the nearest shape to its original form. It is accompanied by an Historical and Bibliographical Introduction, giving an account of the various printed forms of the incidents it records, with Illustrative Quotations from the more important of them; also Notes from Contemporary History, elucidating the events of the Ballad, and other information interesting to the Antiquary and the Bibliographer.

In foolscap 4to, tastefully printed in Antique style, on Handmade Paper, with rough edges, and bound in vellum of very beautiful pattern. 16s.

A NOBLE BOKE OF COOKRY

ffor a Prynce houssolde or eny other estately houssolde.

Reprinted Verbatim from a rare MS. in the Holkham Collection. With an Introduction by Mrs. NAPIER. This very curious and interesting work is a reproduction of a fourteenth century cookery book, containing numerous recipes for dishes which were in common use at that period,

many of which are now obsolete; others are evidently the early counterparts of made dishes of the present day. The work also furnishes a number of *menus* of great contemporary feasts, which throw much fresh light on the domestic habits of our ancestors.

Printed on rough Handmade Paper similar to that of the original, and bound in handsome contemporary vellum binding. £2 2s.

A FACSIMILE OF THE BOKE OF ST. ALBAN'S.

By DAME JULIANA BERNERS.

Containing the Treatises on Hawking, Hunting, and Heraldry.

Printed at St. Alban's, by the Schoolmaster-Printer, in 1486. With an Introduction by WILLIAM BLADES, Author of the 'Life and Typography of Caxton.' This facsimile is faithfully reproduced by photography. The interest and value of this reproduction are greatly enhanced by Mr. BLADES' Preface, which treats at length, in separate chapters, of the Authorship, Typography, Bibliography, Subject-matter, and Philology of the Work.

Printed on Handmade Paper of the same texture and colour as that on which the first edition appeared, and the binding of contemporaneous pattern on vellum. 18s.

THE TREATYSE OF FYSSHYNGE WYTH AN ANGLE.

By DAME JULIANA BERNERS.

With an Introduction by Rev. M. G. WATKINS.

A Facsimile Reproduction of the First Edition, printed by Wynkyn de Worde, at Westminster, in 1496. The present Facsimile is reproduced from a copy of the original edition in the British Museum, by means of photography, and consequently renders every peculiarity of the original in faithful detail; the rude illustrations which adorned the first edition of this 'lytyll plaunflet,' are here given in all their quaint roughness.

Bound in cloth, with beautiful design in gold. 15s.

SONNETS OF THREE CENTURIES.

A Representative Collection of the best English Sonnets from Spenser to the Present Day.

Embodying many Inedited and hitherto Unpublished examples. The whole arranged Chronologically, and accompanied by illustrative Notes and a copious Historical and Bibliographical Introduction, by T. HALL CAINE.

In large folio, tastefully printed, and handsomely bound in Antique style. 18s. 6d.

THE ABBEY OF WALTHAM HOLY CROSS:

Its History and Architecture, by EDWARD H. BUCKLER.

Illustrated by Twenty Drawings, which have been made specially for this work, by the Author, taken from interesting points of observation, which have not hitherto been selected.

Only 150 copies have been printed, and very few are now left for Subscribers.

Small 4to, printed on Antique Paper, in ancient binding. 10s. 6d.

A few LARGE PAPER copies in Antique binding are left, and are charged at 15s.

MILTON'S PARADISE LOST.

A Facsimile Reproduction of the First Edition of 1667.

With an Introduction by DAVID MASSON, M.A., LL.D., Author of the 'Life of Milton,' &c.

On Antique Paper, and bound in imitation panelled calf. 7s. 6d. On Handmade Paper, bound in Roxburgh, with gilt top. 9s.

CHAPTERS IN THE HISTORY OF OLD ST. PAUL'S.

By the Rev. Dr. W. SPARROW SIMPSON, F.S.A., Minor Canon of St. Paul's,
one of the Hon. Librarians of the Archbishop of Canterbury.

With Two Illustrations, and a Facsimile from a Manuscript of the Twelfth
Century written in the Scriptorium of the Cathedral.

LONDON: ELLIOT STOCK, 62, PATERNOSTER ROW, E.C.

*** END OF THE PROJECT GUTENBERG EBOOK FAIRS, PAST AND
PRESENT ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.